PART THREE | AN EXPANDING NATION

CHAPTER 10
A NEW DEMOCRATIC ERA

1828-1840

Secondary Source Reader

Historical scholarship for History B17A

INCLUDED	70 verified selections from 45 supplied monographs.
SOURCE TEXT	Continuous passages from supplied editions, with original note calls and corresponding author notes.
CITATIONS	Chicago Notes and Bibliography; original book locators, never reader page numbers.

Prepared from the supplied editions.

Reader's Guide

Each numbered reading is a continuous excerpt from a historian's work. The main heading gives the monograph title; the metadata identifies the verified original chapter or section and the original book locator.

Citing These Readings

Use the full footnote citation the first time you cite a book and the shortened form thereafter, including when you cite another selection from the same book.

Use original book pages or verified ebook locators, not reader page numbers. Create your own footnote numbering; the superscript numbers within the excerpts belong to the historian.

If a historian quotes a primary source that you have not consulted directly, use a 'quoted in' note. Include only works you actually use in your bibliography.

Contents

S10.01	The Right to Vote: The Contested History of Democracy in the United States Alexander Keyssar	6
S10.02	The Age of Jackson Arthur M. Schlesinger Jr.	8
S10.03	Waking Giant: America in the Age of Jackson David S. Reynolds	9
S10.04	Liberty and Power: The Politics of Jacksonian America Harry L. Watson	11
S10.05	The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828 Lynn Hudson Parsons	13
S10.06	The Second American Party System: Party Formation in the Jacksonian Era Richard P. McCormick	14
S10.07	The Rise of American Democracy: Jefferson to Lincoln Sean Wilentz	16
S10.08	The Right to Vote: The Contested History of Democracy in the United States Alexander Keyssar	18
S10.09	Slavery, Freedom, and Culture among Early American Workers Graham Russell Gao Hodges	20
S10.10	Andrew Jackson, Southerner Mark R. Cheathem	23
S10.11	Slavery and the Democratic Conscience: Political Life in Jeffersonian America Padraig Riley	26
S10.12	The Market Revolution: Jacksonian America, 1815-1846 Charles Sellers	28
S10.13	Banks and Politics in America from the Revolution to the Civil War Bray Hammond	29
S10.14	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America Harry L. Watson	30

S10.15	Liberty and Power: The Politics of Jacksonian America Harry L. Watson	32
S10.16	The American Political Tradition and the Men Who Made It Richard Hofstadter	34
S10.17	Clashing over Commerce: A History of US Trade Policy Douglas A. Irwin	35
S10.18	The Tariff History of the United States F. W. Taussig	37
S10.19	Olive Branch and Sword: The Compromise of 1833 Merrill D. Peterson	38
S10.20	The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina Manisha Sinha	40
S10.21	Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836 William W. Freehling	41
S10.22	Olive Branch and Sword: The Compromise of 1833 Merrill D. Peterson	42
S10.23	Daniel Webster: The Man and His Time Robert V. Remini	44
S10.24	Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836 William W. Freehling	46
S10.25	The Great Father: The United States Government and the American Indians Francis Paul Prucha	47
S10.26	Andrew Jackson & His Indian Wars Robert V. Remini	49
S10.27	Driven West: Andrew Jackson and the Trail of Tears to the Civil War A. J. Langguth	50
S10.28	The Long, Bitter Trail: Andrew Jackson and the Indians Anthony F. C. Wallace	52
S10.29	Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South Barbara Krauthamer	54
S10.30	African Cherokees in Indian Territory: From Chattel to Citizens Celia E. Naylor	56
S10.31	The Half Has Never Been Told: Slavery and the Making of American Capitalism Edward E. Baptist	59
S10.32	American Indian Policy in the Jacksonian Era Ronald N. Satz	61
S10.33	Driven West: Andrew Jackson and the Trail of Tears to the Civil War A. J. Langguth	63
S10.34	Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory Claudio Saunt	64

S10.35	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes Gerard N. Magliocca	66
S10.36	The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty Jill Norgren	67
S10.37	The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations Tim Alan Garrison	69
S10.38	Banks and Politics in America from the Revolution to the Civil War Bray Hammond	72
S10.39	The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis Jessica M. Lepler	74
S10.40	The Age of Jackson Arthur M. Schlesinger Jr.	76
S10.41	Liberty and Power: The Politics of Jacksonian America Harry L. Watson	77
S10.42	The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War Michael F. Holt	79
S10.43	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power Robert V. Remini	82
S10.44	Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850 Sean Wilentz	83
S10.45	America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837 Alasdair Roberts	85
S10.46	The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis Jessica M. Lepler	87
S10.47	The Jacksonian Economy Peter Temin	89
S10.48	A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America Brian Balogh	91
S10.49	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes Gerard N. Magliocca	93
S10.50	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America Harry L. Watson	94
S10.51	Andrew Jackson & His Indian Wars Robert V. Remini	95
S10.52	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power Robert V. Remini	97
S10.53	Andrew Jackson Sean Wilentz	99
S10.54	The Rise of American Democracy: Jefferson to Lincoln Sean Wilentz	101

S10.55	Henry Clay: The Man Who Would Be President James C. Klotter	103
S10.56	Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States John Lauritz Larson	105
S10.57	The Great Triumvirate: Webster, Clay, and Calhoun Merrill D. Peterson	108
S10.58	The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War Michael F. Holt	110
S10.59	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power Robert V. Remini	112
S10.60	Daniel Webster: The Man and His Time Robert V. Remini	114
S10.61	Andrew Jackson Sean Wilentz	115
S10.62	The Political Culture of the American Whigs Daniel Walker Howe	117
S10.63	The Presidency of Andrew Jackson Donald B. Cole	119
S10.64	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes Gerard N. Magliocca	121
S10.65	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America Harry L. Watson	123
S10.66	The Long, Bitter Trail: Andrew Jackson and the Indians Anthony F. C. Wallace	124
S10.67	African Cherokees in Indian Territory: From Chattel to Citizens Celia E. Naylor	126
S10.68	Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory Claudio Saunt	129
S10.69	Andrew Jackson, Southerner Mark R. Cheathem	130
S10.70	Andrew Jackson Sean Wilentz	133

CHAPTER 10 · SECONDARY SOURCE S10.01

The Right to Vote: The Contested History of Democracy in the United States

Alexander Keyssar

WORK	The Right to Vote: The Contested History of Democracy in the United States
SELECTION	In the Beginning
SOURCE LOCATOR	supplied PDF pages 32-33 · Basic Books, 2000.

Excerpt

Women too were prohibited from voting, because they were thought to be dependent on adult men and because their "delicacy" rendered them unfit for the worldly experiences necessary for engagement in politics." In addition, there were limitations on the franchise that had more to do with social membership in the community than with a person's independence or stake in society. Freedmen of African or Amerindian descent were denied the ballot in much of the South.' In seventeenth-century Massachusetts, only members of the Congregational church could vote; in the eighteenth century, Catholics were disfranchised in five states and Jews in four.?

As these details suggest, aside from property qualifications, there were no firm principles governing colonial voting rights, and suffrage laws accordingly were quite varied. Not only Catholics and Jews, but also Native Americans, free blacks, and nonnaturalized aliens could vote in some places and not in others.!° Women were barred expressly in several colonies, including Virginia, but statutes elsewhere made no reference to gender, and in at least a few Massachusetts towns and New York counties propertied widows did legally vote.!! Absentee landowners were enfranchised in Virginia in 1736, which often meant that they could vote in more than one place. In practice, moreover, the enforcement or application of suffrage laws was uneven and dependent on local circumstances."

Of equal importance, the qualifications to vote in local elections—especially in the cities and larger towns—often differed from those needed to vote for colonial or provincial officers. These differences had two sources. The first was political or institutional. Royal charters for incorporated cities frequently spelled out precise suffrage rules, and those rules commonly granted political citizenship to men who had commercial affairs—rather than a residence—within the city limits. The breadth of the franchise in New York City, Perth Amboy, New Jersey, and Norfolk, Virginia, for example, was determined not by colonial general assemblies but by royal declaration and by the appointed officers who controlled the municipal corporations. The second reason for this municipal-colonial difference was economic: city and town dwellers possessed different types of property than did farmers, and consequently they sought to define property requirements in terms other than acreage or land. Although differently configured, city and town suffrage qualifications were not uniformly more strict or more le- Did the right to vote expand or contract during the colonial era? Were the colonies becoming more or less democratic, in their suffrage rules? The evidence is mixed. Some broadening of the franchise certainly occurred: religious restrictions, for non—church members and Protestant dissenters, tended to be relaxed in the late seventeenth and eighteenth centuries; municipal corporations began to grant the franchise to freeholders as well as men of commerce; and both Massachusetts and Virginia enacted laws that reduced the property requirements for voting.'* Yet the colonial era also witnessed some statutory contraction of the suffrage. The initial laws restricting the franchise to property owners generally were passed only decades after the colonies were settled, and in several colonies, including Pennsylvania, Rhode Island, and Virginia (which had a notably nonlinear franchise history), property requirements became more stringent over time.!5 Moreover, the legal exclusion of Catholics, as well as African Americans, mulattoes, and Native Americans, took place primarily in the eighteenth century. Whether these laws altered rather than codified existing practices is unclear, but the statutes seem to have been more restrictive by the middle of the eighteenth century than they had been in the seventeenth.!"

What also is unclear is just how many people could and did vote. This issue is a source of controversy among historians, some of whom conclude that colonial America was a land of middle-class democracy in which 80 or 90 percent of all adult white males were enfranchised, while others depict a far more oligarchic and exclusive political order.!* In fact, enfranchisement varied greatly by location. There certainly were communities, particularly newly settled communities where land was inexpensive, in which 70 or 80 percent of all white men were enfranchised.'? Yet there were also locales— including coastal towns (e.g., Ipswich, Massachusetts), farming counties (Westchester, New York, and Chester, Pennsylvania), cities (e.g., Philadelphia and Boston), and even some frontier settlements (Kent, Connecticut)—where the percentages were far lower, closer to 40 or 50 percent." Levels of enfranchisement seem to have been higher in New England and in the South (especially Virginia and the Carolinas) than they were in the mid-Atlantic colonies (especially New York, Pennsylvania, and Maryland); not surprisingly, they also tended to be higher in newer settlements than in more developed areas. On the whole, the franchise was far more widespread than it was in England, yet as the revolution approached, the rate of propertv ownership was falling.

Chicago Citations

Bibliography entry:

Keyssar, Alexander. *The Right to Vote: The Contested History of Democracy in the United States*. Rev. ed. New York: Basic Books, 2009.

Footnote citation:

Alexander Keyssar, *The Right to Vote: The Contested History of Democracy in the United States* (Rev. ed. New York: Basic Books, 2009), supplied PDF pages 32-33.

Shortened citation:

Keyssar, *The Right to Vote*, supplied PDF pages 32-33.

CHAPTER 10 · SECONDARY SOURCE S10.02

The Age of Jackson

Arthur M. Schlesinger Jr.

WORK	The Age of Jackson
SELECTION	The Age of Jackson
SOURCE LOCATOR	supplied PDF pages 322-323 · Little, Brown, 1945.

Excerpt

T„HE JACKSONIAN revolution rested on premises which the struggles of the thirties hammered together into a kind of practical social philosophy. The outline of this way of thinking about society was clear. It was stated and restated, as we have seen, on every intellectual background without which the party battles of the day cannot be understood.

The business community was considered to hold high cards in this conflict through its network of banks and corporapotent more powerful." Constitutional prescriptions and political promises afl^orded no sure protection. "We have heretofore been too to resist every attempt to concentrate wealth and power further in Cambreleng, "is as eternal as the division of society. A defeat cannot destroy the boundary which perpetually separates the democracy from the aristocracy." The specific problem was to control the power of the capitalistic groups, mainly Eastern, for the benefit of the noncapitalist groups, farmers and laboring men, East, West and South. The basic Jacicsonian ideas came naturally enough from the East, which best understood the nature of business power and reacted most sharply against it. The legend that Jacksonian democracy was the explosion of the frontier, lifting into the government some violent men filled with rustic prejudices against big business, does not explain the facts, which were somewhat more complex. Jacksonian democracy was rather a second American phase of that enduring struggle between the business community and the rest of society which is the guarantee of freedom in a liberal capitalist state.^ Like any social philosophy, Jacksonian democracy drew on several intellectual traditions.

Chicago Citations

Bibliography entry:

Schlesinger, Arthur M., Jr. *The Age of Jackson*. Boston: Little, Brown, 1945.

Footnote citation:

Arthur M. Schlesinger Jr., *The Age of Jackson* (Boston: Little, Brown, 1945), supplied PDF pages 322-323.

Shortened citation:

Schlesinger, *The Age of Jackson*, supplied PDF pages 322-323.

CHAPTER 10 · SECONDARY SOURCE S10.03

Waking Giant: America in the Age of Jackson

David S. Reynolds

WORK	Waking Giant: America in the Age of Jackson
SELECTION	Forging a National Identity
SOURCE LOCATOR	supplied PDF pages 278-279 · Harper, 2008.

Excerpt

"In literature it is only the wild that attracts us," he wrote. "Dullness is only another word for tameness." British literature, he stressed, had no "wild strain. It is an essentially tame and civilized literature.... There was a need for America." He declared, "America is the she-wolf of to-day." Elsewhere he wrote, "We must look to the west for a new literature," predicting that popular expressions "which now look so raw slang-like and colloquial when printed another generation will cherish and affect as genuine and American and standard." Thoreau developed his mature writing style in response to an American popular culture that feasted on sensations and hungered for curiosities. Thoreau, the hermit who lived on the simplest foods, was perceived by some as one more American oddity. One magazine compared him with P. T. Barnum in a piece called "Town and Rural Humbugs." Another writer said of Thoreau's style, "Sometimes strikingly original, sometimes merely eccentric and odd, it is always racy and original." James Russell Lowell charged that Thoreau "seeks, at all risks, for perversity of thought.... It is not so much the True that he loves as the Out- of-the-Way. As the Brazen Age shows itself in other men by exaggeration of phrase, so in him by exaggeration of statement." Reviewers caviled, but it was precisely the sensational or bizarre elements that attracted the popular audience. His idea for Walden came from a lyceum appearance where his audiences were curious about the details of his solitary life in the woods. When he began to lecture about his Walden experience, it was the strange, diverting moments of his talks that were the most popular. His biting "Economy" lecture, commented one magazine, was "sufficiently queer to keep the audience in almost constant mirth.... The performance has created 'quite a sensation' among Lyceum goers." By contrast, a tamer lecture, which became audience." When selecting passages from his writings to reprint, periodicals of the day most often chose the freakish or wild passages, such as "I grow savager and savager every day, as if fed on raw meat" or "There is in my nature, methinks, a singular yearning toward all wildness." As Thoreau revised Walden for publication in the seven years after 1847, he heightened the sensational qualities of his prose. He added shocking images that might fit into the penny press: tortured people taunting loon; the eerie owl hoots; and the passage about wanting to eat a woodchuck raw. He also invited us to laugh at the freakish or theatrical, as when he writes, "We know but few men, a great many coats and breeches," or "The head monkey at Paris puts on a traveller's cap, and all the monkeys in America do the same," or, about the transatlantic telegraph, "perchance the first news that will leak through into the broad, flapping American ear will be that the Princess Adelaide has the whooping cough." When Walden appeared, several reviewers noted its popular techniques. One stated flatly, "He coveted readers, and believed that he should have them." Another explained that he wrote Walden to satisfy "an inquiring public" and that "in the whole course of the book he keeps this audience in mind, goes out to meet it, and by a most conspicuously popular style adapts himself to it." And to some degree Thoreau satisfied this popular audience. Although Walden was not a best seller, it originally sold over two thousand copies—then a strong sale for a nonfiction volume—and proved popular over time, staying alive for future generations through its prose that absorbed popular images. If the Transcendentalists carried the Democratic ideology toward radical individualism, Hawthorne followed it into metaphysical ambiguity. Born in 1804 in Salem, Massachusetts, Hawthorne was bookish child and went on to attend Bowdoin College from 1823 to 1827. He then entered what he famously called the "dismal chamber" period of literary productivity—a statement that has wrongly led some to say that he was an isolated genius, distanced from his times.

Chicago Citations

Bibliography entry:

Reynolds, David S. *Waking Giant: America in the Age of Jackson*. New York: Harper, 2008.

Footnote citation:

David S. Reynolds, *Waking Giant: America in the Age of Jackson* (New York: Harper, 2008), supplied PDF pages 278-279.

Shortened citation:

Reynolds, *Waking Giant*, supplied PDF pages 278-279.

CHAPTER 10 · SECONDARY SOURCE S10.04

Liberty and Power: The Politics of Jacksonian America

Harry L. Watson

WORK	Liberty and Power: The Politics of Jacksonian America
SELECTION	National Parties and Local Politics
SOURCE LOCATOR	Original pages 173–174 · Hill and Wang, 1990.

Excerpt

Before becoming President, even Andrew Jackson had discounted political partisanship. Though he always considered himself a strong Jeffersonian, he had called for reconciliation with selected Federalists in the years after 1815. Later experiences taught him differently. "'No one can carry on this Govt. without support," he concluded after six years in office, "and the Head of it must rely for support on the party by whose suffrages he is elected." Convinced that the majority of the American voters shared his views and backed his measures, Jackson decided that successful opposition to him could arise only when those whom he once called 'the predatory portion of the community" exploited trivial rivalries over personalities and local preferences to divide the majority and allow the election of candidates who were hostile to popular interests. The natural majority thus needed some institution by which it could find itself, learn its own mind, unite behind a single slate of candidates, and drive all "aristocratic" schemers to defeat. For Jackson that institution would be the Democratic-Republican Party that had been founded by Thomas Jefferson. "I have labored to reconstruct this great Party," he therefore wrote, "and to bring the popular power to bear with full influence upon the Government, by securing its permanent ascendancy."

Many other Americans were not as quick as Jackson and Van Buren to recognize the value of political parties. President Monroe had been acting in a well-established antiparty tradition when he tried to bring Federalists and Republicans together in the so-called Era of Good Feelings, and so had John Quincy Adams when he called upon Americans to uproot "the baneful weed of party strife." So far from regarding parties as the means of preserving liberty, traditional political thinkers had seen them as its enemies.

In 1828 the rival coalitions backing Adams and Jackson had worn the collective labels 'National Republican" and "Democratic Republican," respectively, but in most localities the loosely knit alignments of that contest had scarcely comprised a party system. Most states gave a large majority to one candidate or another and voting turnout was small by later standards, suggesting that sectionalism and deference to traditional elites had as much to do with the outcome as party labels. Though the Jackson coalition was more willing to call itself a party than were the followers of President Adams, its members were still a motley and sprawling collection of diverse elements who agreed on little besides the personal attractions of Jackson himself.

Over the course of Jackson's two terms, the President's actions stripped his original supporters down to fighting strength and gave them a strong sense of group identity. The cumulative effect of the Maysville Road and Bank vetoes, the nullification struggle, and deposit removal was to alienate lukewarm supporters and to create among those who remained a rhetorical commitment in favor of legal equality for white men and against government aid to economic development. Perhaps most important, the emerging Democratic Party shared an emotional loyalty to Jackson and his legacy and a fervent desire, in the President's words, to give it "permanent ascendancy."

To give this body of like-minded supporters a practical structure, Jacksonians had embraced a number of techniques. A far-reaching network of state and county newspapers amplified the voice of the Washington Globe and transmitted news and party doctrine to followers at the local level. Patronage was distributed with an eye to rewarding loyalists and punishing dissidents who refused to support the party's principles or nominees. Perhaps most important, party conventions met regularly to choose candidates and to hammer out consistent platforms. Sometimes the delegates to

county, district, and state conventions were elected by gatherings of party members lower down the hierarchy, and sometimes they were chosen less democratically, but in principle they were all pledged to support a convention's nominees, regardless of whether their own particular favorites won the party's approval. Jackson himself had endorsed party conventions as a means of enforcing unity and urged their extension into national politics. While once he had called for the abolition of the Electoral College and the direct election of the President, he came to put his faith in nominating conventions instead. "This is the only mode by which the people will be able long to retain in their own hands, the election of the President and Vice President,"' he insisted. A Democratic national convention accordingly gathered in 1831 to nominate Van Buren for Vice President and in 1835 to nominate him for President.

Chicago Citations

Bibliography entry:

Watson, Harry L. *Liberty and Power: The Politics of Jacksonian America*. Updated ed. New York: Hill and Wang, 2006.

Footnote citation:

Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (Updated ed. New York: Hill and Wang, 2006), 173–174.

Shortened citation:

Watson, *Liberty and Power*, 173–174.

CHAPTER 10 · SECONDARY SOURCE S10.05

The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828

Lynn Hudson Parsons

WORK	The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828
SELECTION	The Birth of Modern Politics
SOURCE LOCATOR	supplied PDF pages 155-156 · Oxford University Press, 2009.

Excerpt

The word “campaign” is a military term. It implies leadership, orders, a hierarchical structure, and above all a willingness on the part of the rank and file to place common cause above individual interest. The penalties for disobeying orders in a political campaign are far less stringent than in a military one, and individuals in a political campaign will always have their eyes on their interests as well as those of the candidate or party, yet most successful political campaigns follow as closely as possible the military model. “To manage men,” said a Jacksonian organizer, “is as much a science as to manage armies.”' It probably was no coincidence that the first truly national political campaign for the presidency was run on behalf of a military figure. In the presidential election campaign of 1828 can be found the elements, sometimes rudimentary, of most elections to come: coordinated media, fund-raising, organized rallies, opinion polling, campaign paraphernalia, ethnic voting blocs, image making, even opposition research, smear tactics, and dirty tricks. Most, but not all, of these innovations were introduced by the Jacksonians, who time and again proved that they had grasped the significance of the shifting tectonic plates that lay beneath the political landscape better than their opponents. They recognized that the expanding electorate needed to be handled in new ways. They accepted, and for the most part embraced, the role of organized political parties in a republic. They understood, too, what effective political operatives in future elections would also come to understand: that although particular issues can be important, nothing in a presidential election is more important than the image of the candidate. In the end it was the image of Andrew Jackson, the Hero of New Orleans, the outsider untouched by “intrigue and corruption” in Washington, the defender of true republicanism in the face of its “aristocratic” enemies, that would prevail. It was one of the most powerful presidential images in American political history. Combined with the campaign put together on his behalf and the lack of an effective response by his opponents, it proved to be unbeatable. “Say what you will,” an Adams supporter ruefully conceded after it was over, “these Jacksonians are excellent politicians.””

Chicago Citations

Bibliography entry:

Parsons, Lynn Hudson. *The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828*. New York: Oxford University Press, 2009.

Footnote citation:

Lynn Hudson Parsons, *The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828* (New York: Oxford University Press, 2009), supplied PDF pages 155-156.

Shortened citation:

Parsons, *The Birth of Modern Politics*, supplied PDF pages 155-156.

CHAPTER 10 · SECONDARY SOURCE S10.06

The Second American Party System: Party Formation in the Jacksonian Era

Richard P. McCormick

WORK	The Second American Party System: Party Formation in the Jacksonian Era
SELECTION	3. Party Formation in New England
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of North Carolina Press, 1966.

Excerpt

The Antimasons did succeed in bringing to the polls men to whom the major parties had little appeal. Voter participa tion rose markedly after 1830, rising to over 45 per cent of the estimated electorate in 1834. When the party fell apart, these new voters apparently retained their political interest, and the major portion of them seem to have moved into the Democratic ranks. Too, the Antimasons may have had the effect of inducing the major parties to exhibit increased con cern about the reform measures that were being agitated at the time. Neither the Whigs nor the Democrats were disposed to offer substantial concessions to the Antimasons, however, with the result that there was no "amalgamation," such as was to occur in certain other states. Basically, the Antimasonic party, like the Workingmen's party—which flourished briefly in the same years—reflected popular discontent or frustration with the two major parties.

After 1835 the Democrats steadily narrowed the margin that separated them from their opponents. In 1836 Van Buren received 45 per cent of the popular vote, the strongest showing made by any Democratic presidential candidate until after the Civil War. Marcus Morton, the perennial candidate for governor, increased his vote from around fifteen thousand in 1833 to over fifty-one thousand in 1839, when he finally won an election. The Whig vote, meanwhile, had remained rela tively stable. The Democrats obviously profited more than the Whigs from the demise of the Antimasons. Too, the party leaders were compelled to make concessions both to a "Workingmen" faction and a western "Country" faction, with the result that the image of the party as a spokesman for the "common man" was strengthened. In 1838 George Bancroft replaced Henshaw both as collector of the Port of Boston and as the party leader, and under his guidance the party was reorganized on "reform" principles and reached its peak effec tiveness. As the parties became more competitive, voter par ticipation rose to a new high of 66 per cent in the 1840 elec tions.

The formal structure of the major parties underwent little change. Although both Whigs and Democrats resorted on oc casion to the use of state conventions, especially in prepara tion for presidential elections, the caucus and the Central Committee were retained as the prime agencies of state party management.[7] Campaign practices remained relatively sedate, until the election of 1840, with its enormous mass meetings, popular oratory, and generally festive atmosphere, broke down the traditional reserve.

1840 that the new order of politics that had its inception in the revival of the contest for the presidency sixteen years earlier finally reached maturity.

Author's Notes

7. The National Republicans held their first state convention at Worcester, October 11-12, 1832. Journal of the Proceedings of the [Massachusetts] Na tional Republican Convention... Worcester, October u, 1832 (Boston, 1832). The Whigs held state conventions in 1833, 1836, 1840, and regularly after 1843. In the intervening years nominations were made by mixed conventions, made up of Whig members of the legislature together with delegates from towns not represented by Whigs in the legislature. For reports of the mixed conventions, see Boston Courier, Mar. 28, 1836; Mar. 20, 1837; Mar* 4" l839î Mar- 1" l84i.

Chicago Citations

Bibliography entry:

McCormick, Richard P. *The Second American Party System: Party Formation in the Jacksonian Era*. Chapel Hill: University of North Carolina Press, 1966.

Footnote citation:

Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill: University of North Carolina Press, 1966), no stable fixed page labels in supplied edition.

Shortened citation:

McCormick, *The Second American Party System*, no stable fixed page labels in supplied edition.

CHAPTER 10 · SECONDARY SOURCE S10.07

The Rise of American Democracy: Jefferson to Lincoln

Sean Wilentz

WORK	The Rise of American Democracy: Jefferson to Lincoln
SELECTION	The Rise of American Democracy
SOURCE LOCATOR	Original pages 516–517 · W. W. Norton, 2005.

Excerpt

The Jacksonians also created the first mass democratic national political party in modern history—the institutional basis for mobilizing and then consolidating political loyalties and participation. Earlier approximations of mass parties had arisen over sharp ideological differences and devised effective means to spread their messages, get their supporters to the polls, and struggle over government policy at the local and national levels. More than the conventional historical wisdom on the "deferential-participant" politics of the era allows, there was a great deal of democracy in Jeffersonian Democracy. But to the founding gener ation, the idea of parties still remained tainted with associations to vicious fac tions that would corrupt and divide the republican commonwealth, and a great deal of power in national and state politics remained formally concentrated in the hands of small and constricted elites, concretized in the congressional nom inating caucus.[2]

The Jacksonian party that emerged out of the collapse of the "one-party" period and the death of the caucus system dispensed with those fears and greatly enlarged on earlier forms of party organization. Elections were the crucial events for this new democracy, toward which all organizing efforts led. But elections were only the culmination of a continual effort to draw together the faithful. In place of the discarded nominating caucuses, the Jacksonians substituted a national network of committees, reaching up from the ward and township level to the quadrennial national convention, each a place where, at least in principle, the popular will would be determined and ratified. The political ferment contin ued almost year-round, with local committees calling regular meetings to approve local nominations, pass public resolutions, and mount elaborate proces sions. Sometimes, as in the Tammany Hall meeting that brought the Loco Foco schism in 1835, these party gatherings could get out of hand, further reinforcing conservative prejudices like Philip Hone's about "the dunghill of Democracy." But even at their most tumultuous, the Jacksonians could claim that more than any previous party or faction, they honored what New York's Evening Post called "[t]he democratic theory... that the people's voice is the supreme law."73

The Jacksonians did not, however, fully reconcile themselves to the idea of what later historians and social scientists would call a party system. Seeing them selves as the authentic legatees of the Jeffersonian Republicans, they assumed that if they did their work correctly, they would forever hold the opposing aristo cratic party at bay. Far from regarding themselves as simply an electoral machine, they believed they were the constitutional party of the sovereign peo ple. They were an organization, as Jacksonians ceaselessly reiterated, "of princi ples, not of men," in which active devotion to the part}' would sustain the classless Constitution. Lacking the private resources of the aristocrats of "associ ated wealth," the people had no choice but to organize as a party—virtually along military lines with ballot boxes as their weapons —to sustain their sover eignty. The few, in response, would be free to organize their own opposition party—a focus of competition that would make the Jacksonians' own political efforts more disciplined. But the Jacksonians never envisaged an operational con test between rival political organizations, or what the Evening Post called "the mere struggle of ambitious leaders for power." Instead, they expected a two-party system in which they, the party of popular sovereignty, would hold power more or less in perpetuity, unless, as Van Buren said, diminished zeal led to "the grad ual abandonment of the principles it sustained."74

The politics of the 1830s proved how elusive Van Buren's party vision actually was —and how unstable the Democracy remained. Thanks, chiefly, to the newschool Whigs, the opposition not only improved on the Democracy's election eering tools; it devised a contrasting democratic message that struck a deep nerve in the electorate that the Democrats did not even realize was there. And quite apart from Van Buren's defeat in 1840, the Democracy confronted internal diffi culties and external challenges that majoritarian politics could not fully handle. The return of John C. Calhoun threatened to turn the party into a handmaiden for Calhoun's pro-slavery nullifier views. The appearance of the political aboli tionists, although only a minor force in 1840, promised to prolong and intensify agitation over slavery. The stigma of the depression forced Democrats to think anew about the hard-money principles that had become a cornerstone of their democratic politics. So did the loss of both the White House and the Congress.

Larger ideological questions arose as well. How long could Democrats, in the name of preserving sectional harmony, back the gag rule and other attacks on free speech without fatally compromising their own ideals of equal rights? How long could the Democracy present itself as the party of the producing classes and still defend the interests of slaveholders —men whom some Democrats had begun regarding as nonproducers who lived, as Thomas Morris declared in the Senate, "upon the unrequited labor of others"? The very raising of those ques tions, meanwhile, caused consternation among southern Master Race Demo crats, for whom the bondage of blacks had become a basic precondition for securing political equality among whites. How, in their eyes, could equality be preserved if the very foundation of equality came under question? How could democracy endure without slavery, or with slavery under assault?

Author's Notes

2. CG, 35th Congress, 1st session, 939-45 (quotations on 941).

Chicago Citations

Bibliography entry:

Wilentz, Sean. *The Rise of American Democracy: Jefferson to Lincoln*. New York: W. W. Norton, 2005.

Footnote citation:

Sean Wilentz, *The Rise of American Democracy: Jefferson to Lincoln* (New York: W. W. Norton, 2005), 516–517.

Shortened citation:

Wilentz, *The Rise of American Democracy*, 516–517.

CHAPTER 10 · SECONDARY SOURCE S10.08

The Right to Vote: The Contested History of Democracy in the United States

Alexander Keyssar

WORK	The Right to Vote: The Contested History of Democracy in the United States
SELECTION	Women, African Americans, and Native Americans
SOURCE LOCATOR	Original pages 54–55 · Basic Books, 2000.

Excerpt

Women, African Americans, and Native Americans One of the earliest acts of suffrage restriction—or retraction—was the disfranchisement of women in New Jersey in 1807. Both the state's constitution of 1776 and an election law passed in 1790 granted the right to vote to all "inhabitants" who otherwise were qualified: this was interpreted locally to mean that property-owning women could vote. New Jersey's policy was exceptional—although throughout the new nation there were individuals who followed the logic of "stake in society" arguments across the customary border of gender and concluded that women (such as widows) should be enfranchised if they possessed property and were not legally dependent on men. Why the state of New Jersey embraced this minority view is unclear, but the enfranchisement of women was definitely not inadvertent and appears to have been grounded at least in part in factional politics. As different political groups struggled to gain ascendancy during and just after the revolution, they tried to enlarge their potential constituencies, one of which was female.

Yet what partisan politics could give, it also could take away. By the early nineteenth century, the balance of political power had shifted, charges of voting fraud were rampant, and the Federalists, as well as two competing groups of Republicans, concluded that it was no longer to their advantage to have all "inhabitants'—including women, aliens, and African Americans—in the electorate. After the impulse to clean up politics had been bolstered by a flagrantly corrupt election to select the site for a new courthouse in Essex County, New Jersey's legislature took it upon itself to declare that "no person shall vote in any state cr county election for officers in the government of the United States or of this state, unless such person be a free, white male citizen." Those who supported this retrenchment made little or no mention of the incapacity or incompetence of women; they were simply fighting corruption, correcting a "defect" in the constitution, and clearing up "doubts" about the composition of the electorate. Once that constitutional defect had been corrected, women everywhere in the nation were barred from the polls.!

African Americans were the target of a far more widespread movement, in the North as well as in the few pockets of the South where free blacks had sometimes voted. As tables A.4 and A.5 make clear, the number of states that formally excluded free African Americans was relatively small at oO 7 £4 90 permitted blacks to vote during the first years of independence, including New Jersey, Maryland, and Connecticut, limited the franchise to whites before 1820. New York excluded the vast majority of blacks (by instituting a racially specific set of property and residence requirements) in the same constitution in which it removed property qualifications for whites. In 1835, North Carolina added the word white to its constitutional requirements, and Pennsylvania, which had such a liberal constitution during the revolutionary era, did the same in 1838, two years after its supreme court had ruled that blacks could not vote because they were not "freemen." Of equal importance, every state that entered the union after 1819 prohibited blacks from voting. In the late 1840s and early 1850s, moreover, many states (including New York, Ohio, Indiana, and Wisconsin) reaffirmed their racial exclusions, either in constitutional conventions or through popular referenda. By 1855, only five states (Massachusetts, Vermont, New Hampshire, Maine, and Rhode Island) did not discriminate against African Americans, and these states contained only 4 percent of the nation's free black population. Notably, the federal government also prohibited blacks from voting in the territories it controlled; in 1857, the Supreme Court ruled that blacks, free or slave, could not be citizens of the United States.?

The sources of this exclusionary impulse shifted somewhat over time. Early in the period, there was an almost matter-of-fact quality to decisions to bar African Americans, who were widely believed to be inferior and lacking in potential republican virtues. Since slaves obviously were ineligible to vote and most free blacks could not meet property and taxpaying requirements, formally expressed racial barriers would affect relatively few people, especially in the North. Yet with each passing decade the free black population grew, the abolition of property requirements made it possible for poor, uneducated blacks to vote, and inhabitants of Northern states grew increasingly apprehensive about the prospect of attracting black migrants from the South.

More important, perhaps, was an efflorescence of racism: while abolitionist sentiment was growing, so too were sharply antagonistic, fearful, and hostile attitudes toward blacks. This hardening of attitudes was discernible in the language with which the issue was discussed. At the New York convention in 1821, for example, a delegate opposed to black suffrage rather temperately had described blacks as “a peculiar people, incapable, in my WHiement aleercicnorthat nrinllecessith anvieart of diccretion nridence.

Chicago Citations

Bibliography entry:

Keyssar, Alexander. *The Right to Vote: The Contested History of Democracy in the United States*. Rev. ed. New York: Basic Books, 2009.

Footnote citation:

Alexander Keyssar, *The Right to Vote: The Contested History of Democracy in the United States* (Rev. ed. New York: Basic Books, 2009), 54–55.

Shortened citation:

Keyssar, *The Right to Vote*, 54–55.

CHAPTER 10 · SECONDARY SOURCE S10.09

Slavery, Freedom, and Culture among Early American Workers

Graham Russell Gao Hodges

WORK	Slavery, Freedom, and Culture among Early American Workers
SELECTION	Slavery, Freedom, and Culture among Early American Workers
SOURCE LOCATOR	supplied PDF pages 108-109 · Armonk, NY: M. E. Sharpe, 1998.

Excerpt

Marietta Morrissey ambitiously seeks to analyze the slave woman's experience in British, Dutch, French, Spanish and Danish West Indies from a broad Marxist perspective to determine whether or not gender defined slave status. As she is making a large geographical survey, her findings speak to either Frank Tannenbaums's "terms of the religious and cultural variations of slavery or to the stages of capitalist development suggested by his critics" p. 15). Second, gender study addresses for Morrissey the issue of the economic basis of Caribbean slavery. As might be surmised, Morrissey uses a materialist strategy, acknowledging slaves' economic motives rather than an unequal structuralist explanation or study of slave culture. The latter she regards as unwarranted, exaggerated claims based on emotion and political intention. This final point sharply separates Morrissey from Beckles and Bush. Yet, because they agree that gender is the most prominent variable, the three authors assert that the slave woman's history is sufficiently divergent from the male's to require reassessment of Caribbean history. On the surface, the three works are quite similar in approach. The authors weave chapters on domestic slavery, field work and garden plots, discussions of fertility and child-bearing, and family structure towards goals of explaining the prevalence of women's resistance to slavery in the Caribbean. Although each offers some new evidence, their principal approaches are to reinterpret existing research in order to provide new frameworks for analysis rather than to introduce major new areas of evidence. These goals provide a firm platform on which future efforts can stand. As the organization, evidence and, often, conclusions of the three books are frequently close, this review concentrates on areas of agreement and contention in key methods and points of analysis. The first important subject is the demography of Caribbean slave women. Hilary Beckles contends that female laborers were the majority of Barbados's black population after 1715. Even though seventeenth-century African slave traders were reluctant to supply women to the Royal African Company and the majority of slaves brought to the Caribbean were male, he argues that by "the early 18th century, the ratio had settled down to about 48% male to 52% female" p. 9). This important statement, however, leans on a single, secondary source and lacks the fuller documentation he provides for later periods or for the white population, where females were also in the majority. Beckles is firmest in his demonstrations that black females outnumbered males in the cities. Bush, looking at the remainder of Anglophone West Indies, is in substantial agreement. She notes in passing the black female majority on West Indian plantations. Slaveowners gave little allowance for fertility or immunity from punishment for women before 1807, when the slave trade ended. Morrissey adds that pursuit of short-term profits in the Spanish West Indies set the tone for the treatment of black women and the devaluation of their fertility throughout the Caribbean. As slavery intensified in Cuba during the early nineteenth century, birth rates and natural increases declined. Overall, the authors skim the ramifications of this important section, which seems crucial to their arguments and which has significant application to North American cities and gender analysis. Black women, like men, were brought to the Caribbean to work. Field labor was the most universal experience for black women. The three authors agree that black women were not spared the heaviest forms of labor, especially at crop time, and were not spared cruel punishments. Monocultural crops produced the most intensive labor. Morrissey's argument that black women, working in a three-tiered gang system on plantations, gradually suffered a decrease in conditions, providing more and more of the unskilled labor, is the most fully developed. Morrissey's finding that, over time, labor intensification created harsher labor and longer workdays mirrors evidence Lois Carr and Lorena Walsh have found in the Chesapeake." The second important occupation for black women was domestic labor. Beckles' finding that women comprised the majority of the white population in Barbados accentuates the significance of such work. About one-quarter of slaves in Barbados were employed in the domestic service. As he notes, domestics received the highest material rewards, social status and human rights. At the same time domestics had little additional value and but faint hopes for manumission. Nannies were expected to be pro-slavery and educate their children to support the institution. Beckles emphasizes the immense variety of human experience for domestics and argues that sexual liaisons with white masters were among the most reliable forms of mobility. Using the Elizabeth Fenwick diary, Beckles illuminates the psychological warfare between mistress and slave. Poisoning was a common form of retaliation for frequent use of the lash.

Chicago Citations

Bibliography entry:

Hodges, Graham Russell Gao. *Slavery, Freedom, and Culture among Early American Workers*. Armonk, NY: M. E. Sharpe, 1998.

Footnote citation:

Graham Russell Gao Hodges, *Slavery, Freedom, and Culture among Early American Workers* (Armonk, NY: M. E. Sharpe, 1998), supplied PDF pages 108-109.

Shortened citation:

Hodges, *Slavery, Freedom, and Culture among Early American Workers*, supplied PDF pages 108-109.

CHAPTER 10 · SECONDARY SOURCE S10.10

Andrew Jackson, Southerner

Mark R. Cheathem

WORK	Andrew Jackson, Southerner
SELECTION	Introduction
SOURCE LOCATOR	supplied PDF pages 23-24 · Louisiana State University Press, 2013.

Excerpt

Latner, whose study of Jackson's presidency explicitly linked Old Hickory to the West, acknowledged that "one would be hard-pressed... to fit slaveholding, tough-minded politicians like Jackson... into Turner's conception of western democratic idealism," yet he failed to elucidate from where Old Hickory's views on slavery originated and how they influenced his political decisions.? }; More recent scholarship has also failed to explain how Jackson assumed the characteristics of the southern gentry. Lorman Ratner's compendium of short biographical sketches of Jackson and his closest allies offered a promising argument that the Tennessean emulated a Scottish thane, or clan leader, as he entered the gentry, but his analysis was brief and superficial. Along similar lines Andrew Burstein's study of Jackson's passions also centered on his relationship with the men with whom he surrounded himself, but his analysis was informed by literary theory and did not concern itself with southern cultural practices such as kinship and slaveholding. Likewise, Jon Meacham's Pulitzer Prize-winning biography of Jackson as president failed to place Old Hickory's outsized character in a social context that made him understandable. The two most recent surveys of the Jacksonian period fell into the same pattern of skimming over Jackson's transformation into a southern planter. Sean Wilentz's mammoth survey of American democracy in the early republic paid scant attention to Jackson's slaveholding and land speculation, both of which marked his entry into the planter class. While recognizing the importance of slavery to Jacksonian Democrats, Daniel Walker Howe's equally behemoth examination of the Jacksonian period treated Jackson's southern identity with similar brevity.' There have been notable exceptions to the above trend. Robert Remini's three-volume biography discussed extensively Jackson's various business dealings, including land speculation and slaveholding, but that information was secondary to the frontier's influence on Old Hickory. William J. Cooper Jr. clearly elucidated Jackson's importance to southern politics, while Bertram WyattBrown brilliantly explained his embodiment of southern honor. More recently, Bettina Drew's unpublished dissertation examined "Master Andrew Jackson" and the influence of his southern identity on his removal of the southeastern Indians, Matthew Warshauer offered an overview of Jackson as a chivalric slave owner, and Hendrik Booraem's study of Jackson's early life made a convincing case that he had been exposed to, and influenced by, the southern gentry in the Carolinas.* Although most scholars describe Old Hickory as a westerner, as representative of the trans-Appalachian frontier, Jackson was truly a southerner. He was born and raised in the Waxhaws region of the most southern of states, South Carolina, where he learned that the path to success included building an influential social network, choosing a career in law, and acquiring land and slave property. In Tennessee, Jackson worked toward becoming a southern planter and gentleman, although his enemies would have disputed the latter. His desire to live as part of the gentry was ever present, even as he defeated the British at New Orleans in 1815, ascended to the presidency in 1828, and built the Democratic party in the 1830s and 1840s. Jackson's propensity toward violence, defense of honor, enslavement of African Americans, embrace of kinship, and pursuit of Manifest Destiny created a southern identity to which many contemporary white southerners, elite and nonelite, could relate. One of the greatest ironies of Jackson's life was that his identification with the South laid the foundation for the Civil War. Even though the idea of Indian removal preceded him, his actions as general and president accelerated the process, opening up southeastern lands to white settlers intent on making money from cotton. Jackson opposed disunion in 1832 and 1833, yet his longtime pursuit and support of Manifest Destiny helped drive a wedge between northerners and southerners and exacerbated the slavery debate. He supported the annexation of Texas, which, when accomplished, set off a chain of events that made slavery the crucial issue in the congressional debates over westward expansion and led to the nation's division. Although Jackson died without witnessing the bloody conflict that began in 1861, his influence as the "patriot slaveholder" was obvious during the secession crisis of 1860-1861. Both northerners and southerners appealed to his example to make the case for and against secession. Abraham Lincoln's first inaugural address drew on Jackson's 1832 Nullification Proclamation, which denied South Carolina's right to nullify federal law and dismember the Union, to argue that "the central idea of secession is the essence of anarchy." In the end Old Hickory not only helped create the South that precipitated the nation's greatest crisis, but he also provided the model for Lincoln's opposition to the Confederacy's formation.°

Chicago Citations

Bibliography entry:

Cheathem, Mark R. *Andrew Jackson, Southerner*. Southern Biography Series. Baton Rouge: Louisiana State University Press, 2013.

Footnote citation:

Mark R. Cheathem, *Andrew Jackson, Southerner* (Southern Biography Series. Baton Rouge: Louisiana State University Press, 2013), supplied PDF pages 23-24.

Shortened citation:

Cheathem, *Andrew Jackson, Southerner*, supplied PDF pages 23-24.

CHAPTER 10 · SECONDARY SOURCE S10.11

Slavery and the Democratic Conscience: Political Life in Jeffersonian America

Padraig Riley

WORK	Slavery and the Democratic Conscience: Political Life in Jeffersonian America
SELECTION	Philadelphia, Crossroads of Democracy
SOURCE LOCATOR	Original pages 70–71 · University of Pennsylvania Press, 2016.

Excerpt

How to reconcile the two Branagans? One was an idiosyncratic antislavery radical; the other, in many ways, was in the vanguard of northern racism. One Branagan argued for human equality and formed ties to men like James Forten; the other claimed that free black men were merely "up-start gentlemen" on the lookout for white wives. Such men contributed nothing to the United States; their race and their history of enslavement, not their standing or character, determined whether they could belong to the American polity.[40]

In the work of historian Gary Nash, Branagan reflects the rise of racism in Pennsylvania. Throughout the early national period, many whites who had once opposed slavery embraced racial exclusion. In Philadelphia, this played out in the most practical of ways, as whites forcibly excluded blacks from July Fourth celebrations in the city, enacting the racial limits of their vision of democracy. In 1813, a Jeffersonian Republican named Jacob Mitchell proposed legislation in the Pennsylvania state legislature that would both bar all black in-migration and compel all current black residents to carry a certificate proving their free status. Philadelphia petitioners also demanded that in case of certain crimes, black men and women should be indentured for a term of years to compensate their victims. James Forten fought to keep Mitchell's proposal from becoming law, appealing to white Pennsylvanians to honor the universalism of the founding principles of the United States and their own state, and protect equality before the law for all citizens, black and white. Mitchell's bill did not pass, but in many ways the tide was turning against Forten. In the early 1820s, Philadelphia Federalist Samuel Breck was liberal enough to meet Forten in the street and shake his hand ("knowing his respectability," said Breck, though he mistook his name); Forten informed Breck that he had brought fifteen of his white journeymen to the polls to vote for Breck in a recent congressional election. Yet Forten himself did not vote, as Breck noted that black citizens "never presume to approach the hustings" at election time, since they were kept from the polls—as well as juries and militia musters—by "custom, prejudice or design." These informal practices foreshadowed later attempts to formally exclude African Americans from the franchise and define full political citizenship as the exclusive prerogative of white men.[41]

Thomas Branagan experienced this democratic culture in formation, and did not appear to question it: in his mind, embracing democracy in Philadelphia entailed embracing racism. He intended Serious Remonstrances to be a popular work, written for the "the honest farmer and industrious mechanic"; the essay was filled with denunciations of the idle rich in the North and the slaveholding elite in the South. He adopted a Paineite vision of the United States, but one now deeply modified by race: "America," he believed, "was appropriated by the Lord of the universe to be an asylum for the oppressed, the injured sons of Europe." Maintaining that vision required colonization of free blacks, lest the "injured sons of Europe," on arrival in the United States, be compelled "to associate with negroes, take them for companions, and what is much worse, be thrown out of work and precluded from getting employ to keep vacancies for blacks."[42] In other words, American citizenship was meant for white men.

Historians of whiteness have argued that white supremacy enabled immigrants in the antebellum period, especially the Irish, to separate themselves from slaves and free blacks and claim belonging as Americans in the face of nativist xenophobia. White supremacy also helped secure the consent of nonslaveholders to the coercive power that masters wielded over enslaved people.[43] Focusing primarily on Jacksonian democracy, accounts of whiteness have

underscored the prevalence of race and racial exclusion in American political culture. But such accounts do not fully capture the political and ideological transactions that led democratic radicals like William Duane and Thomas Branagan to embrace slaveholders as political allies in the early national period. Transnational republicans arriving in the United States found that they had to "associate," not only with black men and women, but with slaveholders, who were a dominant presence in the early Republican coalition. Immigrant radicals did not immediately condone political alliance with slaveholders on the terms of white supremacy. Instead, they recast universal democratic principles in terms of American nationalism and partisan politics. Doing so entailed some toleration of slaveholder power, especially for immigrants who became significant members of the Jeffersonian coalition. That political encounter with slavery ultimately rendered democratic radicalism more amenable to white supremacy, as repeated accommodation of coercive power impaired egalitarian commitments.

Author's Notes

40. Branagan, Serious Remonstrances, 70–71.

41. Nash, Forging Freedom, 177–82; Gary Nash, The Forgotten Fifth: African Americans in the Age of Revolution (Cambridge, Mass.: Harvard University Press, 2006), 141–42; Nash, "Race and Citizenship in the Early Republic," in Antislavery and Abolition in Philadelphia: Emancipation and the Long Struggle for Racial Justice in the City of Brotherly Love, ed. Richard Newman and James Mueller (Baton Rouge: Louisiana State University Press, 2011), 90–117; Julie Winch, A Gentleman of Color: The Life of James Forten (New York: Oxford University Press, 2003), 169–74; James Forten, "Letters From a Man of Colour," in Early American Abolitionists: A Collection of 298 order to vote. Presumably, this new law may have required some African Americans to obtain yet another certificate in order to prove free status. See Olbrich, Negro Suffrage, 30; Laws of the State of New York, Passed at the Thirty-Fourth Session of the Legislature… (New York: S. Southwick, 1811), 370–74; Laws of the State of New York, Passed at the Thirty-Seventh Session of the Legislature (New York: H.C. Southwick, 1814), 94–95. Examples of these certificates of freedom can be found in "BV-New York City Indentures," Box 2, NYHS.

42. Branagan, Serious Remonstrances, 79.

43. Key works on whiteness include Alexander Saxton, The Rise and Fall of the White Republic: Class Politics and Mass Culture in Nineteenth Century America (London: Verso, 1990); David Roediger, The Wages of Whiteness: Race and the Making of the American Working Class (London: Verso, 1991); Noel Ignatiev, How the Irish Became White (New York: Routledge, 1995); Theodore Allen, The Invention of the White Race (London: Verso, 1994); Matthew Frye Jacobson, Whiteness of a Different Color: European Immigrants and the Alchemy of Race (Cambridge, Mass.: Harvard University Press, 1998). For two critical reviews, see Eric Arnesen, "Whiteness and the Historians' Imagination," International Labor and Working-Class History 60 (Fall 2001): 3–32 and Peter Kolchin, "Whiteness Studies: The New History of Race in America," JAH 89, 1 (June 2002): 154–73.

Chicago Citations

Bibliography entry:

Riley, Padraig. *Slavery and the Democratic Conscience: Political Life in Jeffersonian America*. Philadelphia: University of Pennsylvania Press, 2016.

Footnote citation:

Padraig Riley, *Slavery and the Democratic Conscience: Political Life in Jeffersonian America* (Philadelphia: University of Pennsylvania Press, 2016), 70–71.

Shortened citation:

Riley, *Slavery and the Democratic Conscience*, 70–71.

CHAPTER 10 · SECONDARY SOURCE S10.12

The Market Revolution: Jacksonian America, 1815-1846

Charles Sellers

WORK	The Market Revolution: Jacksonian America, 1815-1846
SELECTION	Millennial Democracy
SOURCE LOCATOR	Original pages 331 · Oxford University Press, 1991.

Excerpt

Powerful class forces compromised Jackson's effort to crush definitively, in its initial eruption around Charleston harbor, the planter chauvinism that eventually reerupted there to rend the Union. By coalescing on the Compromise Tariff, planter capital and commercial/industrial capital were able to submerge their differences in a "Whig" opposition to the Jacksonian tyranny of their common foe democracy. Clay's brokerage saved Calhoun's nullifiers politically. By claiming credit for tariff reform, they tightened their grip on South Carolina and even imposed an oath of primary loyalty to the state that barred their unionist foes from office. With nullification totally repudiated elsewhere, north and south, Carolina's fireating gentry launched a prolonged agitation to excite other southern whites into proslavery secession. Yet it is hard to imagine a President who could have mobilized greater political strength against nullification than Old Hickory. Understanding that a democratic Union was at stake, he linked democracy indissolubly with American nationalism. His democratic unionism held a fracturing republic together for another thirty years before drowning slavery in fratricidal blood. By March 4, 1833, when the people's President again took the constitutional oath from Chief Justice Marshall, he had executed his popular mandate by stopping progressive capital's ambitious developmental program in its tracks. Blocking a national transportation system, retreating from protectionism, and consolidating an insurgent majority against the Monster Bank, he gave such satisfaction that every President since has had to run the gauntlet of a mass electorate. Asserting premarket values against all respectable opinion, Jackson mustered democracy to defend patriarchal independence, equality, and therefore honor, against an activist capitalist state.

Chicago Citations

Bibliography entry:

Sellers, Charles. *The Market Revolution: Jacksonian America, 1815-1846*. New York: Oxford University Press, 1991.

Footnote citation:

Charles Sellers, *The Market Revolution: Jacksonian America, 1815-1846* (New York: Oxford University Press, 1991), 331.

Shortened citation:

Sellers, *The Market Revolution*, 331.

CHAPTER 10 · SECONDARY SOURCE S10.13

Banks and Politics in America from the Revolution to the Civil War

Bray Hammond

WORK	Banks and Politics in America from the Revolution to the Civil War
SELECTION	Jacksonian Capitalism
SOURCE LOCATOR	Original pages 348–349 · Princeton University Press, 1957.

Excerpt

"Andrew Jackson was on the side of the capitalists," writes Mr Marquis James of his earlier career. "His first case in Nashville in 1788 had landed him as champion of the creditors against the debtors. Jackson desired wealth." He had been opposed to western relief measures taken on behalf of debtors in the ten years preceding his election to the Presidency. They were wicked, pernicious, profligate, and unconstitutional. Opinions like this put him logically on the side of the Bank of the United States, which was the pivotal creditor, and opposed him to the banks made of paper, such as the Bank of the Commonwealth of Kentucky, over which his kitchen adviser, Francis Preston Blair, had presided. But solecisms embarrassed the General very little. On the frontier more than elsewhere, the modification of an agrarian economy into an industrial and financial one was such, in William Lyon Mackenzie's words, as to "make speculation as extensive as life, and transform a Jeffersonian democracy into a nation of gamesters and our land into one great gaming house where all are forced to play, while but few can understand the game." General Jackson's prejudices were stronger than his convictions, and he was himself among the least consistent and stable of the J acksonians. "Not only was Jackson not a consistent politician," says Professor Thomas P. Abernethy, "he was not even a real leader of democracy. He had no part whatever in the promotion of the liberal movement which was progressing in his own sWe.... He was a self-made man... he always believed in making the public serve the ends of the politician. Democracy was good talk with which to win the favor of the people and thereby accomplish ulterior objectives. Jackson never really championed the cause of the people; he only invited them to champion his. He was not consciously hypocritical in this. It was merely the usual way of doing business in these primitive and ingenuous times." Of his election to the Presidency Professor Richard Hofstadter writcs that it was not "a mandate for economic reform; no financial changes, no crusades against the national Bank, were promised.... Up to the time of his inauguration Jackson had contributed neither a thought nor a deed to the democratic movement, and he was elected without a platform.""

Chicago Citations

Bibliography entry:

Hammond, Bray. *Banks and Politics in America from the Revolution to the Civil War*. Princeton, NJ: Princeton University Press, 1957.

Footnote citation:

Bray Hammond, *Banks and Politics in America from the Revolution to the Civil War* (Princeton, NJ: Princeton University Press, 1957), 348–349.

Shortened citation:

Hammond, *Banks and Politics in America from the Revolution to the Civil War*, 348–349.

CHAPTER 10 · SECONDARY SOURCE S10.14

Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America

Harry L. Watson

WORK	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America
SELECTION	Introduction
SOURCE LOCATOR	Original pages 4–5 · Bedford/St. Martin's, 1998.

Excerpt

Andrew Jackson's career was quite different. Though he too had dabbled in legislative politics, Jackson built his fame as a powerful general who triumphed over "savage" Indians and seasoned British veterans alike. While Clay was famous for negotiation and compromise, Jackson gave commands and backed them with force. While Clay was the ultimate Washington insider, Jackson posed as the outsider on horseback whose strong will and political independence gave him the moral authority to lead the nation. Jacksonians tended to think that Henry Clay could destroy the republic by giving in to corruption, while Clay supporters felt that Jackson could do the same thing by unleashing a military despotism. In short, each man's supporters thought him ideal for the presidency precisely because they saw him as radically different from his opponent.

Clay's and Jackson's disagreements over democracy and development were intimately connected to other American disputes, especially those connected with slavery and geographical expansion. Cotton grown by slaves was the most valuable export of the antebellum United States, and factories for spinning and weaving it were among the most important fruits of economic development. Growth of the textile industry led to geographical expansion, as southerners pressed for more lands suitable for growing cotton with slave labor. The pressure for more slave territory brought southerners into conflict with antislavery northerners and touched off furious conflicts that the political party system of Clay and Jackson could hardly mediate.

Slavery was obviously connected to the issue of race, and both were directly linked to the question of democracy. For centuries, white Americans had used the color of Africans as a badge of enslavement. By the beginning of the nineteenth century, they were also accustomed to regard blackness as a mark of moral and intellectual inferiority, as a justification for enslavement, and as an excuse for numerous other forms of racial discrimination. Most American states did not permit African American men to vote, for example, even when they were not slaves. Whites who demanded their own political rights often appeared to think that political equality was the most fitting barrier between black and white. In effect, democracy itself became an aspect of racial identity." The same set of issues had a deep impact on Native Americans. While whites did not usually enslave Indians in the nineteenth century, they included them in some of the same color prejudices they felt about Africans. The assumption that Indians could never share equal rights with white people encouraged white Americans to call for the seizure of Indian lands. Native Americans in the southern states owned excellent cotton territory through the 1830s, and the pressures of economic expansionism, racial inequality, and democratic (or demagogic) politics fed powerful popular demands for their expropriation. Andrew Jackson was the primary leader of this movement, and his campaign for Indian removal tied the movements for economic development, territorial expansion, racial discrimination, white democracy, and the spread of slavery tightly together.

With the partial exception of Indian removal, however, the questions of race and expansion were not central to the dispute between Andrew Jackson and Henry Clay. The two men clashed instead over tamer matters like taxes, public works, and above all, banking policy. Unlike slavery, these seemingly mundane questions were not too explosive to address in national political circles. Unlike geographical expansion and racial prejudice, they were controversial enough to create lasting political divisions.

In complex ways that I hope to explain in this book, they were also deeply important to antebellum white Americans. While the issues of slavery, racism, and conquest were also deeply important to these Americans, they did not form the cornerstone of contemporary debate because politicians worked hard to keep them at the margins of political discourse.

Eventually, particularly in the 1850s, the issues of Jacksonian debate were at least partially resolved, and the hidden questions of slavery and expansion pushed forward almost unavoidably. When they did so, the party structures created by men like Clay and Jackson collapsed, and civil war soon followed. The political creations of Clay and J ackson continued to be important in the crises over secession and war, however, because these structures had so long shaped the ways that Americans thought and acted about the matters most important to their public life.

Chicago Citations

Bibliography entry:

Watson, Harry L. *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America*. Boston: Bedford/St. Martin's, 1998.

Footnote citation:

Harry L. Watson, *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America* (Boston: Bedford/St. Martin's, 1998), 4–5.

Shortened citation:

Watson, *Andrew Jackson vs. Henry Clay*, 4–5.

CHAPTER 10 · SECONDARY SOURCE S10.15

Liberty and Power: The Politics of Jacksonian America

Harry L. Watson

WORK	Liberty and Power: The Politics of Jacksonian America
SELECTION	Liberty and Power
SOURCE LOCATOR	Original pages 168–169 · Hill and Wang, 1990.

Excerpt

An all-metallic currency would help, since it would strip the banks of their power to control the economy as a whole by manipulating the value of paper money. Even more important, equality and majority rule would also operate in favor of liberty. “Never for a moment believe that the great body of the citizens… can deliberately intend to do wrong,” Jackson declared. But in the end, nothing could stave off corruption but watchfulness and virtue. “‘You must remember, my fellow citizens, that eternal vigilance by the people is the price of liberty.” Unhappily, even this resource was vulnerable. Experience in the Presidency had shown Jackson that many Americans actually wanted the new society with its material benefits, even at the cost of deviations from what he regarded as the true republican faith. Ultimately, even the people were corruptible. “It is from within, among yourselves—from cupidity, from corruption, from disappointed ambition and inordinate thirst for power—that factions will be formed and liberty endangered.”

At the pinnacle of republican success, it seemed, liberty was still in danger. Eight years under Andrew Jackson had not been enough to make it forever safe, for the spirit of corruption was unsleeping and the people themselves were the ultimate source of the threat. In his closing warning, Jackson suggested that even the people were fallible, that they must constantly be reminded of their duties and their destiny lest they forget their sacred trust. Jackson, did not say who would offer the necessary reminders in his absence, but he clearly hoped that the memory of his parting words would help. Beyond that, his other writings clearly indicated his hope that the Democratic Party might succeed where the people themselves could fail, in keeping alive the spirit of the old Republic.

Andrew Jackson thus ended his Presidency as he had begun it, on a note of ambiguity. But while he had entered the White House with an unspecified plan of “reform,” he left it with a clear designation of the paths to salvation and destruction. To save itself, America must preserve the Constitution and a flexible but unbreakable Union based on equal tolerance for freedom and slavery. Rather than respond to Jefferson’s firebell in the night, the Republic must grapple with other enemies, As of old, liberty was in danger from power, and virtue was prey to corruption. But the locus of concentrated power was not King George, it was “the great moneyed corporations,” and the other agents of commerce, industry, and the international market economy. These were the sources of corruption that could overcome the Republic. Jackson had not succeeded in destroying these “monsters,’” but he promised a victory if every American citizen were treated with absolute equality. Elsewhere, he had called equality of legal rights “the great radical principle of freedom,” and he insisted on its importance in all his major state papers. Equality would mean that the enemies of republican society could not obtain the help they needed from government and would therefore be doomed to perish.

As expressed in the Farewell Address and other major documents, Jackson’s economic vision is open to a number of cogent objections. Jackson himself was a rich man, and some Jacksonians in state politics were closely connected to banks, transportation companies, and the other “monsters” that party orators denounced. From this perspective, Democratic slogans pitting the poor against the rich have a hollow ring. Jackson’s favored panaceas also seem completely inadequate to his professed goals; in hindsight, the destruction of the B.U.S. and the promotion of hard currency look like very feeble weapons against the gathered forces of revolution in transportation, commerce, and

industry. Even the withdrawal of ali "privileges," or government encouragement to economic development, seems insufficient to have staved off change for long. Even if we concede their sincerity, the Jacksonians' obsession with monsters, conspiracies, and cure-all solutions seems so unrealistic that we are tempted to dismiss them as hopelessly neurotic or simple-minded. Finally, we who live in a world the Jacksonians fought to prevent may find it hard to believe that the battle was really worthwhile. "'You can't fight progress,"' we are inclined to say, and from our perspective, banks and internal improvements were indisputably progressive and much more compatible with true democracy than the slave plantation that Andrew Jackson owned and lived on.

Chicago Citations

Bibliography entry:

Watson, Harry L. *Liberty and Power: The Politics of Jacksonian America*. Updated ed. New York: Hill and Wang, 2006.

Footnote citation:

Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (Updated ed. New York: Hill and Wang, 2006), 168–169.

Shortened citation:

Watson, *Liberty and Power*, 168–169.

CHAPTER 10 · SECONDARY SOURCE S10.16

The American Political Tradition and the Men Who Made It

Richard Hofstadter

WORK	The American Political Tradition and the Men Who Made It
SELECTION	Andrew Jackson and the Rise of Liberal Capitalism 7
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · Alfred A. Knopf, 1948.

Excerpt

President, a man of monumental rectitude but a career politician of the dying order par excellence, was hounded by the corrupt-bargain charge and subjected by the Jackson professionals to a skillful campaign of vilification, which culminated in the election of 1828. In Jackson's second presidential campaign the bank was hardly mentioned. The tariff was played for what it was worth where men cared especially about it; but a series of demagogic charges about Adams's alleged monarchist, aristocratic, and bureaucratic prejudices served the Jackson managers for issues.

The election of 1828 was not an uprising of the West against the East nor a triumph of the frontier: outside of New England and its colonized areas in the West, Federalist Delaware, New Jersey, and Maryland, Jackson swept the form; no financial changes, no crusades against the national bank, were promised. The main themes of Jacksonian democracy thus far were militant nationalism and equal accause of the rise of democracy, and the "revolution of 1828" more an overturn of personnel than of ideas or programs. Up to the time of his inauguration Jackson had contributed neither a thought nor a deed to the democratic movement, and he was elected without a platform. So far as he can be said to have had a popular mandate, it was to be different from what the people imagined Adams had been and to give expression to their unformulated wishes and aspirations. This mandate Jackson was prepared to obey. Democrat and aristocrat, failure and success, debtor and creditor, he had had a varied and uneven history, which made it possible for him to see public questions from more than one perspective. He was a simple, emotional, and unreflective man with supporters; he swung to the democratic camp when the democratic camp swung to him.

Chicago Citations

Bibliography entry:

Hofstadter, Richard. *The American Political Tradition and the Men Who Made It*. New York: Alfred A. Knopf, 1948.

Footnote citation:

Richard Hofstadter, *The American Political Tradition and the Men Who Made It* (New York: Alfred A. Knopf, 1948), no stable fixed page labels in supplied edition.

Shortened citation:

Hofstadter, *The American Political Tradition and the Men Who Made It*, no stable fixed page labels in supplied edition.

CHAPTER 10 · SECONDARY SOURCE S10.17

Clashing over Commerce: A History of US Trade Policy

Douglas A. Irwin

WORK	Clashing over Commerce: A History of US Trade Policy
SELECTION	The Tariff Debate
SOURCE LOCATOR	Original pages 130–131 · University of Chicago Press, 2017.

Excerpt

The South resisted the effort to enact higher tariffs. Their representatives complained that the tariff increased the price of imported goods that the South consumed, reducing their standard of living. Furthermore, by reducing imports, higher tariffs would translate into lower foreign demand for exports, most of which came from the South. Therefore, high import tariffs would put a heavy economic burden on the South by reducing its exports and increasing the price of the imports it consumed. The mercurial John Randolph of Virginia denounced tariffs as an artifi cial way of promoting northern industry at the expense of southern agriculture. He suggested that the issue came down to this: whether you, as a planter will consent to be taxed, in order to hire another man to go to work in a shoemaker's shop, or to set up a spinning jenny. For my part I will not agree to it,... I will not agree to lay a duty on the cultivators of the soil to encourage exotic manufactures; because, after all, we should only get much worse things at a much higher price.... Why pay a man much more than the value for it, to work up our own cotton into clothing, when, by selling my raw material, I can get my clothing much better and cheaper from Dacca [India].... I am convinced that it would be impolitic, as well as unjust, to aggravate the burdens of the people for the purpose of favoring the manufacturers.[9]

But after the tumultuous experience of the past decade, even southern representatives could not oppose a moderately protective tariff. This acceptance did not refl ect any warm feelings for northern manufacturers, but arose from a strong sense of nationalism and concern for the country's defense. The lack of domestic supplies of important materiel had hampered the recent war effort. John Calhoun of South Carolina, later a fi erce tariff critic, supported the 1816 tariff bill because the issue of protection was "connected with the security of the country."[10] The House passed the bill in April 1816 by a vote of 88– 54. The Senate quickly followed, and Madison signed the measure later in the month. Most of New England's representatives voted in favor of the higher duties; with small cotton textile fi rms having sprouted up in the region, it was no longer dominated by merchant and shipping interests, as it had been a decade earlier. The Mid- Atlantic states, led by Pennsylvania, strongly supported the bill because many iron and glass producers were located there and faced competition from imports. The South was split but slightly more unfavorable to the legislation. It did not favor the higher tariffs as a general matter and had supported failed amendments to reduce the tariff on cotton and woolen manufactures to 20 percent. At the same time, anti- British sentiment was very strong in the South, and the fear of another war convinced members from the region that the protection of new manufacturers was necessary. These concerns about national defense were decisive in ensuring support for the tariff in the South, whose votes were critical for the legislation's passage. In a sign of the battles to come, however, representatives from the South also made clear their opposition to any additional protection to industry.[11]

The Tariff of 1816 was the fi rst "protectionist" tariff of the United States in the sense that it was mainly designed to provide assistance to domestic manufacturers facing foreign competition. Given Madison's opposition to Hamilton's Report on Manufactures in the 1790s, it is ironic that his administration helped institutionalize government support for manufacturing by imposing high duties on imports.[12] However, the federal government never had a conscious policy of starting "infant industries." Rather, those industries emerged as a by- product of the trade interruptions and then pressured Congress to protect them from foreign competition. The direction of causality is important: Congress

did not deliberately create the infant industries through policy measures; the industries emerged and then compelled Congress to enact higher tariffs for their benefi t. In other words, Congress was not farsighted in shaping the future path of the economy but simply reacted to the political pressures that it faced.

The period after the War of 1812 saw the emergence of two important sectors of the economy: cotton in the South and cotton textiles in the North. While cotton producers were dependent on exports, the cotton textile industry faced competition from imports. As a result, the two regions of the country developed strongly opposing interests with respect to trade. The coming battles over US trade policy would pit manufacturers in the North against agricultural exporters in the South for many decades to come.

Author's Notes

9. AC, 1/16/1816, 687.

10. AC, 4/4/1816, 1330.

11. On the South's support for the bill, see Preyer 1959.

12. In 1832, Madison wrote that he still believed in free trade "as a theoretic rule, and subject to exceptions only not inconsistent with the principle of it," but that "theories are the offspring of the closet; exceptions to them, the lessons of experience." LJM 4:259.

Chicago Citations

Bibliography entry:

Irwin, Douglas A. *Clashing over Commerce: A History of US Trade Policy*. Chicago: University of Chicago Press, 2017.

Footnote citation:

Douglas A. Irwin, *Clashing over Commerce: A History of US Trade Policy* (Chicago: University of Chicago Press, 2017), 130–131.

Shortened citation:

Irwin, *Clashing over Commerce*, 130–131.

CHAPTER 10 · SECONDARY SOURCE S10.18

The Tariff History of the United States

F. W. Taussig

WORK	The Tariff History of the United States
SELECTION	The Tariff-1830-1860 • 109-154
SOURCE LOCATOR	Original pages 117–118 · 6th ed. New York: G. P. Putnam's Sons, 1910.

Excerpt

IV., p. 174). No doubt the high duties were one cause of the government surplus, and thereby aided in bringing about the crisis, so that this view, incomplete as it is, has more foundation than Carey's explanation.

1833 had any thing to do with the troubles of the years following its passage (" Works, " II., pp. 530, 531; edition of 1844). seen, were slight until 1840, and could hardly have influenced in anydegree the breaking out of the panics. Even if the reductions of duty had been greater, and had been made earlier, they would probably have had no effect, favorable or unfavorable, on the inflation of the earlier years or on the depression which followed.

We may dispose at this point of a similar assertion occasionally made in regard to the crisis of 1857, that the tariff act of 1857 caused or intensified it. This view also is traceable, probably, to Carey. It appears in his writings and in those of his disciples. In fact, the crisis of 1857 was an unusually simple case of activity, speculation, over-banking, panic, and depression; and it requires the exercise of great ingenuity to connect it in any way with the tariff act. As it happened, indeed, the tariff was passed with some hope that it would serve to prevent the crisis. Money was accumulating in the Treasury; and it was hoped that by reducing duties the revenue would be diminished, money would be got out of the Treasury, and the stringency, which was already threatening, prevented."

Chicago Citations

Bibliography entry:

Taussig, F. W. *The Tariff History of the United States*. 6th ed. New York: G. P. Putnam's Sons, 1910.

Footnote citation:

F. W. Taussig, *The Tariff History of the United States* (6th ed. New York: G. P. Putnam's Sons, 1910), 117–118.

Shortened citation:

Taussig, *The Tariff History of the United States*, 117–118.

CHAPTER 10 · SECONDARY SOURCE S10.19

Olive Branch and Sword: The Compromise of 1833

Merrill D. Peterson

WORK	Olive Branch and Sword: The Compromise of 1833
SELECTION	Olive Branch and Sword
SOURCE LOCATOR	supplied PDF pages 99-100 · Louisiana State University Press, 1982.

Excerpt

Calhoun continued to oppose distribution; with most southern and western senators he voted against the bill. Clay, although he underscored the relationship between the two measures, also stated he did not consider them so far united as to stand or fall together. No significant correlations are revealed by the votes on the two bills in either house. The lower house passed the Land Bill, amended, near midnight on March 1, with one-third of the members absent and little more than twenty-four hours remaining to the Twenty-second Congress. (March 3, normally the final day, fell on Sunday.) The Senate hurriedly concurred, sent the bill to the president, and stayed in session until the sun rose in order to respond promptly to the veto many anticipated. But the bill was not returned. Neither was it signed. Jackson resorted to a pocket veto. When this became known, he was charged in some quarters, northern and southern, with deliberately upsetting the compromise. Clay, although angered by the veto, never took this view, not even after John M. Clayton made it part of his personal and partisan history of the compromise.

Who voted to extend the olive branch and who the sword? Usually they were not the same persons. Of 188 reresentatives whose votes were recorded on both tariff and enforcement bills, 114 voted in opposite ways: 43 for the former but against the latter, 71 against the former but for the latter. The grand compromise was passed not by men like Letcher, Clayton, Grundy, and Rives, who accepted the full responsibility by supporting both measures, but by men like Tyler and Webster, who did not accept the package but whose converse yea and nay votes led to its adoption. Paradoxically, compromise prevailed by mutual antagonism to compromise. It prevailed though there was no majority for it, only for its separate measures. Clay had counted on this result; Calhoun had acquiesced in it.

The composite vote of the representatives and senators of the different sections was more or less as expected. The vote of the Northeast (above the Mason-Dixon Line) in the House was 26 to 71. (In the Senate it was 8 to 10.) Only seven congressmen from this section were recorded against the Force Bill. The South (including the Southwest, below the Ohio River) presented much the same division in reverse: 81 to 4 for Clay's bill, 43 to 39 for the Force Bill. The Northwest generally favored both measures, as did Kentucky, Tennessee, and Louisiana. Obviously, Clay failed to convince the congressmen of manufacturing states that his bill would preserve protection. Those of five states (Vermont, Massachusetts, Connecticut, Rhode Island, and New Jersey) voted unanimously against the Compromise Bill; so did all but four of Pennsylvania's twenty-six congressmen. The Clayton amendment secured very few protectionist votes for the bill—it apparently cost no votes on the other side—and although the five-to-one vote of the Clayton mess contributed to the winning margin in the Senate, the bill would surely have passed without it. Obviously, too, neither the Jackson administration nor the Jackson party aroused itself to enact the Compromise Bill. Some of the Van Buren cadre gracefully accepted defeat of the Verplanck bill and voted for Clay's. (The New York vote was 12 to 18.) Party affiliation, however, seems to have had little to do with the division in the Northeast or anywhere else.

The overwhelming southern support of the Compromise Bill reflected the opinion that it was, indeed, a great concession to the South, while the section's strong vote for the Force Bill pointed up the isolation of South Carolina, as well as the continuing popularity of Jackson despite the heresies of the proclamation. The Force Bill, with majority support in all sections, would have been enacted for patriotic reasons if no other, whether or not there was a

compromise tariff. That measure, however, could not have been enacted without the Force Bill. If Clay was the masterful strategist of the compromise, he was finally successful only because Jackson wielded the sword behind him.

Chicago Citations

Bibliography entry:

Peterson, Merrill D. *Olive Branch and Sword: The Compromise of 1833*. Baton Rouge: Louisiana State University Press, 1982.

Footnote citation:

Merrill D. Peterson, *Olive Branch and Sword: The Compromise of 1833* (Baton Rouge: Louisiana State University Press, 1982), supplied PDF pages 99-100.

Shortened citation:

Peterson, *Olive Branch and Sword*, supplied PDF pages 99-100.

CHAPTER 10 · SECONDARY SOURCE S10.20

The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina

Manisha Sinha

WORK	The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina
SELECTION	The Counterrevolution of Slavery
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of North Carolina Press, 2000.

Excerpt

Evans, J. R. Girardeau, J. S. Deas, and T. W. Glover organized protest meetings against the Woollens bill that were particularly solicitous of planter interests. Memorials from Barnwell, Kershaw, Edgefield, Fairfield, Orangeburg, Lancaster, Laurens, Marlborough, Newberry, Chesterfield, and St. Andrew's Parish to Congress in 1827 and 1828 testified to the unjust and unconstitutional nature of protective duties and called them a tax on planters' income. While many opposed the tariff, some leading planter politicians were also influenced by the proslavery and separatist logic of Cooper's and Turnbull's arguments. The Columbia memorial argued that "the benefit of the Union to this State is becoming more dubious and disputable," and the memorial from St. John's Colleton asked why should "the Southern Planter humbly kiss the rod which chastens him?" The Sumter meeting, led by Miller, future governor and nullifier, declared that neither the federal courts nor "the elective principle" could protect the rights of the slaveholding minority in this case. An antitariff gathering of St. Paul's Agricultural Society also warned that criticisms of slavery tended "to weaken the sacred tie which binds the states to the union." However, the Charleston Chamber of Commerce memorial sounded a cautionary note about "the growth of a spirit of disaffection, that may come to regard the federal charter with alienated feelings."?° the local level as well as the official course of the state. The state senate, under the leadership of such future nullifiers as John Ramsay, Miller, and Seabrook, presented an antitariff report and resolutions that recommended that the state should approach the federal government as a "SOVEREIGN" to demand the repeal of tariff laws. Moreover, it dragged in the question of slavery, stating that there could "be no reasoning, between South Carolina and any other government" on this subject. Carolinian slaves should not be able to look to any source of authority other than the state government. The report concluded that not just the tariffs but any scheme for emancipation and colonization was unconstitutional. The importance of this first wave of sectional agitation was emphasized by an early historian of nullification, David Franklin Houston, who argued that the "principles that were fought for in the Civil War were formally enunciated in South Carolina" in the 1820s.7! The joining of the questions of slavery and tariff in South Carolina prepared the ground for nullification.

Chicago Citations

Bibliography entry:

Sinha, Manisha. *The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina*. Chapel Hill: University of North Carolina Press, 2000.

Footnote citation:

Manisha Sinha, *The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina* (Chapel Hill: University of North Carolina Press, 2000), no stable fixed page labels in supplied edition.

Shortened citation:

Sinha, *The Counterrevolution of Slavery*, no stable fixed page labels in supplied edition.

CHAPTER 10 · SECONDARY SOURCE S10.21

Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836

William W. Freehling

WORK	Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836
SELECTION	Tariff and the Indirect Defense of Slavery
SOURCE LOCATOR	supplied PDF pages 205-206 · Harper & Row, 1966.

Excerpt

Webster answered his opponent by shifting the grounds of debate. Havne had opposed high payments for public lands partly because the receipts would give the federal government “a fund for corruption—fatal to the sovereignty and independence of the states.” To the great New England nationalist, Hayne’s words raised the specter of “Consolidation!—That perpetual cry, both of terror and delusion—consolidation!” Webster argued that federal appropriations were a source of improvement, not “a fund of corruption,” and painted glowing pictures of an active, beneficent national government.

Although the Carolinian gave a competent address on nullification, he made one serious error which demonstrated again Calhoun’s eign, could nullify federal law.

The nullifiers, he said, erred in thinking that the states were older than the Union. The American colonies had revolted from Lngratification of the Constitution. Bv consenting to the fundamental law, the people had divided sovereignty between the state and federal governments. The Constitution also proclaimed federal law supreme. The supremacy of federal law necessarily implied a Supreme Court with final constitutional jurisdiction. Therefore, concluded Webster, a state could neither nullify a federal law nor secede from the Union.

Webster’s oration. The New Englander’s prime contribution was to use Hayne’s advocacy of minority veto to weaken the South- West alliance which the Carolinian had initially tried to further. The West cared more for majority rule and for the federal Union than for cheap public lands.

The Hayne-Webster debate reveals the nullifiers at the crossroads. By continuing to work hopefully within the old system hounites obscured the necessity for immediate nullification. By supporting nullification, as in Hayne’s second oration, Calhounites weakened the possibility of achieving the victory within the majoritarian tradition. As the 1830 session progressed, Jackson’s stand on issues, Van Buren’s victory over Calhoun, the defeat of McDuffie’s tariff proposals, and the emergence of a Colonization Society bill all caused Carolina hotheads to turn decisively in the direction of minority veto.

Chicago Citations

Bibliography entry:

Freehling, William W. *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836*. New York: Harper & Row, 1966.

Footnote citation:

William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836* (New York: Harper & Row, 1966), supplied PDF pages 205-206.

Shortened citation:

Freehling, *Prelude to Civil War*, supplied PDF pages 205-206.

CHAPTER 10 · SECONDARY SOURCE S10.22

Olive Branch and Sword: The Compromise of 1833

Merrill D. Peterson

WORK	Olive Branch and Sword: The Compromise of 1833
SELECTION	Matrix
SOURCE LOCATOR	Original pages 1–2 · Louisiana State University Press, 1982.

Excerpt

On March 2,1833, amidst the deluge of legislation passed in the closing hours of the Twenty-second Congress, President Andrew Jackson signed into law two bills that ended the crisis of the Union provoked by South Carolina's nullification of the protective tariff just over three months before. The Compromise Tariff went some way toward meeting South Carolina's objections to protectionism by scheduling a gradual reduction of duties to the revenue level of 20 percent over a period of nine and one-half years. Although protectionist champion Henry Clay was its author, the chief of the Nullifiers, John C. Calhoun, nevertheless embraced it, and thus it had the character of a treaty of peace between opposing parties, policies, and interests. The other act, the Force Bill as it was called, authorized the president to employ the military, if necessary, to enforce the revenue laws and put down nullification in South Carolina. The two acts were, respectively, the olive branch and the sword of the great compromise that preserved the peace, the Constitution, and the Union in 1833.

The history of the American republic from the Revolution to the Civil War is punctuated by chapters of crisis and compromise. The Union itself was a compromise, like the Constitution, whose equivocal character—"partly national, partly federal" in the Madisonian formulation—seemed to require ongoing accommodation and compromise as the price of survival. The task of the second generation of American statesmen was markedly different from that of the founders—not of making a union and a constitution but of preserving them, not of securing liberty and self-government but of embellishing them. In a rapidly expanding and modernizing society the fulfillment of "this sacred trust" was beset with dangers both real and imaginary. The art of compromise became a conserving force, cushioning the shocks of change, mediating between reason and violence, vindicating institutions at the expense of interests or doctrines; and when this art failed, finally, the Union was dissolved. The story is familiar. Historians of the middle period have written exhaustively of the Missouri Compromise of 1820 and the Compromise of 1850. But they have said very little about the Compromise of 1833, midway between these two great landmarks. It has generally been treated, wearily, as the tail end of the nullification controversy; for some more recent students it has been obscured entirely by the pyrotechnics of the Jacksonian Bank War. The Compromise of 1833 merits attention, however, not only for its importance in the nation's political history but as a case study in the politics of compromise itself.

Compromise, by definition, involves the mutual concession of principle or policy or interest, or all together, between conflicting parties who discover they have more to gain than to lose by concessions. "The essence of politics is compromise," as Lord Macaulay remarked. But great compromise, as in the historic American Union, transcended ordinary politics and invites more particular analysis. Who were the parties to the Compromise of 1833? Who were its architects? Who were its beneficiaries? To these questions, as simple as they may seem, there are no simple answers.

What was being conceded by the two sides? The existing Tariff of 1832, prospectively, and the South Carolina ordinance nullifying it, immediately; but these were only the legislative expressions of a conflict of ideas and interests that were much too powerful to be contained by the exigencies of compromise.

Chicago Citations

Bibliography entry:

Peterson, Merrill D. *Olive Branch and Sword: The Compromise of 1833*. Baton Rouge: Louisiana State University Press, 1982.

Footnote citation:

Merrill D. Peterson, *Olive Branch and Sword: The Compromise of 1833* (Baton Rouge: Louisiana State University Press, 1982), 1–2.

Shortened citation:

Peterson, *Olive Branch and Sword*, 1–2.

CHAPTER 10 · SECONDARY SOURCE S10.23

Daniel Webster: The Man and His Time

Robert V. Remini

WORK	Daniel Webster: The Man and His Time
SELECTION	The Webster-Hayne Debate
SOURCE LOCATOR	supplied PDF pages 328-329 · W. W. Norton, 1997.

Excerpt

Secretary of State Van Buren and Vice President Calhoun. A factional split within the Democratic party could easily ensue unless Jackson did something to prevent it. To make matters worse, a constitutional crisis that threatened to topple the entire cabinet had developed over the summer. It started when the wives of the heads of the several departments, allegedly led by Mrs. Calhoun, refused to accept Peggy Eaton, the wife of John H. Eaton, the secretary of war, as a social equal because of her "tainted past."

Peggy's defense. He saw in her something of his deceased wife, Rachel, who had been cruelly slandered during the presidential campaign and died shortly thereafter. Furthermore, rumor had it that Van Buren encouraged Jackson into believing that Calhoun had initiated the assault on poor Peggy to gain political ascendancy within the administration.^ As far as Webster could tell. Van Buren had "quite the lead in influence and importance. He controls all the pages on the back stairs, and flatters what seems to be at present the Aaron's serpent among the President's desires, a settled purpose of making out the lady, of whom so much has been said, a person of reputation." The consequence of this dispute, he shrewdly observed, "is producing great political effects, and may very probably determine who shall be successor to the present chief magistrate."^ Calhoun's standing with Jackson took a really bad turn when another rumor credited him with composing the resolutions, recently adopted by the South Carolina legislature, that enunciated the doctrine of nullification, a doctrine Jackson found altogether pernicious and dangerous. More commonly known as safeguard to protect the states from the abuse of power by the national government. Calhoun argued the constitutional right of the state to nuUify federal sovereignty. To protect its citizens from the "tyranny of the majority," he contended, the state may "interpose" its authority and declare the offending federal execute its laws, then the state could rightfully secede from the Union. However, Calhoun had devised his theory of nullification to obviate the necessity of secession.

The Tariff of Abominations had provoked Calhoun into writing the Exposieveryone naturally assumed that he wished to placate South CaroHna by removing the abominations and bringing the tariff schedule back to a more moderate, "judicious" level. But the issue had become so pohtically sensitive that any mention of adjustment alerted and alarmed those with special interests to protect. Webster represented some of those interests, and after learning about Calhoun's "extraordinary" claims concerning the prerogatives of the states, he knew that somewhere down the Hne he would have to respond to them. He had already acquired a reputation as the "Great Expounder and Defender of the Constitution" who virtually provided the Supreme Court with all the basic arguments for its major decisions. Everyone therefore expected him to set Calhoun and the other nulHfiers straight about what the states and federal government could and could not do under the constitutional system.

Chicago Citations

Bibliography entry:

Remini, Robert V. *Daniel Webster: The Man and His Time*. New York: W. W. Norton, 1997.

Footnote citation:

Robert V. Remini, *Daniel Webster: The Man and His Time* (New York: W. W. Norton, 1997), supplied PDF pages 328-329.

Shortened citation:

Remini, *Daniel Webster*, supplied PDF pages 328-329.

CHAPTER 10 · SECONDARY SOURCE S10.24

Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836

William W. Freehling

WORK	Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836
SELECTION	Tariff and the Indirect Defense of Slavery
SOURCE LOCATOR	Original pages 170–171 · Harper & Row, 1966.

Excerpt

Union. Since a sovereign by definition had absolute authority, a.state should have had limitless authority to protect minorities in any way it liked without leaving the Union to do so. Yet unless and until the Union was dissolved, the secessionists' theory oF~ constitutional amendment gave minorities no check on the unlimited authority of a three-fourths majority. And unless the sovereign state opted for disunion, it could do no more than grovel portion of its constitution-making sovereignty when it delegated the power of constitutional amendment. In addition to dividing indivisible sovereignty, Calhoun un-, wittingly united his own irreconcilable opposites, sovereignty in enacting means of carrying out a decision—a sovereign nullifying convention would exercise governmental authority. The Nullification Ordinance of 1832 was no different from a Supreme ferent from a congressional law in its provisions for enforcing the judgment.

(in Calhoun's sense) became indistinguishable. Calhoun may have under a constitution, could change the fundamental text by constitutional construction. But he missed the equally obvious point that the sovereign which formed the constitution would exercise governmental power when it sat in judgment on alleged constitutional changes. By plunging his sovereign into government, Calhoun unintentionally established an American version of a Blackstonian despot. Calhoun had embraced Blackstone's concept of absolute sovereignty, but had rejected the Englishman's notion that sovereigns must govern. If governments became sovereign, constitutions would no longer protect minorities. Calhoun's sovereign convenwith the rest of the Union, a nullification convention could do no more than negate law. But insofar as the sovereign could govern, it was by definition absolute, and it was capable of repressing a dissenting minority within the state. In the end, the theory of nullification succeeded in establishing the majority despotism on the state level which it sought to destroy nationally.

Chicago Citations

Bibliography entry:

Freehling, William W. *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836*. New York: Harper & Row, 1966.

Footnote citation:

William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836* (New York: Harper & Row, 1966), 170–171.

Shortened citation:

Freehling, *Prelude to Civil War*, 170–171.

CHAPTER 10 · SECONDARY SOURCE S10.25

The Great Father: The United States Government and the American Indians

Francis Paul Prucha

WORK	The Great Father: The United States Government and the American Indians
SELECTION	Emigration of the Southern Tribes
SOURCE LOCATOR	supplied PDF pages 235-236 · University of Nebraska Press, 1984.

Excerpt

Then Andrew Jackson— a man of forthright views who did not hesitate to speak his mind and a man who had ample Indian experience to give weight to his utterances—became president of the United States. Jackson had early decided that it was farcical to treat with the Indian tribes as though they were sovereign and independent nations, and he could point to considerable evidence to show that treaties had never been a success. [19] Jackson himself had been a United States commissioner in drawing up treaties with the southern Indians. As his experience with the Indians In March 1817, while military commander in the South, he had complained to President Monroe about the absurdity of making treaties with the Indians, whom he considered subjects of the United States with no sovereignty of their own. Congress, Jackson maintained, had as much right to legislate for the Indians as for the people of the territories, and he strongly urged—for the good of the Indians, he insisted, as well as for the good of the nation— that Congress make use of this right to prescribe the Indian bounds and to occupy and possess parts of their lands when the safety, interest, or defense of the country should render it necessary.

Author's Notes

19. Jackson's relations with the Indians and his role in their removal from east of the Mississippi have been variously commented upon. Many historians have viewed his opinions and his actions harshly, heaping on him most of the opprobrium for the removal policy. For an extreme example, see Edward Pessen, facksonian America: Society, Personality, and Politics, rev. ed. (Homewood, Illinois: Dorsey Press, 1978), p. 296, which describes Jackson's position as "a blending of hypocrisy, cant, and rapaciousness, seemingly shot through with contradictions. Inconsistencies however are present only if the language of the presidential state papers is taken seriously.... When the lofty rhetoric is discounted and viewed for what is was— sheer rationale for policy based on much more mundane considerations— then an almost frightening consistency becomes apparent." A more seious and balanced appraisal of Jackson's policy, is Satz, American Indian Policy in the facksonian Era. The events get a special twist in the psychohistory by Michael Paul Rogin, Fathers and Children: Andrew fackson and the Subjugation of the American Indian (New York: Alfred A. Knopf, 1975). Rogin suggests that Jackson was a victim of separation anxiety because of his parents' early death and that he proved his manhood by destroying Indians. Although the book has much good material, its argument is not convincing. A favorable view that attempts to understand the complex situation facing Jackson is Francis Paul Prucha, "Andrew Jackson's Indian Policy: A Reassessment," Journal of American History 56 (December 1969): 527-39. tion was to be given, of course, just as in any exercise of the right of eminent domain. The Indians, he said, "have only a possessory right to the the Indians." 20 tion," and, encouraged no doubt by the favorable reception of his views in

Chicago Citations

Bibliography entry:

Prucha, Francis Paul. *The Great Father: The United States Government and the American Indians*. 2 vols. Lincoln: University of Nebraska Press, 1984.

Footnote citation:

Francis Paul Prucha, *The Great Father: The United States Government and the American Indians* (2 vols. Lincoln: University of Nebraska Press, 1984), supplied PDF pages 235-236.

Shortened citation:

Prucha, *The Great Father*, supplied PDF pages 235-236.

CHAPTER 10 · SECONDARY SOURCE S10.26

Andrew Jackson & His Indian Wars

Robert V. Remini

WORK	Andrew Jackson & His Indian Wars
SELECTION	The Indian Removal Act
SOURCE LOCATOR	Original pages 237–238 · Viking, 2001.

Excerpt

This monumental event in American histor}' brought the entire government into the process of expelling the southern Indians from their homeland. Heretofore the early Presidents—many ofwhom were founding fathers of the Republic—removed Indians by executive initiative.

There was no way the American people would continue to allow the presence of culture and life would engulf them. The Indian Removal Act did not order the removal of the Indians, even though that was a foregone conclusion once the talks actually began about exchanging land. And, as far as Jackson was concerned, the Indians could refiise to remove and stay where they were; but if they stayed, they had to recognize that they were subject to state law and jurisdiction. No longer could they live under their own laws and practices. Henceforth the laws and practices would be white laws and white practices. But knowing Indians as he did, he understood that few heritage and way of life.

Chicago Citations

Bibliography entry:

Remini, Robert V. Andrew Jackson and His Indian Wars. New York: Viking, 2001.

Footnote citation:

Robert V. Remini, *Andrew Jackson & His Indian Wars* (Viking, 2001), 237–238.

Shortened citation:

Remini, *Andrew Jackson & His Indian Wars*, 237–238.

CHAPTER 10 · SECONDARY SOURCE S10.27

Driven West: Andrew Jackson and the Trail of Tears to the Civil War

A. J. Langguth

WORK	Driven West: Andrew Jackson and the Trail of Tears to the Civil War
SELECTION	AJOR RIDGE (1825)
SOURCE LOCATOR	supplied PDF pages 155-156 · Simon & Schuster, 2010.

Excerpt

Moving on to a reorganization of the armed services, Jackson ended with a muted call for reexamination of the charter of the Bank of the United States, due to expire in 1836. He also voiced support for claims lodged by Commodore Stephen Decatur, his officers, and crew for their role in capturing the frigate Philadelphia from Tripoli.

Henry Clay scrutinized Jackson's message for ways to position his National Republican party for the next presidential election. He wrote to Nicholas Biddle, the president of the Bank, to suggest that Jackson's "public disapprobation" would backfire. It had come too early to be effective, Clay assured Biddle, and Jackson's remarks on the tariff would set off a distracting uproar in the Congress. Meantime, Clay sent suggestions to Charles Hammond, the compliant editor of the Cincinnati Gazette, on how to attack Jackson's message. Since Indian Removal offered a promising target, Clay considered invoking religion and claiming that to violate the rights of "those poor children of the woods" would provoke "the maledictions of a more exalted and powerful tribunal." But given his own ambiguous feelings about the Indians, Clay was necessarily vague. He recommended merely that Hammond's newspaper say "something" about Jackson's plan.

Emboldened by President Jackson's speech, Georgia's legislators decided to finish off Cherokee resistance once and for all. They passed the Cherokee Code, which annexed most of Cherokee territory to five neighboring white counties and declared Cherokee law within those areas null and void. The code banned all Cherokee meetings, and any Cherokee who resisted Jackson's removal policy could be arrested and jailed.

The code also forbade Cherokees from testifying against white men or prospecting for gold on the formerly Cherokee territory. All previous contracts between Indians and whites were nullified unless two Massachusetts congressman Edward Everett, a champion of Indian rights, spelled out the consequences of the code for his House colleagues. Everett had been a Unitarian clergyman, and he denounced the legislation in moral terms: White settlers had only to guarantee that no fellow white man was watching and then they could cross the Cherokee line to "burn the dwelling, waste the farm, plunder the property, assault the person, murder the children of the Cherokee... and though hundreds be permitted to be looking on, there is not one of them that can be permitted to bear witness against the spoiler."

Everett said that if Jackson's supporters asked what the Cherokee had to fear from Georgia law, Everett said he would answer that "by that law, he is left at the mercy of firebrand and dagger of every unprincipled wretch in the community."

Readers of the Cherokee Phoenix knew that Everett's warning had come too late. Long before June 1, 1830, when the code would officially take effect, crimes against the Cherokees had become too flagrant for Washington to ignore. While Jackson was preparing his address to Congress, he had sent his kinsman John Coffee to hear the tribe's side of the controversy. Georgians were outraged that the issue was not already settled in the new president's mind, and the state's current governor, George Gilmer, did his best to discredit the testimony of Major Ridge and the others.

Gilmer claimed that Ridge had induced "some old drunken Indians" to drill holes as false evidence that white Georgians were plundering gold from Cherokee territory. Although Coffee seemed to doubt some of Ridge's

information, his confidential report to Secretary Eaton said that he had found no plausible evidence to support the Georgians' claims, either.

And yet, the new evidence of hostility confirmed the administration's feeling that since the conflict could never be resolved, the Indians had to leave. It was the only way to ensure their own safety. The Phoenix sought to expose the hypocrisy of Jackson's reasoning: "You are too near to my white children.

Chicago Citations

Bibliography entry:

Langguth, A. J. *Driven West: Andrew Jackson and the Trail of Tears to the Civil War*. New York: Simon & Schuster, 2010.

Footnote citation:

A. J. Langguth, *Driven West: Andrew Jackson and the Trail of Tears to the Civil War* (New York: Simon & Schuster, 2010), supplied PDF pages 155-156.

Shortened citation:

Langguth, *Driven West*, supplied PDF pages 155-156.

CHAPTER 10 · SECONDARY SOURCE S10.28

The Long, Bitter Trail: Andrew Jackson and the Indians

Anthony F. C. Wallace

WORK	The Long, Bitter Trail: Andrew Jackson and the Indians
SELECTION	The Long, Bitter Trail
SOURCE LOCATOR	Original pages 8–9 · Hill and Wang, 1993.

Excerpt

Americans of all sorts, in all kinds of places, were obsessed with Southern cotton. The hunger for new cotton lands affected all classes of Southern society. Not merely prospective growers of plantation cotton caught the "Alabama fever," but also land speculators, and settlers who expected to make their fortunes in subsidiary activities on which the plantations depended— millwrights, blacksmiths, and other artisans of all kinds, doctors and lawyers, teamsters and steamboat captains, storekeepers and small farmers and railway workers. The demand for raw cotton was also increasing in the Northern United States, particularly in New England and Pennsylvania, where American cotton mills were beginning to compete with the British in the expanding American market for cotton goods. The Northern factories were aided, to be sure, by a protective tariff, which drove up the cost of British goods in the North as well as the South, and was leading to a bitter interregional conflict over federal tariff policy.

The increasing resentment in the South against the protective tariff was only one factor in the rise of a separatist sentiment that was becoming increasingly virulent. Particularly in Georgia, there was real bitterness against the federal government (which alone had the constitutional authority to hold treaties with the Native Americans and to purchase their lands) for its failure to remove the Indians.

1802, when Georgia relinquished to the United States its claim to sovereignty over what became the states of Alabama and Mississippi. The promise to purchase all the Native American land in Georgia, turn it over to the state, and transport the Indians elsewhere still remained partially unfulfilled when the Removal Act was finally passed, after much debate, in 1830.

The urge to convert "unused" Indian land into commercially productive cotton fields affected not only the white folks but the Native Americans themselves. Among the Southern Indians particularly, there was a recognized social class called "halfbreeds," distinguished from the "full-bloods" by some degree of white ancestry, usually on the father's side. Many of these half-breeds were sired by men of property who had taken refuge, or made their fortunes in, Indian country, had married Indian—or part-Indian—women, and had raised their children in homes where English was spoken. These children were sent to mission schools or even to white academies, where they received anything from a basic acquaintance with the three R's to an education in the classics and advanced training in one of the professions. Although they identified themselves as Indians in a native community where one's tribal and clan membership were inherited from the mother, they emulated their white cousins in economic behavior. For a considerable number of half-breeds, the form this emulation took—-or perhaps competition would be a better word—was to establish a cotton plantation, complete with mansion house, livestock, and black slaves.

One of the most successful of the Native American plantation owners was the Cherokee chief John Ross (1790—1866). His father was a Loyalist of Scottish origin who fled the persecution of the rebels during the Revolution, married a Cherokee woman (herself actually of only one-quarter Indian descent), and remained with the tribe after independence. John Ross was educated at a white academy in Tennessee but returned to live in the Cherokee country. During the War of 1812, being literate in English as well as fluent in Cherokee, he volunteered to serve as adjutant officer to a regiment of Cherokee warriors recruited by Andrew Jackson to fight against the Creeks, who had joined the British. He took part with Jackson and Coffee in the bloody battle at Horseshoe Bend on the

Tallapoosa River, where Ross's regiment played a major role in the slaughter of over five hundred Creek fighters and the sacking of their main fortified town.

Chicago Citations

Bibliography entry:

Wallace, Anthony F. C. *The Long, Bitter Trail: Andrew Jackson and the Indians*. New York: Hill and Wang, 1993.

Footnote citation:

Anthony F. C. Wallace, *The Long, Bitter Trail: Andrew Jackson and the Indians* (New York: Hill and Wang, 1993), 8–9.

Shortened citation:

Wallace, *The Long, Bitter Trail*, 8–9.

CHAPTER 10 · SECONDARY SOURCE S10.29

Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South

Barbara Krauthamer

WORK	Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South
SELECTION	Introduction
SOURCE LOCATOR	supplied PDF pages 22-23 · University of North Carolina Press, 2013.

Excerpt

That is, scholars have argued that calier than treating the rise of animal husbandry and cotton agriculture among the Choctaws and Chickasaws exclusively as evidence of the crushing weight of the American market on indigenous cultures, we should consider these changes from the vantage of Indians. We should investigate the meanings and values that Indians attributed to their new activities. This attention to the staying power of indigenous beliefs as enacted in Native peoples' daily lives makes an important argument for appreciating the complexity and nuance of southern Indians' engagements with and responses to U.S. policies and institutions. Studies that foreground Native people's ideas and actions offer an important analytical counterbalance to those that only consider the weight of external economic and political forces upon Indian communities.

In this vein, ethnohistorians have treated slavery principally as a mechanism that facilitated cultural continuities without giving serious consideration to the dramatic changes necessarily embedded in the purchase and ownership of black people as property. In such analyses, scholars argue that acquiring slaves allowed Indian men to refrain from fieldwork—historically the province of Native women. Men could pursue new market-oriented endeavors, such as the cultivation of commodity crops like corn and cotton, but remain true to the old ways in which men did not play central roles in agriculture.

Yet analyses that either emphasize the demise of indigenous culture and the concomitant rise of Indians' dependency on the market or foreground the durability of indigenous beliefs and adaptability of indigenous practices do not adequately account for the emergence of chattel slavery within Choctaw and Chickasaw communities. In both cases, slavery is presented as an inevitable and unremarkable outcome of Indians' participation in the American market. Buying and selling enslaved people, however, was not like other forms of property accumulation and circulation but marked a dramatic shift in Choctaw and Chickasaw ideas and practices of property, race, and gender.

Arguments that frame slavery principally as a strategy for sustaining indigenous ideals and practices fall short if we pay careful attention to the relations of power embedded in slavery. Slavery in the Choctaw and Chickasaw Nations rested on intersecting racial and gender ideologies that justified the enslavement and exploitation of black men's and women's bodies, labor, and reproduction. By the end of the eighteenth century, Choctaw and Chickasaw slaveholders, as well as those who did not own slaves, came to embrace those elements of Euro-American racial ideologies that identified people of African GRIND TEIRINGOGWS, TALIA AUIOTIUITIN GIT ALI) SLALUS™—OlaVe Ul LiCl ——~Wweiet seb ehey synonymous. Racial chattel slavery in the antebellum Indian nations was not simply a more-extreme variant of older indigenous practices of holding war captives as subordinates and servants. War captives—Indians captured by other Indians—were held in servitude only temporarily and were ultimately executed or incorporated into their captors' communities. Black slaves, by contrast, were held in lifelong and hereditary bondage. Racial identity and status passed from mother to child.

Indigenous concepts of gender necessarily changed as both Indian men and women owned male and female slaves and exploited the agricultural labor of both black men and women. If slaveholding allowed Choctaw and Chickasaw

men to abstain from agricultural labor and preserve a sense of their traditional gender roles, what did that mean for Indian women who were displaced from fieldwork by black people? How did the presence of black men as agricultural workers inform Indian men's and women's definitions of their gender roles? What did these shifts in gender and labor patterns among elite Indians mean for those Choctaw and Chickasaw women and men who did not own slaves? Unfortunately, the archives are not especially cooperative when it comes to answering these questions. Documents produced by slaveholders and other Indians make reference to some of these issues of race, gender, labor, and slavery but do not answer all of these questions. Still, simply by raising the question, by considering the meanings and consequences of racial and gender ideologies not only for enslaved black people but also for the Indians who owned them, we can better understand the complexity of race and slavery in the antebellum South.

Choctaw and Chickasaw slaveholders clearly embraced a racial and gender ideology of black inferiority that informed their relationships with each other, with their slaves, and also with nonslaveholding Indians. Their adoption of this racial ideology in some ways aligned their social and economic interests with those of their white neighbors. Both Indian and white slaveholders sought to maintain a social and economic order premised on the commodification and degradation of black people's bodies and labor. But this does not mean that Indians either accepted Euro-Americans' ideology of white superiority or saw their interests as identical to those of white southerners.

Indian Removal, Sectional Crisis, and the Civil War Until the 1830s, an estimated 15,000 Choctaws and some 3,000 to 4,000 Chickasaws claimed millions of acres of land across the Black Belt prairie

Chicago Citations

Bibliography entry:

Krauthamer, Barbara. *Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South*. Chapel Hill: University of North Carolina Press, 2013.

Footnote citation:

Barbara Krauthamer, *Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South* (Chapel Hill: University of North Carolina Press, 2013), supplied PDF pages 22-23.

Shortened citation:

Krauthamer, *Black Slaves, Indian Masters*, supplied PDF pages 22-23.

CHAPTER 10 · SECONDARY SOURCE S10.30

African Cherokees in Indian Territory: From Chattel to Citizens

Celia E. Naylor

WORK	African Cherokees in Indian Territory: From Chattel to Citizens
SELECTION	Introduction
SOURCE LOCATOR	Original pages 17–18 · University of North Carolina Press, 2008.

Excerpt

Miles describes as a burgeoning Cherokee "middle class," exhibited "qualities that set them apart from most Cherokee people."?* Over time, plantation slavery in the Cherokee Nation contributed to the creation of "two distinct classes within Cherokee society not only in an economic sense but also in terms of values and world views." Cherokees who supported removal often emulated southern, white slaveholding sensibilities and rejected the adherence to traditional Cherokee belief systems. Cherokees who opposed removal primarily believed in traditional Cherokee worldviews and questioned the legitimacy and relevance of European American mores. The dissension about plantation slavery and Cherokee belief systems, as well as the ramifications of slaveholding in Cherokee society, would continue to plague the Cherokee Nation even after removal to Indian Territory. Estimates vary as to the number of southeastern Indians forcibly relocated to Indian Territory. Historians are equally uncertain about the preremoval population of enslaved blacks in the Cherokee, Creek, Choctaw, Chickasaw, and Seminole nations. A census of the Cherokee Nation, conducted in December 1835 by the U.S. War Department, indicated that the Cherokee Nation in the East included 16,542 Cherokee Indians, 1,592 enslaved blacks, and 201 intermarried whites in the states of North Carolina, Georgia, Alabama, and Tennessee.** Most scholars agree that prior to removal, there were at least goo—1,000 enslaved blacks in three of the five nations—the Cherokee, Creek, and Chickasaw nations. Yet, due to the smaller number of Indians in the Chickasaw Nation (between 5,000 and 6,000 in 1837), compared to the Cherokee Nation (at least 15,000 in 1835) and the Creek Nation (at least 20,000 in 1832), the percentage of enslaved blacks in the Chickasaw Nation was significantly higher than in the other nations. A census of the Choctaw Nation in 1831 reported 512 enslaved blacks in a population of more than 19,500. Yet some scholars have argued that the enslaved population in the Choctaw Nation could have been considerably smaller." Although the enslavement of African-descended people existed within all Five Tribes, the Seminoles absorbed enslaved people within their communities in a manner that scholars have described as far less rigid and constrained than the other four nations.** Possibly due to the particular nature of the Seminoles' relationship with blacks, the Seminole Nation refused to reveal the number of free or enslaved African Seminoles in the period before removal. The African Seminole population, enslaved and free, could have been as high as one-fifth or onesixth of the total Seminole population of approximately 5,000."° Overall, only a small percentage of Indians in the Five Tribes enslaved blacks; the majority of these slave owners operated small farms with fewer than ten enslaved blacks before and after removal. During and after the removal process, enslaved people in the Five Tribes assisted with the survival and reestablishment of these nations in Indian Territory. Enslaved African Cherokees who relocated with their Cherokee enslavers in the winter of 1838-39 performed duties that sustained the removal detachments overall. As they traveled, some slaves trekked ahead and cleared the way for the larger groups. Cherokee owners utilized enslaved people along the trail as they had before removal. Enslaved African Cherokees worked as watchmen, hunters, cooks, and nurses. By assisting their owners and others during the removal process, enslaved people helped to minimize the intensity of some aspects of this intolerable journey for all Indians, whether they owned slaves or not.*° Experiencing the range of challenges along the trail perhaps cemented among some enslaved people a sense of mutual struggle and survival in relation to Indians. Others might have viewed their additional tasks and their different "place" within the removal detachments as simply a reinforcement of their outsider status in these Indian nations. However they might have construed their passage to Indian Territory, after arrival their duties as enslaved people underscored that journeying and suffering together would not engender equal status in the new land. After removal, owners employed slave labor in a variety of ways. Enslaved African Cherokees worked in prescribed roles as domestics within their owners' homes and as agricultural laborers.

Chicago Citations

Bibliography entry:

Naylor, Celia E. *African Cherokees in Indian Territory: From Chattel to Citizens*. Chapel Hill: University of North Carolina Press, 2008.

Footnote citation:

Celia E. Naylor, *African Cherokees in Indian Territory: From Chattel to Citizens* (Chapel Hill: University of North Carolina Press, 2008), 17–18.

Shortened citation:

Naylor, *African Cherokees in Indian Territory*, 17–18.

CHAPTER 10 · SECONDARY SOURCE S10.31

The Half Has Never Been Told: Slavery and the Making of American Capitalism

Edward E. Baptist

WORK	The Half Has Never Been Told: Slavery and the Making of American Capitalism
SELECTION	Introduction: The Heart, 1937
SOURCE LOCATOR	Original pages reflowed ebook; no fixed page numbers · Basic Books, 2014.

Excerpt

American migrants to pick cotton faster and more efficiently than free people. Their practices rapidly transformed the southern states into the dominant force in the global cotton market, and cotton was the world's most widely traded commodity at the time, as it was the key raw material during the first century of the industrial revolution. The returns from cotton monopoly powered the modernization of the rest of the American economy, and by the time of the Civil War, the United States had become the second nation to undergo large-scale industrialization. In fact, slavery's expansion shaped every crucial aspect of the economy and politics of the new nation—not only increasing its power and size, but also, eventually, dividing US politics, differentiating regional identities and interests, and helping to make civil war possible.

The idea that the commodification and suffering and forced labor of African Americans is what made the United States powerful and rich is not an idea that people necessarily are happy to hear. Yet it is the truth. And that truth was the half of the story that survived mostly in the custodianship of those who survived slavery's expansion—whether they had been taken over the hill, or left behind. Forced migration had shaped their lives, and also had shaped what they thought about their lives and the wider history in which they were enmeshed. Even as they struggled to stay alive in the midst of disruption, they created ways to talk about this half untold. But what survivors experienced, analyzed, and named was a slavery that didn't fit the comfortable boxes into which other Americans have been trying to fit it ever since it ended.

I read Lorenzo Ivy's words, and they left me uneasy. I sensed that the true narrative had been left out of history—not only American history in general, but even the history of slavery. I began to look actively for the other half of the story, the one about how slavery constantly grew, changed, and reshaped the modern world. Of how it was both modernizing and modern, and what that meant for the people who lived through its incredible expansion. Once I began to look, I discovered that the traces of the other half were everywhere. The debris of cotton fevers that infected white entrepreneurs and separated man and woman, parent and child, right and left, dusted every set of pre–Civil War letters, newspapers, and court documents. Most of all, the half not told ran like a layer of iridium left by a dinosaur-killing asteroid through every piece of testimony that ex-slaves, such as Lorenzo Ivy, left on the historical record: thousands of stanzas of an epic of forced separations, violence, and new kinds of labor.

For a long time I wasn't sure how to tell the story of this muscular, dynamic process in a single book. The most difficult challenge was simply the fact that the expansion of slavery in many ways shaped the story of everything in the pre–Civil War United States. Enslavers' surviving papers showed calculations of returns from slave sales and purchases as well as the costs of establishing new slave labor camps in the cotton states. Newspapers dripped with speculations in land and people and the commodities they produced; dramatic changes in how people made money and how much they made; and the dramatic violence that accompanied these practices. The accounts of northern merchants and bankers and factory owners showed that they invested in slavery, bought from and sold to slaveholders, and took slices of profit out of slavery's expansion. Scholars and students talked about politics as a battle about states' rights or republican principles, but viewed in a different light the fights can be seen as a struggle between regions about how the rewards of slavery's expansion would be allocated and whether that expansion could

continue.

The story seemed too big to fit into one framework. Even Ivy had no idea how to count the chained lines he saw going southwest toward the mountains on the horizon and the vast open spaces beyond. From the 1790s to the 1860s, enslavers moved 1 million people from the old slave states to the new. They went from making no cotton to speak of in 1790 to making almost 2 billion pounds of it in 1860. Stretching out beyond the slave South, the story encompassed not only Washington politicians and voters across the United States but also Connecticut factories, London banks, opium addicts in China, and consumers in East Africa. And could one book do Lorenzo Ivy's insight justice? It would have to avoid the old platitudes, such as the easy temptation to tell the story as a collection of topics—here a chapter on slave resistance, there one on women and slavery, and so on. That kind of abstraction cuts the beating heart out of the story. For the half untold was a narrative, a process of movement and change and suspense. Things happened because of what had been done before them—and what people chose to do in response.

No, this had to be a story, and one couldn't tell it solely from the perspective of powerful actors. True, politicians and planters and bankers shaped policies, the movement of people, and the growing and selling of cotton, and even remade the land itself. But when one takes Lorenzo Ivy's words as a starting point, the whole history of the United States comes walking over the hill behind a line of people in chains. Changes that reshaped the entire world began on the auction block where enslaved migrants stood or in the frontier cotton fields where they toiled. Their individual drama was a struggle to survive. Their reward was to endure a brutal transition to new ways of labor that made them reinvent themselves every day. Enslaved people's creativity enabled their survival, but, stolen from them in the form of ever-growing cotton productivity, their creativity also expanded the slaveholding South at an unprecedented rate. Enslaved African Americans built the modern United States, and indeed the entire modern world, in ways both obvious and hidden.

One day I found a metaphor that helped. It came from the great African-American author Ralph Ellison. You might know his novel Invisible Man. But in the 1950s, Ellison also produced incredible essays. In one of them he wrote, "On the moral level I propose we view the whole of American life as a drama enacted on the body of a Negro giant who, lying trussed up like Gulliver, forms the stage and the scene upon which and within which the action unfolds."3

The image fit the story that Ivy's words raised above the watery surface of buried years. The only problem was that Ellison's image implied a stationary giant. In the old myth, the stationary, quintessentially unchanging plantation was the site and the story of African-American life from the seventeenth century to the twentieth. But Lorenzo Ivy had described a world in motion. After the American Revolution—which seemed at the time to portend slavery's imminent demise—a metastatic transformation and growth of slavery's giant body had begun instead. From the exploitation, commodification, and torture of enslaved people's bodies, enslavers and other free people gained new kinds of modern power. The sweat and blood of the growing system, a network of individuals and families and labor camps that grew bigger with each passing year, fueled massive economic change. Enslaved people, meanwhile, transported and tortured, had to find ways to survive, resist, or endure. And over time the question of their freedom or bondage came to occupy the center of US politics.

Chicago Citations

Bibliography entry:

Baptist, Edward E. *The Half Has Never Been Told: Slavery and the Making of American Capitalism*. New York: Basic Books, 2014.

Footnote citation:

Edward E. Baptist, *The Half Has Never Been Told: Slavery and the Making of American Capitalism* (New York: Basic Books, 2014), reflowed ebook; no fixed page numbers.

Shortened citation:

Baptist, *The Half Has Never Been Told*, reflowed ebook; no fixed page numbers.

CHAPTER 10 · SECONDARY SOURCE S10.32

American Indian Policy in the Jacksonian Era

Ronald N. Satz

WORK	American Indian Policy in the Jacksonian Era
SELECTION	American Indian Policy
SOURCE LOCATOR	Original pages 54–55 · University of Oklahoma Press, 2002.

Excerpt

The United States in the Jacksonian era increasingly became a market-focused society dominated by "expectant capitalists" eager to remove all impediments to rapid exploitation of its natural resources. The federal government was under unremitting pressure to open new lands to settlement and purchase. The presence of Indian title in states and territories of the Union only frustrated the aspirations of settlers and speculators, while posing constitutional questions of a disruptive nature. Whether they were Democrats or Whigs in politics, expectant capitalists viewed allodial ownership of land as superior to Indian title and could little afford to sympathize with Indian claims to an imperium in imperio. Men of all political persuasions sought the immense tracts of valuable top soil, virgin lumber, and mineral reserves located in Indian country within the United States.

The presence of Indian title within states and territories of the Union frequently acted as a brake on the economic and political development of adjacent areas. Many settlers were reluctant to farm or make improvements on land near Indian country for they feared depredations as well as the uncertainty of their claims. Some state and territorial legislatures were hesitant to organize new county governments and provide land surveys near Indian areas for similar reasons. Residents of states and territories containing Indian title continuously petitioned their representatives in Congress for its extinguishment, and congressmen worked hard for such measures. The propinquity of frontier settlements to hostile tribes meant continual expenditures by both the state and the federal government to protect the lives of American citizens. For all of these reasons, Indian removal became an acceptable and desirable policy evoking little opposition from large sectors of the American people during the Jacksonian era.

Another important reason for growing acceptance of the removal policy was the lack of any suitable alternatives. The American Board, Jackson's political adversaries, and numerous other supporters of the southern Indians argued that the tribes were independent nations with the sole and exclusive right to the property and government of the territories they occupied under treaty stipulations. The board and its allies agreed with Chief Justice Marshall that a degree of independence within the context of the surrounding white society was legally and politically possible as well as morally desirable. Advocates of removal, on the other hand, maintained that the presence of Indian enclaves within the United States would necessitate the presence of sizable military forces to protect Indians from white intruders and whites from Indian depredations. They warned that such conditions would impede economic development, increase the possibility of federal-state conflict, and endanger the existence of the Union.

As Americans became increasingly anxious to justify their dispossession of the Indians, they quickly discovered that Jackson's removal policy, like the civilization program of earlier decades, provided them with a convenient humanitarian rationale. By equating removal with the preservation and civilization of the Indians, as Jackson did, they could stand on high moral ground while relieving the Indians of their land east of the Mississippi River. No presidential administration in the 1830s or '40s refuted Jackson's logic or Indian policy.

Star-Spangled Banner" and a Democrat from Maryland, succinctly stated the Jacksonian position when he remarked that the only way to save the Indians from the vices of white society while holding out to them its benefits was to "buy their lands & send them off." Many of the strongest opponents of removal, like the Reverend Samuel A. Worcester, resigned themselves to the policy after they witnessed the demoralization of the stragglers as emigration began in the early 1830s and continued throughout the ensuing decade. The opposition of missionary groups like the American Board also weakened when, amid fierce competition for educational annuities for emigrant tribes, the government

assured the societies that it would help them reestablish their missions and schools in the trans-Mississippi West.

Chicago Citations

Bibliography entry:

Satz, Ronald N. *American Indian Policy in the Jacksonian Era*. Norman: University of Oklahoma Press, 2002.

Footnote citation:

Ronald N. Satz, *American Indian Policy in the Jacksonian Era* (Norman: University of Oklahoma Press, 2002), 54–55.

Shortened citation:

Satz, *American Indian Policy in the Jacksonian Era*, 54–55.

CHAPTER 10 · SECONDARY SOURCE S10.33

Driven West: Andrew Jackson and the Trail of Tears to the Civil War

A. J. Langguth

WORK	Driven West: Andrew Jackson and the Trail of Tears to the Civil War
SELECTION	Driven West
SOURCE LOCATOR	Original pages 160–161 · Simon & Schuster, 2010.

Excerpt

Learning that the Cherokees intended to sue them, the Georgians found a harsh new way to show their scorn for the federal courts. In September 1830, a Georgia judge had found a Cherokee named George Corn Tassel guilty of murdering another Indian in Cherokee territory and sentenced him to be hanged. Behind the scenes, Wirt was having more success than he had found with Governor Gilmer. On the question of jurisdiction, he sounded out Chief Justice John Marshall through a mutual friend and learned that Marshall sided with the Indians. In fact, Marshall was already on record. In an 1823 case, Johnson v. McIntosh, he had ruled that Indians' rights were not a question of morality or fairness but firmly based in American law. Drawing on that reassurance, Wirt filed a writ to ask the U.S. ground that the Cherokees, not Georgia, had jurisdiction in his case. On December 12, 1830, Justice Marshall, acting for his Court, signed an order requiring the state of Georgia to appear in Washington to show cause why a writ of error should not be issued that would save Tassel from the gallows. The Georgia legislature claimed that Marshall's order was "a flagrant violation of her rights" and not only instructed the governor and every other state official to ignore it but told the local country sheriff to expedite Tassel's execution. On Christmas Day, Tassel was driven to the scaffold sitting on his own coffin. Without a tremor, he spoke calmly to a crowd of spectators, including five hundred Indians. Fearing an outburst from protesters, the state had provided a heavy contingent of guards, but the Indians watched stoically as Tassel was hanged, and then they left quietly. In Washington, Marshall and his colleagues took note that since Jackson refused to enforce their rulings, they carried no weight. And yet Wirt decided to press on. He advised the Cherokees to seek an injunction that would stop Georgia from enforcing its code of punitive restrictions against them.

While resistance was moving forward in the courts, Jackson had worked personally to speed the process of clearing the Indian land. Four days after he signed the removal law, his office sent word that he and Secretary of War Eaton would be traveling to Tennessee later in the summer and wished to meet with chiefs from the affected territory. The Cherokees were the largest in numbers, but removal also involved remnants of other southeastern tribes. Chickasaw delegates showed up at Eaton's house in Franklin, Tennessee, on August 11, 1830. Since the Louisiana Purchase twentyseven years earlier, the United States had signed three treaties with the tribe to acquire tracts of their land in upper Mississippi, Alabama, and southern Tennessee.

Chicago Citations

Bibliography entry:

Langguth, A. J. *Driven West: Andrew Jackson and the Trail of Tears to the Civil War*. New York: Simon & Schuster, 2010.

Footnote citation:

A. J. Langguth, *Driven West: Andrew Jackson and the Trail of Tears to the Civil War* (New York: Simon & Schuster, 2010), 160–161.

Shortened citation:

Langguth, *Driven West*, 160–161.

CHAPTER 10 · SECONDARY SOURCE S10.34

Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory

Claudio Saunt

WORK	Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory
SELECTION	Unworthy Republic
SOURCE LOCATOR	supplied PDF pages 242-243 · W. W. Norton, 2020.

Excerpt

'The indenture was accompanied by an oath, in which subscribing witnesses—"highly respectable citizens"—swore that the orphaned children, "by making their marks," were acting voluntarily. This bit of theater left the survivors to starve. Creeks, Opothle Yoholo complained, were "helpless sheep among devouring wolves." As for the living, speculators devised one particularly effective ploy. It hinged on the fact that many certifying agents were corrupt and had a direct interest in the transactions that they were charged with validating. At little cost, a shrewd speculator could hire a dishonest and desperate Creek to impersonate a neighbor before the certifying agent. "In this way," explained Opothle Yoholo, "a few hundred dollars and four or five Indians could sell all the land in the Creek purchase." Eli Shorter, accused of running such a scheme, claimed that it was difficult to differentiate Creek names. Even the most honest of men, he insisted, "can scarcely avoid, in some instances, getting hold of the wrong Indians," though elsewhere he reportedly admitted that "it made no difference with him whether he had the right Indian or not." When Creek farmers protested that their land had been sold by imposters, judges told them to bring "white proof," since courts did not permit "colored persons" to testify against whites." Sometimes speculators did not bother to employ impersonators and instead hunted down the legitimate Creek landowners as if they were "malefactors or wild beasts," harassing them until they signed away their homes. One speculator pursued Irfulgar all the way to the Cherokee Nation, where he finally coerced the tired and despairing refugee to sell his property for a quarter of the value. Takhigehielo lost her land closer to home, after a seemingly friendly neighbor invited her to share his fresh peaches. 'Then, in exchange for three handkerchiefs and some flour, he made her mark a piece of paper. It was of course a deed, though she "knew nothing of the object of it." Another woman was cheated of her land with the assistance of her nephew, who received five "little pieces" of "the meanest kind of calico" for his efforts. A third woman, named Suhly, sold her land only after speculators threatened to kill her. She signed a deed and walked away in tears." As the "harvest" came to an end, wrote one speculator, they "rogued it and whored it among the Indians" in a final frenzy to consume the remains of the nation. The federal government, concerned that fraudulent contracts would lead to lengthy legal battles and delay the deportation of Creek families, threatened to halt the certification process. Facing the termination of sales, Shorter urged his partners onward. "Give up the beautiful Miss Jenny for the present" and "lay aside" poetry, he chided one associate. "Swear off from the society of ladies for one month," he scolded another. The "great struggle," he declared, "should be for the most valuable lands." "Every man," he exhorted, "should now be at his post." Shorter and his partners gathered the desperate Creeks in camps on the side of the road, drilled them in the procedure of deceiving the certifying agent, and promised to pay them sio for every contract. No matter if these sellers were not the true holders of the land: "Szea/ing is the order of the day." "Hurrah boys!" Shorter's partner exclaimed. "Let's steal all we can."° In April 1835, Andrew Jackson suspended the certification of sales, and the speculators turned their attention from Creek lands to the Creek people themselves. Devising yet another scheme to take advantage of the dispossession of the South's indigenous residents, they lobbied the federal government to privatize deportation. They relished the idea of profiting from both Creek lands and the deportation itself, and the ever-parsimonious commissary general George Gibson desired to save money. In September 1835, the federal government awarded a no-bid contract to John W.A. Sanford and Company to feed, transport, and provide medical care to the deportees. "We can make a hansame amount to compensate us for our time" and "trouble," John Sanford, a Georgia businessman and politician, explained to Gibson.

Chicago Citations

Bibliography entry:

Saunt, Claudio. *Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory*. New York: W. W. Norton, 2020.

Footnote citation:

Claudio Saunt, *Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory* (New York: W. W. Norton, 2020), supplied PDF pages 242-243.

Shortened citation:

Saunt, *Unworthy Republic*, supplied PDF pages 242-243.

CHAPTER 10 · SECONDARY SOURCE S10.35

Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes

Gerard N. Magliocca

WORK	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes
SELECTION	The Cherokee Cases
SOURCE LOCATOR	Original pages 44–45 · University Press of Kansas, 2007.

Excerpt

Cherokee independence." Only at the end did the chief justice add a few paragraphs about the missionaries' plight." In that brief analysis, though, he managed to hold all of the Cherokee Codes unconstitutional. Moreover, the Court used this as a third ground for reversal after concluding that the state statutes were preempted by federal law and by treaties with the Tribe." Despite this extraordinary effort to reach the constitutional issues, Marshali claimed that he had no choice because "those who fill the judicial department have no discretion in selecting the subjects to be brought before them." This statement was false. The Court had at least three ways to avoid declaring that the Georgia laws were unconstitutional. For one thing, the petitioners did not get the lower court record properly certified—a pleading defect that could well have led to a dismissal of the suit if the Court was so inclined.® Next, the 1802 compact between the United States and Georgia stated that no person could enter Cherokee land without a federal license.® By adding conditions for entry, the State was impeding federal policy and violating the compact." Third, the Treaty of Hopewell said the Cherokees were "under the protection of the United States, and of no other sovereign whatsoever" and had the right to punish trespassers "as they might think proper."" This language did not contemplate a State playing a role in regulating the Tribe, and thus the Court could also have rested its judgment on that ground. All of this leads to an important point—there is no doubt that the conclusion in Worcester was correct. The problem was how the Court got there. ¥ Chief Justice Marshall did not stop with these reasons because such a narrow holding would not have had an impact on the broader constitutional debate. The Court wanted to turn public opinion against the Removal Act, not just against the Cherokee Codes. Moreover, Marshall wanted to counter the Jacksonian argument that the Tribes had no sovereign rights and that the States should have the primary role in setting Native American policy. As the Court stated, "The Cherokees acknowledge themselves to be under the protection of the United States, and of no other power. Protection does notimply the destruc tion of the protected.""

Chicago Citations

Bibliography entry:

Magliocca, Gerard N. *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes*. Lawrence: University Press of Kansas, 2007.

Footnote citation:

Gerard N. Magliocca, *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes* (Lawrence: University Press of Kansas, 2007), 44–45.

Shortened citation:

Magliocca, *Andrew Jackson and the Constitution*, 44–45.

CHAPTER 10 · SECONDARY SOURCE S10.36

The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty

Jill Norgren

WORK	The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty
SELECTION	The Test of Cherokee Legal Rights Begins
SOURCE LOCATOR	supplied PDF pages 124-125 · University of Oklahoma Press, 2004.

Excerpt

The arrest of the northern missionaries gave Wirt and Sergeant an opportunity to fashion another legal challenge to Georgia's anti- Indian laws. If the men were convicted of violating state law in a Georgia court, an appeal could be taken to the U.S. Supreme Court. Wirt believed that a new test of the controversial jurisdiction laws, using the missionaries as plaintiffs, was a reasonable strategy. He had no doubt about the outcome at the Supreme Court but warned Worcester that a mandate from that body might not be heeded by Georgia official^.^ Worcester hired Elisha W. Chester, a New England acquaintance who was practicing law in Georgia, as the missionaries' local attorney. Wirt took charge of the case from Baltimore, guiding Chester's work. The lawyers were certain that the local court would find the missionaries guilty and were preparing for an appeal to the Supreme Court. On September 15,1831, a state court found the men guilty and sentenced all the defendants in State v. Missionaries to four years of hard labor at the state penitentiary. Most of the missionaries accepted pardons, but Worcester and Dr. Elizur Butler, who were committed to a test case, did not.

Samuel Worcester believed that the citizens of the United States would be aroused by Georgia's arrest of American missionaries and that the Supreme Court would rule in favor of the missionaries. However, his letters reveal a practical man who harbored no illusions about the rough and tumble world of Jacksonian politics. Months before the Supreme Court appeal, Worcester wrote to David Greene at the American Board office to tell him that a test case might be in vain because a favorable decision on "the mere question of right" could lead Georgia and Jackson to defy the Court. He was, he said, preparing himself to serve long ~entence.~

The Cherokee leadership followed the state trial closely. John Ross worried that the Georgia legislature might repeal the law under which Worcester and Butler had been convicted, thus rendering the case moot. Georgia had prevailed in the Tassels appeal and had avoided direct action in Cherokee Nation, but those appeals had involved the Cherokee Nation. Even Georgia could not ignore the significance of imprisoning American clergy from one of the most respected missionary organizations in the nation. Ross thought that state officials might lose their nerve, but he was wrong. The missionaries were taken off to serve their sentences while Wirt began preparations for an appeal to the U.S. Supreme Court. He arranged for Chester to serve the necessary legal papers on state officials. Shortly afterward he filed for a writ of error that would allow him to bring the missionaries' case to the high court.

At the time of the new appeal the Cherokee desperately needed relief. They had been crushed in Tassels and blocked from meaningful action in Cherokee Nation. Every day more homesteaders and miners came into the Cherokee Republic from the United States. These men and women flaunted their disregard for international boundaries by camping on Cherokee land and, when gold was discovered late in the 1820s, by claiming it. The Cherokee treasury was virtually without funds because President Jackson refused to pay treaty annuities directly to the Cherokee national government. (He used a highly unusual per capita distribution to devalue the payments.) Contemporary Cherokee accounts describe a time of growing anti-Indian violence on the borders.

Yet the Cherokee and their allies in the United States were determined to maintain their opposition to the jurisdiction laws. Prominent Cherokees Elias Boudinot and John Ridge traveled north early in 1832 to lecture on Cherokee sovereignty rights and raise funds. It is likely that they were the Cherokee with whom Supreme Court

Justice Joseph Story had a private meeting in Philadel~hia.~ The Cherokee leadership also was encouraged by a strong National Republican party attack on both President Jackson's Indian policy and Georgia's imprisonment of the missionaries. This was not entirely surprising, as the Republicans had just tapped Wirt's cocounsel, John Sergeant, to be vice president on Henry Clay's national ticket.

Chicago Citations

Bibliography entry:

Norgren, Jill. *The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty*. Norman: University of Oklahoma Press, 2004.

Footnote citation:

Jill Norgren, *The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty* (Norman: University of Oklahoma Press, 2004), supplied PDF pages 124-125.

Shortened citation:

Norgren, *The Cherokee Cases*, supplied PDF pages 124-125.

CHAPTER 10 · SECONDARY SOURCE S10.37

The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations

Tim Alan Garrison

WORK	The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations
SELECTION	Introduction
SOURCE LOCATOR	Original pages 5–6 · University of Georgia Press, 2002.

Excerpt

Cherokees' favor might either turn Georgia from its policy of intimidation or, more likely, persuade Congress or President Jackson to intervene on the Cherokees' behalf. Ross hoped, in other words, that a legal victory would stem the political tide toward removal. Instead, Georgia ignored Worcester and refused to release the missionaries. To the Cherokees' further consternation, Jackson refrained from making any effort to enforce the decision against the state. "The decision of the supreme court has fell still born, > the president wrote, "and they find that they cannot coerce Georgia to yield to its mandate." Without the threat of enforcement by federal troops, the Court's decision in favor of Cherokee sovereignty was rendered meaningless.!° During his term as chief justice, Marshall had methodically elevated the Supreme Court's authority and established it as the ultimate interpreter and arbiter of the Constitution. But ironically, at the end of his term, the word of the Court received almost unanimous disapprobation from the president and the legislatures and courts of the southern states. Scholars have never adequately explained how the Court's authority, so richly expanded during the Marshall era, could have been so completely repudiated by such a broad segment of the American legal and political community. Histories of the Removal Crisis usually state that Jackson and Georgia did not agree with Worcester, so they simply ignored it. But the nonenforcement of Worcester was less a clash of personality—between Jackson and Marshall or between the Georgia government and Ross—than it was a conflict of competing legal arguments; and the president and the radical removal proponents, as independent as they were, might not have so openly disavowed the decision without some semblance of legal authority to do so. Indeed, the southern position, that the Indian tribes held no political or property rights worthy of recognition by American courts, was not without legal foundation. In fact, elements of the southern removal ideology dated back well into the legal and political history of Europe and the United States. Between 1830 and 1835, three state supreme courts in the South percolated the threads of the long tradition of anti-Indian legal prejudice into a formal legal position that justified the expropriation of Native American land. The decisions of the southern tribunals filled the legal vacuum created by the general disavowal of Worcester and provided legal legitimacy to the state legislative assault on Indian rights. In Georgia v. Tassels (1830), Caldwell v. Alabama (1831), and Tennessee v. Forman (1835), the southern courts produced analyses that countered those espoused by Marshall in Cherokee Nation and Worcester. The tribes were not sovereign nations, the southern courts held; Indians were simply, as individuals, subjects of the states in which they lived. Each state, the southern judges said, held the authority to extend its jurisdiction to the reaches of its territorial limits, regardless of federal-Indian treaties or national legislation to the contrary. Hence, each state possessed the power to abolish the government and laws, and the right to extinguish competing property claims, of any tribe residing within its borders. Historically, legal scholars have quite naturally tended to focus on the decisions of the U.S. Supreme Court. As a result, the state courts are a relatively unexploited and fertile ground for historical research, and I suspect that in the future we will find that the attention to the federal courts has seriously distorted our understanding of the manner in which law developed in the United States.!' Historical concentration on the Supreme Court's decisions in Cherokee Nation and Worcester, for example, has tended to overshadow the role the southern state courts played in the Removal Crisis and the important influences the southern judiciary had in the origins of American Indian law. The southern courts' repudiation of tribal sovereignty, and their position on the relative power of the state and federal governments over Indian affairs, perhaps influenced the development of that law as much as Marshall's recognition of tribal sovereignty in Worcester. Scholars have also generally overlooked the interplay that occurred between the state and federal courts, and the impact of those remote conversations on the issues of import. For instance, when read in chronological order of decision, the federal and southern state cases offer a lengthy and concentrated debate on the place of the Native American and the Indian tribe in the American constitutional system. Issued before the Supreme Court became entangled in the dispute between Georgia and the Cherokees, Georgia v. Tassels initiated the conversation by directly challenging the principle of tribal sovereignty established in the previous four decades of U.S.-Indian relations. The subsequent state case, Caldwell v. Alabama, provided the southern judiciary's reaction to Cherokee Nation. The Alabama supreme court's three turgid opinions in that case, spanning 117 pages of the Alabama Reports, represented the most comprehensive explication of the southern position on Indian tribal and individual rights; we cannot appreciate the true radicalism of Worcester v. Georgia without placing it into the context of the southern position. Tennessee v. Forman, the final case of the southern triumvirate, repudiated Marshall's bold recognition of tribal sovereignty in Worcester. The Forman case also ended the Cherokees' hopes of maintaining a national status in the

Southeast. In 1832, the Cherokees had moved their government from New Echota (in the area annexed by Georgia) across the border to Red Clay in present-day Tennessee to escape Georgia's persecution.

Chicago Citations

Bibliography entry:

Garrison, Tim Alan. *The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations*. Athens: University of Georgia Press, 2002.

Footnote citation:

Tim Alan Garrison, *The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations* (Athens: University of Georgia Press, 2002), 5–6.

Shortened citation:

Garrison, *The Legal Ideology of Removal*, 5–6.

CHAPTER 10 · SECONDARY SOURCE S10.38

Banks and Politics in America from the Revolution to the Civil War

Bray Hammond

WORK	Banks and Politics in America from the Revolution to the Civil War
SELECTION	Banks, Speculation, and the Panic
SOURCE LOCATOR	Original pages 456–457 · Princeton University Press, 1957.

Excerpt

The surplus had been accumulated in the form of balances due the government on the books of the pet banks, and the administration in Washington seems to have been under the impression that though the banks had lent the funds, as Mr Tan~y had encouraged them to do, they also retained them and could at any time meet heavy withdrawals in specie. Actually, as Jabez Hammond said of the situation in New York, the banks had "treated this immense amount of money as so much capital on which they could make loans," and consequently the order from the Treasury for the distribution was to them "extremely embarrassing." They "complained that the mode of distribution adopted by the secretary, Mr Woodbury, was unwise and unnecessarily oppressive." This was in New York, where the banks were hand in glove with the party and where moreover there would be a net gain of funds from the distribution. The western banks could complain far more. Government funds had accumulated in them to an amount double what they could keep under the distribution, and suddenly they were called on to surrender the excess in specie to be shipped east. The J acksonians were not peculiarly responsible for the distribution, but they administered it in a crude fashion intolerably hard on the West. "The specie circular may have been harsh," writes Dr Carter H. Golembe in his account of western banking in this period, "but the withdrawal of deposits was fatal."·

II Although the specie circular and the distribution were important domestic disturbances in the United States, they were minor beside other evils produced by years of speculation and hasty expansion in the transatlantic economy comprising Britain and America. These two jealous and touchy partners complemented each other to the immense concern of each. Britain had become the premier industrial and financial power of the world. She found in the States the premier market for her goods and for her capital and the premier source of cotton for her mills. Americans found in her their premier market for their cotton and their securities. With these they paid for what they obtained from her in goods. In June 1836, because her specie reserves were falling away rapidly, the Bank of England raised her discount rate from 4 to 4% per cent. In August she raised it again from 4% to 5 per cent. But not until after she undertook this action, apparently, did she become aware of the extent to which credit in the British money market was centered on American trade. About the same time she got word of the specie circular. Filled with alarm at the situation in the British market and at what the specie circular indicated was and would be the situation in America, the Bank took direct action in a letter to her Liverpool agent instructing him to reject the paper of certain specified houses with American interests. She allowed this discrimination to become known in an ill-considered and startling fashion that annihilated the credit of those houses and shook the whole trade. Thus within a few weeks the blow delivered the American market by President Jackson with the specie circular was paralleled by the Bank of England in the British market.[10]

Author's Notes

10. [J. R. McCulloch], Edinburgh Review LXV (1837), 232-33.

Chicago Citations

Bibliography entry:

Hammond, Bray. *Banks and Politics in America from the Revolution to the Civil War*. Princeton, NJ: Princeton University Press, 1957.

Footnote citation:

Bray Hammond, *Banks and Politics in America from the Revolution to the Civil War* (Princeton, NJ: Princeton University Press, 1957), 456–457.

Shortened citation:

Hammond, *Banks and Politics in America from the Revolution to the Civil War*, 456–457.

CHAPTER 10 · SECONDARY SOURCE S10.39

The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis

Jessica M. Lepler

WORK	The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis
SELECTION	A Very 'Gamblous' Affair
SOURCE LOCATOR	Original pages 19–20 · Cambridge University Press, 2013.

Excerpt

Not surprising given its size and significance, the BUS inspired both confidence in financial paper, including both notes and bills, as well as charges of corruption.[62] Disparaging the national paper currency, William Leggett, a New York newspaper editor who disliked banks and the economic changes they facilitated, warned that "[men] count, deluded creatures! on the continued liberality of the banks, whose persuasive entreaties seduced them into the slippery paths of speculation."[63] Leggett's idea, that trust in paper money encouraged speculation and that this behavior had corrupted America's citizenry, echoed the language of many who tried to stop the go-ahead spirit. Ironically, even such critics, called "croakers," relied on the infrastructure that economic growth enabled: cheaply distributed newspapers subsidized by a federal budget bloated with the revenue of import tariffs and land sales.[64] The issues of how to balance security and risk, morality and sin, independent democracy and national improvement congealed into a debate over banking that dominated American politics for much of the 1830s. Moreover, with nearly universal white male suffrage, the American electorate became so divided over the bank war that it helped build partisanship on a scale the world had never before known.[65]

President Andrew Jackson joined Leggett in his concern about banks' control over Americans' lives. Jackson's Democratic Party was divided between "hard-money" advocates who wanted to eliminate all banks and eager entrepreneurs who wanted to sever federal ties with the BUS to free the nation's capital for more local investments. Together, these two factions encouraged Jackson to wage "war" on the "monster" BUS. Jackson chose his words carefully and allowed his supporters to define the terms of the debate. By referring to the BUS as a monster, he suggested that the institution held titanic and unnatural power. Some of his supporters would extend this condemnation to all banks; meanwhile, others argued that state-chartered banks offered a favorable alternative to the BUS. By waging war on the BUS, the former general claimed his anti-bank policy making to be within his job description as commander in chief; his opponents in the Whig Party and even some Democratic legislators would come to see Jackson's war with the bank as executive imperialism.[66]

Due to expire in 1836, the charter of the BUS became a topic of congressional debate in Jackson's first term. In 1832, the president vetoed a bill to recharter the BUS, and with his veto message turned the bank war into a reelection campaign platform that attacked plutocracy and centralized power. Jackson viewed his electoral victory in 1832 as a mandate to destroy the bank; his exit strategy for the bank war, however, remained vague.

To remove the federal government's funds legally from the BUS, the secretary of the treasury had to provide evidence to Congress that the federal funds were unsafe. Jackson had to replace one and dismiss another secretary of the treasury before, in 1833, he finally appointed Roger Taney, who ignored the glowing reports from Congress's recent investigation of the BUS. Taney gradually depleted the federal deposits by withdrawing but not depositing funds in the BUS. Congress censured the president, but Jackson nevertheless directed Taney and his successor, Levi Woodbury, to deposit incoming federal tax revenue in hand-chosen state-chartered banks, derisively called "pet banks," located throughout the nation. The network of federal deposit banks was designed to democratize finance by providing nonelite, non-eastern white men access to banks. To some extent it succeeded, but it would be more accurate to say the pet bank system Democratized banking because it rewarded loyal Democratic Party–affiliated

bank directors with federal capital. Accusations of demagoguery replaced accusations of plutocracy, but the bank war was far from over.

Jackson's democratization utterly failed to fulfill the demands of the hard-money men who wanted to eliminate all banks and paper money. The number of banks immediately began to multiply and some historians argue that the quantity of paper money also increased out of proportion to any sensible reserve ratio.[67] A political cartoon entitled "General Jackson Slaying the Many Headed Monster" (Figure 2) visualized the bank war by depicting the financial system as a hydra; Jackson decapitated one head only to release many more.

Banking had become decentralized but less regulated. Nicholas Biddle, president of the BUS, demonstrated the centralized power that would be lost when the BUS charter expired by directing his employees to redeem large quantities of notes at the nation's banks and by increasing the discount rate on bills of exchange. Biddle argued that these were necessary procedures for insuring the solvency and liquidity of the BUS after its loss of the federal government's funds, but he injured the BUS's reputation by causing trouble for merchants and financiers who relied on low rates to turn a profit on international trade. His opponents saw these actions as partisan retaliation and labeled the 1834 credit crisis "Biddle's Panic."[68]

Author's Notes

62. For the BUS as a source of confidence, see Stanley L. Engerman, "A Note on the Economic Consequences of the Second Bank of the United States," Journal of Political Economy 78, no. 4 (July 1970): 726.

63. William Leggett, "Thoughts on the Causes of the Present Discontents," Plaindealer (New York), Dec. 10, 1837, in Democratick Editorials: Essays in Jacksonian Political Economy by William Leggett, ed. Lawrence H. White (Indianapolis, IN: Liberty Press, 1984), 98.

64. Cyclopedia of Commercial and Business Anecdotes, ed. Frazar Kirkland (New York: D. Appleton, 1868), s.v. "Commercial Croakers."

65. The literature on banking and politics in the 1830s is enormous and fraught with the partisanship of the past and the present. For recent syntheses of the secondary sources, see Howe, What Hath God Wrought; and Wilentz, Rise of American Democracy.

66. On Jackson's language choices, see Howe, What Hath God Wrought, 376, 380–81.

67. Scheiber argues that Jackson's 1833 executive order ending federal deposits at the BUS and the Deposit Act of 1836 illustrate the significance of shifting opinions on the security of banks in the Jacksonian era. The opinions, he 262 argues, established real economic pressures that contributed to the Panic of 1837. Harry N. Scheiber, "The Pet Banks in Jacksonian Politics and Finance, 1833–1841," Journal of Economic History 23 (June 1961): 196–214. For a reevaluation of the financial effects of these actions and an overview of the existing literature, see Knodell, "Rethinking the Jacksonian Economy."

68. For conflicting interpretations of these policies, see Howe, What Hath God Wrought, 373–95; Wilentz, Rise of American Democracy, 360–74, 392–401; and Bruchey, Enterprise, 184–92.

Chicago Citations

Bibliography entry:

Lepler, Jessica M. *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis*. New York: Cambridge University Press, 2013.

Footnote citation:

Jessica M. Lepler, *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis* (New York: Cambridge University Press, 2013), 19–20.

Shortened citation:

Lepler, *The Many Panics of 1837*, 19–20.

CHAPTER 10 · SECONDARY SOURCE S10.40

The Age of Jackson

Arthur M. Schlesinger Jr.

WORK	The Age of Jackson
SELECTION	Traditions of Democracy
SOURCE LOCATOR	Original pages 505–506 · Little, Brown, 1945.

Excerpt

RACY THE TRADITION of Jefferson and Jackson might recede, but it could never disappear. It was bound to endure in America liberty. The business community has been ordinarily the most powerand Jackson, and it has been the basic meaning of American liberalafter the Civil War. There had risen up before the war a party of loyalties and capacities of men of good will. The antislavery crusade the party of Jacksonian democracy. agonizing question and fighting an exhausting war. But in part, too, war. The Jacksonian analysis correctly made it imperative for the to gain strength and urgency from the war, or even to arm itself for those who contend for caste and privilege, and those who neither have nor desire to have privileges beyond their fellows. It is the old question that has always, in all free countries, subsisted — the question of the wealthy and crafty few endeavoring to steal from the masses of the people all the political power of the Government.^

Chicago Citations

Bibliography entry:

Schlesinger, Arthur M., Jr. *The Age of Jackson*. Boston: Little, Brown, 1945.

Footnote citation:

Arthur M. Schlesinger Jr., *The Age of Jackson* (Boston: Little, Brown, 1945), 505–506.

Shortened citation:

Schlesinger, *The Age of Jackson*, 505–506.

CHAPTER 10 · SECONDARY SOURCE S10.41

Liberty and Power: The Politics of Jacksonian America

Harry L. Watson

WORK	Liberty and Power: The Politics of Jacksonian America
SELECTION	The Great Body of the People
SOURCE LOCATOR	Original pages 35–36 · Hill and Wang, 1990.

Excerpt

The political controversy over economic development came to focus most acutely on the issue of money—the currency that Americans passed from hand to hand—and the banks, the institutions that issued, collected, and dispersed it. The spread of commercial activity after 1815 brought more and more farmers, artisans, and professionals into the world of monetary exchange. As true commerce replaced barter, Jacksonian Americans learned that money could hardly be taken for granted, that its influence over society was far from neutral, and that power over money could be used to remake the social and economic landscape in previously unimagined ways. In particular, the value and supply of money could be manipulated in order to stimulate economic growth or to slow it down, to encourage a broad distribution of the benefits of economic change or to concentrate economic power more tightly. The currency question therefore became one of the most troubling political controversies of Jacksonian America, as Andrew Jackson led a successful crusade to destroy the Bank of the United States (the nation's largest bank), to suppress the most commonly used forms of paper money, and to establish a national currency composed of gold and silver coins.

Money in the antebellum United States consisted of paper currency and specie, or gold and silver coins. Issued by the federal government and foreign nations, specie was valued for certain purposes but was also scarce and cumbersome to use. Most daily transactions were conducted with paper money, which was issued not by the government but by commercial banks. The banks were therefore central institutions of the new economy, and it is important to understand something of how they worked. plied to their state legislature for a charter, a document establishing them as a corporate body and limiting each shareholder's personal liability for the debts of the corporation. Widely available today, incorporation was a rare privilege in the 1820s and 1830s, supposedly bestowed by state legislatures on companies with a special public service function. Railroad and canal companies were frequent recipients of corporate privileges, and banks argued successfully for the same status because they supplied the currency that the community relied upon. In practice, political favoritism and inside connections were often key determinants of who received a valuable corporate charter.

Once they were incorporated, shareholders paid in their capital, preferably in specie. Under the lax standards of the day, however, purchasers frequently gave personal IOUs for stock, offering nothing more than the stock itself as collateral. Once a specified portion of the stock was paid for, the bank elected officers and opened for business. Ordinarily, loans were made to borrowers for renewabie periods of sixty to ninety days, and profits accrued from the interest on these loans. The typical customer was a merchant who borrowed money to purchase goods in a distant city and repaid the loan when the goods were sold, but renewable notes could also be used to purchase land, slaves, equipment, or any other investment. The banks made their loans by issuing their own notes, which were paper certificates supposedly convertible to specie on demand and which therefore passed as money. The borrower spent his notes for goods and services, and the notes began to circulate in the community.

There was no specific limit to the volume of loans that a bank could make, and it was expected that bankers would lend out far more notes than they could ever redeem in specie at any one time. As long as the ratio between the specie in the bank‘s vaults and the volume of its notes in circulation did not become excessive, the bank was usually sound,

but the temptation to lend extensively and to profit from the resulting interest sometimes led bankers into perilous financial waters. When too many loans were made and too many notes were issued, business temporarily boomed under the generous supply of money and prices tended to rise. Inflation could be followed by severe deflation, however, and then the economy settled into depression.

Chicago Citations

Bibliography entry:

Watson, Harry L. *Liberty and Power: The Politics of Jacksonian America*. Updated ed. New York: Hill and Wang, 2006.

Footnote citation:

Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (Updated ed. New York: Hill and Wang, 2006), 35–36.

Shortened citation:

Watson, *Liberty and Power*, 35–36.

CHAPTER 10 · SECONDARY SOURCE S10.42

The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War

Michael F. Holt

WORK	The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War
SELECTION	4 "We Have Many Recruits in Our Ranks from the Pressure of the Times"
SOURCE LOCATOR	Original pages 61–62 · Oxford University Press, 1999.

Excerpt

With old issues gone, Whigs would have to sustain their new party as an anti- Van Buren venture. But the new president's intentions were unclear. He promised in his inaugural address to continue his predecessor's policies, and Whig politicos had sadly learned that most voters tolerated those policies more easily than they did. While the president's course "will not be such as you & I are likely to approve," Webster guessed, the "Country" might find it "acceptable.'

Within nine weeks of Van Buren's accession to power, however, an economic collapse swept away the fog that had shrouded the Whigs' political future. On May 10, 1837, banks in New York City suspended specie payments. Financial panic immediately seized the country as banks elsewhere followed suit, credit disappeared, loans were called, and prices plummeted. That panic began a cycle of recession, recovery, and depression that became the dominant force shaping American politics between 1837 and 1844. Those economic fluctuations spawned a political agenda for Whigs and Democrats to battle over in national and state arenas. They allowed Whigs to add support for programs to spur growth and economic recovery to their attacks on antirepublican tyranny. Since governments' response to economic hardship heightened people's political interest, Whigs' chances for broadening their electoral base brightened.

More important, the economic tailspin that began in 1837 ensured that the Whig party would endure. It was not foreordained in 1834 that the Whig party would for twenty years remain the primary political vehicle for almost all the Democrats' foes. Since it was founded primarily to rescue the government from Democratic presidents, it might well have disintegrated after it failed to accomplish that task in 1836, to be replaced by a new party based on different principles. That was exactly what Clay feared, in view of the party's divided and aimless condition at the beginning of 1837.

Had events focused attention on slavery and abolitionism, for example, the party's 1836 problems might have become insurmountable. Abolitionists' continued petitions to Congress, calling for an end to slavery in the District of Columbia, and the proslavery Republic of Texas' appeal for admission to the United States portended sectionally divisive issues that could fundamentally alter political alignments.

The economic crisis in the spring of 1837 channeled political development in a different direction. However shaky its condition, the Whig party was in place to benefit from discontent with the "in" Democratic regime engendered by depression. The slump allowed Whigs to fashion a distinctive national and state program of governmental economic policy, a program that united its northern and southern wings, reinforced the partisan identity of Whig voters, and massively extended that partisan allegiance to new voters. Once created, that partisan identity became a prism through which Whig voters viewed sectional issues themselves. All in all, the economic disaster that followed Jackson's departure from office was the pivotal episode in the growth of the Whig party.[4]

The financial panic that began in May 1837 stunningly terminated a seemingly endless and dizzying upward economic spiral. Between the summer of 1834 and the end of 1836, high foreign demand for key export crops like

cotton, ample foreign credit for American merchants, and significant infusions of foreign gold and silver doubled the nation's money supply and propelled prices to unprecedented levels, thus ensuring profits to the vast majority of Americans who produced goods for sale.[5] Easy credit and burgeoning money supplies spawned a boom mentality. Private investors started new businesses. State governments frantically launched internal improvement projects such as canals and railroads that they hoped would match the spectacular success of New York's Erie Canal.

The most apparent aspect of the frenzy, however, was massive purchasing of western land. Government land sales exploded from $6 million in 1834 to $16 million in 1835 and $25 million in 1836. As crop prices rose, farmers and planters sought more land so that they could plant more acres to cash in on the bonanza, and they recklessly took out readily available bank loans to do it. But most of those government sales reflected sheer speculation by people who hoped to resell land at a profit to the settlers who were swarming into the North and Southwest in the 1830s.[6]

Dazzled by present prosperity and the prospects for even more in the future, most Americans had ignored warning cries about the vulnerabilities of this economic structure. Both Whig and Democratic spokesmen had long predicted some kind of collapse, and both had ready explanations when it came. Jackson and his antibank advisors, for example, had cringed at the expansion of paper money and banking that followed the removal of deposits. As a result, they had moved toward a hard-money standard in order to restrain the economy and to develop a new Democratic issue to substitute for their victorious war against the Bank. The famous Specie Circular of July 1836 specifically aimed at slowing the land boom and "the ruinous extension of bank issues and credits." And in April 1837, Van Buren defended that Circular as "the only measure that could save the country.'

When the panic broke, Democrats quickly condemned bankers for inciting a corrupting speculative spirit that was bound to produce a crash. Private economic actors, not Democratic policies, they insisted, were responsible. Jackson and other Democrats, these spokesmen asserted, had sought to mitigate the damage by returning the country to a hard-money standard. Now, only that standard could cure the disastrous consequences of excessive credit, speculation, overtrading, and paper money.

Whigs, in contrast, blamed Jackson and Van Buren for causing the panic. Since the inception of their party, Whigs had warned that by destroying the Bank of the United States, Jackson had jettisoned the American financial system's stabilizing anchor. Without Biddle's institution to restrain other banks, they charged, currency would lose its uniform value, bank notes would no longer be accepted at face value, and chaos would ensue. Furthermore, Jackson, by placing federal deposits in state banks, first encouraged the overextension of the banking system and then compounded the problem by undermining public faith in the value of bank notes with executive orders banning government use of small notes and the Specie Circular. The Specie Circular further aggravated that pressure by forcing the movement of specie from eastern banks to the West, where the land markets were located. Jackson, in sum, had spurred the expansion of notes beyond the system's capacity to redeem them, and then he had sabotaged confidence in those notes so that people would try to redeem them. To account for the panic and the subsequent economic hardship, Whigs jeered, one need look no further than Democratic incompetence.

Author's Notes

4. While I stress the formative impact of the panic more than he, William G. Shade's brilliant essay, "Political Pluralism," provides systematic evidence for this point.

5. The analysis in this and the following paragraphs is drawn from: Temin, Jacksonian Economy; Shade, Banks or No Banks, pp. 40–59; Curtis, Fox at Bay, pp. 64–85; Sharp, Jacksonians versus the Banks, pp. 3–49; McFaul, Politics of Jacksonian Finance; Timberlake, "Specie Circular and Distribution"; and idem., "Specie Circular and Sales."

6. Temin, Jacksonian Economy, pp. 88–91, 124.

Chicago Citations

Bibliography entry:

Holt, Michael F. *The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War*. New York: Oxford University Press, 1999.

Footnote citation:

Michael F. Holt, *The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War* (New York: Oxford University Press, 1999), 61–62.

Shortened citation:

Holt, *The Rise and Fall of the American Whig Party*, 61–62.

CHAPTER 10 · SECONDARY SOURCE S10.43

Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power

Robert V. Remini

WORK	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power
SELECTION	In Retrospect
SOURCE LOCATOR	Original pages 177–178 · W. W. Norton, 1967.

Excerpt

President could be a politician of the masses; and it fashioned the character of the Democratic party in terms of leadership, organizational discipline, and popular following for nearly a generation. Even more significant, the Bank War became the instrument by which the powers of the President were vastly expanded. Whether justified or not, Jackson succeeded in destroying a powerful institution deeply entrenched in the economic (if not political) life of the country. To do this, he enlarged the the veto power and claimed the right to block legislation for reasons of policy or expediency rather than constitutionality.

Next, he broadened the political power base of the presidency by taking the Bank issue to the people and winning an overwhelming vicnot hesitate to claim an augmentation of executive authority by strated this authority by destroying the Bank over intense Congressional opposition. In addition, Jackson widened the support when he tangled with Congress. Moreover, he advanced 178 A Bibliographical Review the concept that the President is the direct (and sole) representative of the people, a revolutionary concept for its time. Lastly, he settled the question that the President has absolute power to remove subordinate executive officers at will. In the course of the Bank War, Jackson used the presidency for purposes of national leadership. In the process he narrowed the distance between the President and Congress and between the President and the electorate.

Today, the system of American government requires strong executive action to accomplish the purposes of democracy. Since the office did not come equipped with the necessary powers under the original Constitution, they had to be added through an historical process by the aggressive action of vigorous Presidents. Andrew Jackson was one of a half dozen Presifederal government. In his two terms in office he virtually remade the presidency; and he did it, to a large extent, during the Bank War.

Chicago Citations

Bibliography entry:

Remini, Robert V. *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power*. New York: W. W. Norton, 1967.

Footnote citation:

Robert V. Remini, *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power* (New York: W. W. Norton, 1967), 177–178.

Shortened citation:

Remini, *Andrew Jackson and the Bank War*, 177–178.

CHAPTER 10 · SECONDARY SOURCE S10.44

Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850

Sean Wilentz

WORK	Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850
SELECTION	Strikes and Politics
SOURCE LOCATOR	Original pages 235–236 · Oxford University Press, 1984.

Excerpt

Politics proved more troublesome. In the aftermath of the Bank War, the revolution in party politics begun by the Van Burenite Bucktails completed its course, and by 1834 the New York Whig party was virtually in place. Now that electoral politics were firmly in the grip of party professionals and their well-to-do political allies, there was little opportunity for a radical movement of wage earners to enter politics on its own. A schism in Tammany ranks in 1835, led by the Radical antibanking Democracy of the ex-Owenite Evans, did create a new Equal Rights (or Loco Foco) party, an effort that won the backing of some influential unionists, including Commerford. But while the Loco Focos updated the Owenite "Workies" radicalism, their position vis-a-vis the labor movement remained problematic. Their politics, echoing Paine, aimed primarily to purify government and eliminate aristocratic corrupt influences, particularly the new Tammany pols and their banker friends; their program, as formulated by such publicists and allies as William Leggett, was vitriolic in its denunciation of monopolies, banking, and paper money, but contained no hint of Skidmorite agrarianism, Owenite rationalism, or (at least until the labor crisis of 1836) trade unionism. The Loco Focos' laissez-faire appeals—to restore "the landmarks and principles of true Democracy"—were as appropriate for petty entrepreneurs in search of wider business opportunities and nominal Jacksonians on the outs with Tammany as for exploited workers in search of a deflationary currency and an end to banks. The party's leadership and following, far from being that of a popular movement, was a cross-class coalition much like the Democrats' or Whigs', led by professionals, petty and middling mediants, and disgruntled renegades from the Democratic General Executive Committee. A few radicals like Commerford could see the line of convergence between the Loco Focos' cause and the journeymen's, but this was not enough to risk a formal union alliance with a small Democratic splinter group.[30]

Under these circumstances, the unionists faced a dilemma. Clearly, they had abundant reasons to avoid getting caught up in party affairs or allying with regular politicians—to the Union, those "wire pullers who move the juggling machines of 'the party.'" Yet while they felt compelled to preserve their political independence, the unions could ill afford to renounce politics entirely. Issues like those raised in the Bank War were of direct concern to union men, regardless of the motives of some of the politicians who agitated them; although not "intended to interfere in party politics," the National Trades' Union observed, the unions recognized that "many of the evils under which the workingmen are suffering are of a political origin and can only be reached in that way." Rather than stand in fixed opposition to political action, the journeymen looked for ways to influence public questions without becoming dupes.[31]

With surprising success, the unionists walked a tightrope between compromising commitment and outright abstention. On matters of broad significance, like the rechartering of the Bank, the GTU made its preferences clear in every way short of formal endorsement or political merger.

Author's Notes

30. On the Loco Focos, see Hugins, Jacksonian Democracy, 36-48, 148-202 passim (but beware Hugins's merging of the Loco Focos and the earlier Working Men's movement as a single movement); Hofstadter, "William Leggett"; Carl N. Degler, "The Locofocos: Urban 'Agrarians,'" /EH 16 (1956): 322-33; Mushkat, Tammany, 167- 68; Stephen Hasbrouck to Alexander F. Vache, October 14, 1836, Mrs. Gouverneur Morris Phelps Collection: Equal Rights Party, N-YHS MSS. On Commerford and the Loco Focos, see Fitzwilliam Byrdsall, History of the Loco-Foco or Equal Rights Party (New York, 1842), 17, 36, 51, 54, 75-79, 93. For a useful discussion of the "hardmoney" New York Democracy, see Sharp, Jacksonians versus the Banks, 297-305.

31. Union, June 8, 1836; National Trades' Union, September 20, 1834. See also National Trades' Union, March 28, 1835; Union, April 21, May 20, June 22, 1836. There were, to be sure, always some men in the union who thought the journeymen should take a political turn. See Man, March 28, 1835. On what became of that sentiment, see below, Chapter 7.

Chicago Citations

Bibliography entry:

Wilentz, Sean. *Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850*. New York: Oxford University Press, 1984.

Footnote citation:

Sean Wilentz, *Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850* (New York: Oxford University Press, 1984), 235–236.

Shortened citation:

Wilentz, *Chants Democratic*, 235–236.

CHAPTER 10 · SECONDARY SOURCE S10.45

America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837

Alasdair Roberts

WORK	America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837
SELECTION	The Bubble
SOURCE LOCATOR	Original pages 35–36 · Cornell University Press, 2012.

Excerpt

The blame for the bubble was put on Jackson early and remained there for a very long time. “All the evils… that affl icted the people, were attributed to the experiments of General Jackson,” said George Boutwell, a Massachusetts Demo crat. “As these evils were coincident in time with the mea sures, the mea sures were treated as the guilty cause.” In 1924, historian Reginald McGrane still insisted that it was the “contest between the cohorts of Andrew Jackson and Nicholas Biddle [that] prepared the ground for the hard times of 1837.” Twenty years later, the landmark biography of Jackson by historian Arthur Schlesinger Jr. also conceded that Jackson’s policy toward the bank “removed a valuable brake on credit expansion… [and] accelerated the tendencies toward infl ation.” The domestic crisis was presumed to have primarily domestic causes.

But we forget, in looking only at errors in American policy, that its economy did not stand alone. The United States was only one component of a tightly integrated trans- Atlantic system of commerce and fi nance. The American economy was booming in large part because the much larger British economy, to which it was closely attached, was also booming. Investment in British cotton manufacturing was surging ahead. (So, too, was investment in other new technologies, such as railroads.) This meant higher demand for cotton and favorable prices for American producers. The American boom would never have started, and the bubble never infl ated, if it had not been for the fact that there was a heavy call for American cotton.

At the time, the British boom was explained as the happy result of the nation’s genius for invention and entrepreneurship. But credit also has to be given to meteorological luck. Britain enjoyed four extraordinary harvests between 1832 and 1835. As a result, the price of wheat fell by 40 percent from 1830 to 1835; wheat was cheaper than it had been for half a century. This was a boon for Britain’s working- class house holds, who spent twothirds of their income on food, and almost one- third on bread and fl our alone. Money not needed for food could be spent on clothing and other manufactures. This helped to maintain the price of cotton goods despite the rapid expansion of manufacturing capacity. And this, in turn, sustained the demand for American cotton.

The American economy was also inadvertently supercharged because of a lax policy on the part of the Bank of En gland, the so- called sun of the global credit system. One of the bank’s primary concerns was the protection of its reserve of bullion and coin, kept in the vaults of its London headquarters. When the harvest was poor, and food had to be imported, the reserve tended to decline, because gold was needed to settle accounts with foreign sellers of wheat and fl our. In such circumstances, the bank became protective of its reserve, mainly by purchasing bills of exchange at less favorable discounts. This pushed up the market rate of interest.

Of course, this was not the situation in the mid- 1830s. Harvests were good, and the volume of wheat imported in 1835 was only one- third of what it had been four years earlier. Until the summer of 1836 there was little pressure on the bank’s reserve. As a result, credit was easy. In retrospect it would become clear that the bank had underestimated the speed with which circumstances could change and its reserve could be drained. It kept rates too low for too long. While low rates in London encouraged investment in British manufacturing and railroads, it also drove British

investors to look for better returns overseas. The American economy was an appealing prospect: growing rapidly, similar in language and culture, closely connected to British manufacture and commerce, and more stable (or so it appeared) than some of the alternatives, such as Latin America or India. A high- grade American bond yielded a return of 5 or 6 percent per annum, while longterm British government bonds paid little more than 3 percent.

“In the choice of investments by moneyed men,” a British newspaper reported in 1836, “there has been… a very decided bias in favor of American securities, on account of the superior interest they yield compared with Government stocks and other modes for the employment of capital in Eu rope.” British lending to the United States surged in 1834– 1836. In 1833, total American foreign indebtedness was one hundred ten million dollars— not far from the average for the preceding two de cades. By 1836, it had doubled to two hundred twenty million dollars. This was an im mense stimulus to the American economy, and an important cause of the speculative fever in southern and western states. The amount of British capital fl ooding into the United States greatly exceeded the sums that the federal government was transferring to state banks.

Why did Americans tend to dwell so heavily on the domestic factors that contributed to the boom and bubble? There are several potential explanations. The fi rst is that the actions of the country’s own po liti cal leaders, publicized and debated in the nation’s newspapers, were more easily observed than those of overseas investors and fi nancial institutions. Simply because these actions were more likely to be monitored, they were also more likely to be identifi ed as the immediate explanation for the state of the economy.

Chicago Citations

Bibliography entry:

Roberts, Alasdair. *America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837*. Ithaca, NY: Cornell University Press, 2012.

Footnote citation:

Alasdair Roberts, *America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837* (Ithaca, NY: Cornell University Press, 2012), 35–36.

Shortened citation:

Roberts, *America's First Great Depression*, 35–36.

CHAPTER 10 · SECONDARY SOURCE S10.46

The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis

Jessica M. Lepler

WORK	The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis
SELECTION	States of Suspense
SOURCE LOCATOR	Original pages 230–231 · Cambridge University Press, 2013.

Excerpt

In the spring of 1838, after angry debates between bankers throughout the nation, some banks resumed specie payments, inspiring hope that the nation's economy had recovered from the events of 1837.[202] Americans imported fewer British goods than earlier, thus improving the balance of trade between the two nations and increasing optimism of Americans' ability to meet their obligations. Many banks appealed to state legislatures to gain the faith of the state as security for new loans. Internal improvement projects gained new resources from bond sales. British and Dutch investors bought state-backed bonds and stocks. In the South, banks became cotton factors; they sold the staple in Britain to balance their debts. The BUS took the lead.[203]

Samuel Jaudon, the BUS's representative in London, served as a commission agent in Liverpool who both negotiated credit from English investors to finance the advances to planters and sold cotton at artificially high prices. Several British merchant banking houses, including the Lizardis, competed with the BUS for America's cotton. As a New Orleans agent for a Boston textile manufacturer reported at the end of December 1837, "There is nothing doing in Cotton – nearly all of that going forward to Europe is on [account] of the Bank."[204] The BUS was winning control over the entire American cotton crop. Because of adverse environmental conditions that resulted in a small crop, this was easier in the winter of 1837 than it would have been in almost any other year. American cotton recovered 50 percent of its value. Prices for other goods returned to near pre-panic levels. Positive interpretations of the economy led to an inflow of British capital, increased cotton prices, and state expenditures.[205]

By December 1838, one year after his earlier letter, the New Orleans agent of the Boston textile manufacturer recognized a problem. He complained to his correspondent of artificially high prices: "so much of the present crop will be under the control of the Banks & agents of European Houses that it is doubtful the article will decline, while speculation may enhance prices."[206] The BUS's corner of the cotton market nearly succeeded, but environmental conditions in Britain affected the supply of credit.

In an exaggerated repeat of the events leading to the panic in 1837, millions of pounds sterling of specie exited the vaults of the BOE in 1839. This time, instead of blaming the American houses, the BOE directors recognized that a poor harvest necessitated wheat imports expending the national specie supply. To protect the currency of the country, the BOE directors again raised discount rates. A new wave of commercial failures traveled through the networks of commercial correspondents from London to New York to Canton and everywhere in between. Textile demand declined and cotton prices fell when British manufacturers stopped buying American cotton. The flow of capital into America began to dry up. The pressure on American money markets transformed into a commercial crisis. Pessimism replaced optimism.[207]

In March 1839, the BUS suspended specie payments again; this time there would be no amendment to its charter. Instead, the assets and liabilities of the failed BUS would be settled over the next two years. The failure of the BUS triggered bank failures throughout much of the United States. In addition, payments on state loans floated before the panic in 1837 became due in Europe. States counted on profitability of internal improvement projects to fund the interest on these debts, but with less consumption of imports and lower prices, canals and railroads could not generate this income.[208] Never receiving the final installment of the Distribution Act, many states experienced a

shortfall in their capital supplies, which were pledged many times over to support the loans to statechartered banks. Nine states defaulted on their loans. Foreign investors feared a general repudiation of state debts and drastically reduced the flow of capital and credit to the United States.[209] Even the BOE needed Barings to negotiate a loan from the Bank of France to protect British currency from what had become a global crisis. Although the actual crisis in 1837 was more acute, the panic in 1839 brought on the worst deflation Americans had yet experienced.[210] The English called the years that followed "the hungry forties."[211]

Author's Notes

202. The New York banks were required to resume in May 1838. Thus, these powerful bankers pushed for an early resumption of specie payments, whereas the BUS and other institutions sought a slower process to fulfill cotton speculations. McGrane, Panic of 1837, 183–208; and Hammond, Banks and Politics, 467–90.

203. Economists disagree about whether change in the bond market originated in Britain or America. Temin, Jacksonian Economy, 148–55; and Namsuk Kim and John Joseph Wallis, "The Market for American State Government Bonds in Britain and the United States, 1830–43," Economic History Review 58, no. 4 (2005): 736–64. For case studies of internal improvement projects in particular states, see Larson, Internal Improvement, 195–224. For banks as cotton factors, see Kilbourne, Slave Agriculture and Financial Markets, 84– 95; and Green, Finance and Economic Development, 95–96.

204. Thomas P. Bancroft to F. C. Lowell, Dec. 30, 1837, letter written on blank side of New-Orleans Wholesale Prices Current, Dec. 30, 1837, AAS.

205. Austin, "Baring Brothers," 309; Austin, Baring Brothers (2007), 175; and Temin, Jacksonian Economy, table 3.2, 148–53.

206. Thomas P. Bancroft to F. C. Lowell, Dec. 15, 1838, letter written on blank side of New-Orleans Wholesale Prices Current, Dec. 15, 1838, AAS.

207. Temin, Jacksonian Economy, 152–55. Jenks provides a more global context to the shifting economic conditions of 1839. Jenks, Migration of British Capital, 95–96.

208. Larson, Internal Improvement, 195–224.

209. McGrane, Foreign Bondholders, 265–69. In early 1839, the city of Mobile, Alabama, also failed to make interest payments on its loans, earning it the distinction of being America's first municipal default. Harriet E. Amos, Cotton City: Urban Development in Antebellum Mobile (Tuscaloosa: University of Alabama Press, 1985), 124.

210. Kim and Wallis, "Market for American State Government Bonds," 741–45, 755–56; Austin, Baring Brothers (2007), 177–80; and Temin, Jacksonian 313 Economy, 153–55. For the significance of the Crisis of 1839, see John Joseph Wallis, "What Caused the Crisis of 1839?" (Apr. 2001), NBER Working Paper No. H0133, http://ssrn.com/abstract=267421. For a comparison of 1839–43 with 1929–33, see Temin, Jacksonian Economy, 155–164.

211. W. H. Chaloner traces the mythology of this phrase to free trade advocates in the early 1900s. He finds that the whole decade may not have been "hungry," but that real economic hardship existed for the working class from 1838 to 1842. W. H. Chaloner, "The Hungry Forties" in Industry and Innovation: Selected Essays of W. H. Chaloner, ed. D. A. Farnie and W. O. Henderson (London: Frank Cass, 1990), 232–42. For the politicization of hunger in the 1840s, see Peter J. Gurney, "'Rejoicing in Potatoes': The Politics of Consumption in England during the 'Hungry Forties,'" Past & Present 203, no. 1 (May 2009): 99–136.

Chicago Citations

Bibliography entry:

Lepler, Jessica M. *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis*. New York: Cambridge University Press, 2013.

Footnote citation:

Jessica M. Lepler, *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis* (New York: Cambridge University Press, 2013), 230–231.

Shortened citation:

Lepler, *The Many Panics of 1837*, 230–231.

CHAPTER 10 · SECONDARY SOURCE S10.47

The Jacksonian Economy

Peter Temin

WORK	The Jacksonian Economy
SELECTION	3. Contraction and Inflation
SOURCE LOCATOR	Original pages 79–80 · W. W. Norton, 1969.

Excerpt

Macesich's explanation fails fundamentally because it looks in the wrong place for the sources of the specie. The specie stock rose because of specie imports, but most of the imports were not from Europe. Table 3.5 shows the imports of specie for the l 830's, broken down by country of origin and by the metal involved.[35]Only in three years during the 1830's were there imports of specie from Europe.

1834 has already been discussed. The inflow in 1836 repre-:,ented the payment of the French indemnity that had been controversial in 1833.[36]And the inflow in 1838 came after the inflation had ended. Most of the specie had to come for reasons other than the undervaluation of the pound.

The source of the specie is apparent from Table 3.5. Most of it came from Mexico, with imports from various Latin American countries adding to the flow. [37]In the 1820's, the inflow of silver from Mexico and Latin America was offset by an outflow to Asia. This balance was destroyed in the 1830's by a small rise in the imports from Mexico and a larger fall in the specie exports to China.

Silver was a commodity export for Mexico, and the increase in its quantity during the mid-1830's was probably due to an increase in supply. The price of silver was fixed in terms of American currency, and the American inflation reduced the quantity of goods bought by a unit of silver. Consequently, the added imports from Mexico were not produced 'by offers of higher prices for them.

The decline in the exports of silver to China and Asia was large enough to make the annual amount of silver retained from the Mexican imports rise from a very small amount in the late

1820's to about $4 million in the l 830's, contributing about $20 million of silver to the American stock of specie between 1831 and 1836. The Chinese were increasing their consumption of opium in the 1830's, and they abandoned their traditional desire for silver in favor of a demand for bills on London to buy opium from British India.

Author's Notes

35. The yearly totals do not match exactly the changes in the specie stock shown in Table 3.3, but over the decade they are very close. The discrepancies are discussed in detail in the Appendix.

36. U. S. Congress, Senate Document 351, 25th Congress, 2nd Session (1837-38), pp. 124-25.

37. The inflow from Mexico was almost entirely in specie (coin) rather than bullion, as Mexican coins were legal tender in the United States. See Arthur Nussbaum, A History of the Dollar (New York: Columbia University Press, 1957), pp. 56, 62, 84; and Sources for Table 3.5.

Chicago Citations

Bibliography entry:

Temin, Peter. *The Jacksonian Economy*. New York: W. W. Norton, 1969.

Footnote citation:

Peter Temin, *The Jacksonian Economy* (New York: W. W. Norton, 1969), 79–80.

Shortened citation:

Temin, *The Jacksonian Economy*, 79–80.

CHAPTER 10 · SECONDARY SOURCE S10.48

A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America

Brian Balogh

WORK	A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America
SELECTION	National Power and the Nullification Crisis
SOURCE LOCATOR	supplied PDF pages 305-306 · Cambridge University Press, 2009.

Excerpt

When suspension of the gold standard undermined credibility in the Treasury Department's notes, the Union legislated that irredeemable paper currency (the greenback) be accepted as legal tender.** This monetary policy affected the value of every contractual agreement in the Union, touching the lives of all Americans, Representative Samuel Cox of Ohio summed up the impact when he observed that "the party in power... have established a paper-money banking system, under the control of the General Government, which concentrates power in the Administration... and gives it control over the property and pecuniary interests of the people." Through its monetary policy and by financing debt through bond sales, the Union created powerful sets of client groups.*?

Congress consolidated other sets of interests as it employed public policy to fulfill the Republican vision of capitalist westward expansion. The Homestead Act, the Land Grants College Act, and subsidies to the railroads created powerful groups with vested interests in national public policy. Thomas Scott, vice president of the Pennsylvania Railroad, was a good example of such an interested party. Scott helped organize military transport in his role as Assistant Secretary of War. His wartime experience sensitized him to the value of federal charters and subsidies. Aid to railroads was the most visible link between the central government and a powerful interest group. Congress approved massive land grants and public debt devoted to the construction of a transcontinental railroad. Starting with the Union Pacific in 1862, the General Government eventually assisted twelve lines. The railroads quickly turned this land into capital. Undergirded by a higher tariff, these policies raised government support for economic development from the local to the national level.*4 The railroad boom began in the 1830s, as public frustration with corruption tempered the demand for government-funded internal improvements. The railroads, like stage coaches, were viewed as private, not public, > Bensel, Yankee Leviathan, 10-11, 124, 152, 162.

23 Congressional Globe, 38% Cong., 1 Sess., June 2, 1864, 2683, in Library of Congress, A Century of Lawmaking for a New Nation: U.S. Congressional Documents and Debates, 1774-1875, http://memory.loc.gov/ammem/amlaw/, quoted in Bensel, Yankee Leviathan, 162.

Hays, The Response to Industrialism, 1885-1914, (Chicago: University of Chicago Press, 1957), 18-19. See also, Samuel R. Kamm, The services. Yet few roads could legitimately be deemed purely "private." Government subsidies ranged from county and municipal financing, to tax exemptions, and federal tariff breaks on the cost of iron. It was not until the mid-1840s that private investors began to claim that railroads were profitable private investments. By then, the constitutional prohibitions against state financing for internal improvements were in full force. Ironically, at the very time that Northern states denounced public financing, Southern states took up the call.?5

The Civil War revived the demand for federal subsidies to transcontinental lines. But it did little to change the image of railroads as the prototypical private enterprises. In fact, the transcontinental lines were built with the presumption that the General Government could not be trusted with the railroads. This did not prevent the General Government from passing legislation that granted millions of acres and rights of way through the public domain to dozens of railroad projects between 1850 and 1857. While advocates of a transcontinental line could not agree upon the route,

few believed that any could be built without substantial federal aid.*¢ In 1862, and then again in 1864, Congress legislated subsidies for the Union Pacific in two forms. Over the course of construction, the federal government provided loans of approximately $60 million. It also granted 24 million acres of land to the Union Pacific. Although loans were eventually phased out, the land grants increased for subsequent transcontinental lines. Before the land grants were terminated, roughly 130 million acres of public land had been transferred to the roads.*7 Because so much of the subsidized mileage ran through the territories rather than existing states, aid was provided directly to the railroads. This, combined with the sparse population in these territories and the physical barriers that had to be surmounted, muted traditional states' rights arguments against such a large-scale national commitment. Charles Francis Adams was correct when he pointed out that "in any other country" * John Lauritz Larson, Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States (Chapel Hill, NC: University of North Carolina Press, 2001), 226, 229-33, 236-39; Carter Goodrich, Government Promotion of American Canals and Railroads, 1800-1890 (New York: Columbia University Press, 1960), 169-70. See also Steven W. Usselman, Regulating Railroad Innovation: Business, Technology, and Politics in America, 1840-1920 (New York, NY: Cambridge University Press, 2002), 9-13.

Chicago Citations

Bibliography entry:

Balogh, Brian. *A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America*. New York: Cambridge University Press, 2009.

Footnote citation:

Brian Balogh, *A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America* (New York: Cambridge University Press, 2009), supplied PDF pages 305-306.

Shortened citation:

Balogh, *A Government Out of Sight*, supplied PDF pages 305-306.

CHAPTER 10 · SECONDARY SOURCE S10.49

Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes

Gerard N. Magliocca

WORK	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes
SELECTION	Presidential Reconstruction
SOURCE LOCATOR	supplied PDF pages 48-49 · University Press of Kansas, 2007.

Excerpt

Just as the president sought to overturn decades of practice on the autonomy of the Tribes, he faced equally powerful precedent in mulling over whether to veto the Maysville Turnpike. Prior to 1830, the consensus was that legislative precedents bound the other branches in their constitutional actions.”> Put another way, the conventional view was that custom was a powerful source of authority, not just something that filled gaps between Supreme Court cases. One of the best expressions of this view was Madison’s Bank Veto, discussed in chapter 1, where he swallowed his constitutional objections because Congress and the nation had repeatedly endorsed that institution. While Jackson was issuing his vetoes, Madison expanded on his position by explaining that a veto would be inappropriate in the face “of all the obligations derived from a course of precedents amounting to the requisite evidence of the national judgment and intention.”” Madison’s Bank Veto therefore created an informal limit on the veto power—based on consistent practice—that became quite influential prior to Jackson’s election.” Institutional arrangements and constitutional substance were now merging, and what followed shows once again how the initial allocation of political resources directs the flow of events during a transitional period. In the 1820s, the Jacksonian movement gave no consideration to how the president should inter act with Congress. If the Democrats had started with control of Congress, they probably would have used traditional arguments to advance their ideas. But that was not the situation. The president’s plan to alter the law was confronted by the same contention across the board—the status quo was fixed by repeated acknowledgments of its validity by the political branches.” Recall that Senator Sprague stressed this point, citing Madison’s Bank Veto, in opposing the Removal Act. Jackson could only achieve his aims by challenging the traditional view that legislative precedent was binding on the other branches. To smash this consensus, the president turned to the veto. Jackson vetoed more bills than all of his predecessors combined, and these were crucial in mobilizing public support.”® This tactic worked because it resonated with the deeper structure of the presidency. In a groundbreaking study of the executive branch, Stephen Skowronek writes that presidents are better at tearing things down than at building them up.” Vetoes capture this observation well, since they can only be used to end programs. This was no problem for Jackson, since he wanted to destroy the earlier generation’s view of federal power. The place to start was the Maysville Turnpike.

Chicago Citations

Bibliography entry:

Magliocca, Gerard N. *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes*. Lawrence: University Press of Kansas, 2007.

Footnote citation:

Gerard N. Magliocca, *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes* (Lawrence: University Press of Kansas, 2007), supplied PDF pages 48-49.

Shortened citation:

Magliocca, *Andrew Jackson and the Constitution*, supplied PDF pages 48-49.

CHAPTER 10 · SECONDARY SOURCE S10.50

Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America

Harry L. Watson

WORK	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America
SELECTION	Four More Years
SOURCE LOCATOR	Original pages 107–108 · Bedford/St. Martin's, 1998.

Excerpt

For Jackson, democracy for white men was the first key to preserving the Union, and he elevated the direct voice of the majority to a nearly divine status. “Never for a moment believe,” he admonished, “that the great body of the citizens of any State or States can ever deliberately intend to do wrong.” The reason was simple: Wrongdoing would inevitably injure the people themselves, so “their own interest requires them to be just to others, as they hope to receive justice at their hands.” For majority rule to work, however, the will of the majority must have teeth. Unjust or unconstitutional laws could be repealed by Congress or voided by the courts, but until then even bad laws represented the voice of the majority and must be obeyed by the minority. There could be no revival of nullification if the Union were to last.

Jackson did acknowledge that some future act of unspecified oppression might justify a revolution by the minority against the majority. Whether he would have regarded the election of an antislavery president like Abraham Lincoln as an oppressive act by a nonslaveholding majority against a slaveholding minority is obviously impossible to determine. Certainly many of his southern followers later saw Lincoln’s election in exactly that light and seceded from the Union in 1860-61 with the firm belief that their actions were consistent with Jackson’s legacy.

Whatever Old Hickory might have thought about the crisis of 1860-61, he was certainly dead set against abolitionism and moved directly from the theoretical discussion of revolution to a stern rebuke of antislavery agitation. The Union depended on fraternal harmony as much as laws, he observed, and urged his fellow citizens not to damage it by criticizing the local practices of other states. “All efforts on the part of people of other States to cast odium upon their institutions, and all measures calculated to disturb their rights of property or to put in jeopardy their peace and internal tranquillity, are in direct opposition to the spirit in which the Union was formed, and must endanger its safety.” Though he stood with Lincoln for an indissoluble Union, in other words, Jackson believed in a Union where the doctrines of abolitionism would be unmentionable and slavery remained sacrosanct.

Chicago Citations

Bibliography entry:

Watson, Harry L. *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America*. Boston: Bedford/St. Martin's, 1998.

Footnote citation:

Harry L. Watson, *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America* (Boston: Bedford/St. Martin's, 1998), 107–108.

Shortened citation:

Watson, *Andrew Jackson vs. Henry Clay*, 107–108.

CHAPTER 10 · SECONDARY SOURCE S10.51

Andrew Jackson & His Indian Wars

Robert V. Remini

WORK	Andrew Jackson & His Indian Wars
SELECTION	Andrew Jackson and His Indian Wars
SOURCE LOCATOR	Original pages 212–213 · Viking, 2001.

Excerpt

It is because the Indians knew that Jackson was eminently fair with respect to the distribution of annuities (especially in protecting the poor) and in carrying out the conditions of treaty agreements that they regularly came to him at the Hermitage or wrote him when they had complaints about the treatment they had received from either agents or the government. They knew he could be severe and harsh, but they also knew he would be fair and protect their rights. And he did not hesitate to demand the arrest and imprisonment of whites who violated treaty agreements.

Indian chiefs were not his only visitors during the months following his return from Florida. Once he was home and retired from the army, various friends and Tennessee politicians began talking to him about his future. Not surprisingly, the local newspaper in Nashville suggested his name as a possible successor to President Monroe, a suggestion quickly repeated by other newspapers in other states. By mid-1822 it was a foregone conclusion that his name would be formally advanced for the presidency, and on June 27, Felix Grundy, a local state representative, wrote and informed him that his many friends in Tennessee wanted to know whether there was any reason or cause which “would render it improper” for them to bring his name forward “for the office of Chief Magistrate of the U States at the approaching Election.”!

Jackson’s position on this subject was one he had long ago adopted. He would remain silent. “The voice of the people I am told would bring me to the Presidential chair,” he wrote, “and it is probable, some of the Legislatures may bring my name before the Public. —but I have long since determined to be perfectly Silent—I never have been a candidate for office, I never will.” The people, of course, have a right “to call for any mans services in a republican government—and when they do, it is the duty of the individual, to yield his services to that call.” That sentiment had always been his belief, even when ill and tired and almost overwhelmed with the criticisms leveled at him for his actions as a general and Indian commissioner. “I will be silent—neither sayi[ng] aye, or nay, altho I have been often solicite[d].” As for the presidency, he would serve if summoned but he would not actively seek the office.'* Accordingly, on July 20, the Tennessee legislature formally nominated Andrew Jackson for President of the United States. Simultaneously, there were a number of other developing candidacies aspiring to Monroe's chair, most of whom sat in the cabinet. To start, there was John Quincy Adams, who, as secretary of state, occupied the position that traditionally led straight to the presidency. Then there was William H. Crawford, the secretary of the treasury, who graciously, but foolishly, stepped aside in 1816, expecting Monroe to name him as successor—which of course Monroe did not. Finally, there was John C. Calhoun of South Carolina, the secretary of war. So, sneered the general, there they are, “all up for the Presidency, and he [Monroe] sits and looks on” without saying or doing anything. “Was I President I would Remove all who have come out as candidates for the Presidency—and fill my Cabinet with those whose whole time could be devoted to the duties of their office, and not to intrigue for the Presidency.”!º Thus began the long process to place General Andrew Jackson in the White House. But it did not come quickly, or with the ease that so many people predicted. The Tennessee legislature might nominate him, but the traditional nominating engine, a congressional caucus, rejected the bid put forward by the general’s friends and handed the prize to William H. Crawford. Some men had urged an end to caucus nominations, but they failed to take into account the political astuteness of Senator Martin Van Buren of New York, who succeeded in winning this nomination for Crawford, albeit with a much reduced number of participants in the caucus. Eventually there were five candidates: Adams, Crawford,

Calhoun, Jackson, and the distinguished Speaker of the House of Representatives, Henry Clay, a man Old Hickory despised.

Shortly thereafter, Calhoun's candidacy collapsed when Pennsylvania came out in support of Jackson. The secretary needed a strong northern endorsement, and without it he recognized the hopelessness of his candidacy and agreed to stand for the vice presidency instead.

To increase his visibility as a statesman and silence those who contended that the general lacked valid credentials for the presidency, Jackson's friends in Tennessee decided to run him for the office of U.S. senator against the incumbent, John Williams, a very vocal critic of Old Hickory's negotiations with the Chickasaws and his record as territorial governor of Florida. Although it took a great deal of hustling to round up the necessary votes, since Williams had already received a number of pledges of support, the Hero was elected to the U.S. Senate on October 1, 1823, by the narrow vote of 35 to 2s in the state legislature.!° The narrowness of the vote rankled, but Jackson took some comfort in the fact that of the twenty-five men who voted against him only three were reelected in the next election. "Every intrigue that could exist," he told his friend John Coffee, "—& indeed corruption was resorted to" by Williams's friends to defeat me. "I am a senator against my wishes & feelings—but from my political creed...] am compelled to accept."

Chicago Citations

Bibliography entry:

Remini, Robert V. Andrew Jackson and His Indian Wars. New York: Viking, 2001.

Footnote citation:

Robert V. Remini, *Andrew Jackson & His Indian Wars* (Viking, 2001), 212–213.

Shortened citation:

Remini, *Andrew Jackson & His Indian Wars*, 212–213.

CHAPTER 10 · SECONDARY SOURCE S10.52

Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power

Robert V. Remini

WORK	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power
SELECTION	Andrew Jackson and the Bank War
SOURCE LOCATOR	Original pages 46–47 · W. W. Norton, 1967.

Excerpt

However, there is some evidence to suggest that Jackson's bank policy lost him more votes in the election than it gained him.5* Many people and party leaders turned away from him because of his policy, and it was not until Biddle retaliated by curtailing loans and precipitating an economic panic in the winter of 1833-34 that the people came to recognize the merit of Jackson's complaints. In view of the considerable pro-Bank sympathy within the country and within Congress, it is remarkable that Jackson succeeded in destroying the BUS. If nothing else, it is a tribute to his consummate political skill in handling the electorate and the members of Congress.

Still, if Jackson was such an astute politician, and if he had any inkling of popular feeling about the Bank, why did he risk his reelection over the issue of recharter? Undoubtedly the reasons are varied; and to some extent he had little choice given Biddle's application for renewal in 1832. But perhaps the most important reason was Jackson's own wish to buttress presidential power with mass support—something never done before—and whether that support was given because of the issue itself or because of his enormous personal popularity was quite irrelevant. Once he had obtained mass approval he could then confront Congress with vastly strengthened institutional prerogatives, escalate the War if he chose, and, most important of all, force greater control over the direction of public affairs.

The changes Jackson inaugurated in the presidency introduces the final question involved in the War, namely the longrange effects of the destruction of the Bank upon the country and its institutions. Again, historians are sharply divided: some in-_ sist that Jackson's arrogance wrecked a splendid organization and initiated a century of unsound finance that made possible the chaotic business conditions of the Gilded Age; °' others applaud the destruction of the Bank as a needed action against an overprivileged corporation that had the ability and sometimes the will to hobble business and bully the government.®* But whatever interpretation one adopts, the fact is undeniable that Jackson's War against the Bank profoundly enhanced the power of the presidency. Even if he was wrong in crushing the monster, when curbing it would have been sufficient, even if he launched the country upon a long period of economic instability—and these are by no means certain—it is indisputable that Jackson, by his actions, transformed and permanently strengthened the executive arm of the government.

Once Jackson marked the Bank for execution, he made good his intention, this despite tremendous opposition both within and without his party. What state legislatures, state courts, and sundry individuals had repeatedly attempted and failed to do, he accomplished. It was no mean feat to pull down the BUS. Because the Bank was a powerful agency, well entrenched in the country, it would not disappear just because the President wished it to. His accomplishment, therefore, was more than a personal victory, more than a tribute to his popularity, and more than a testament to his abilities as a politician. It was an acknowledgment of the enhancement of presidential power.

As Jackson implemented executive prerogatives in his pursuit of the Bank, some citizens became deeply alarmed. They denounced him as a dictator, labeled him "King Andrew I," and mourned the passing of constitutional government. Some even contended that he had weakened the presidency by his aggressiveness because he had set an impossible standard for his successors who would (and often did) shrink from using the powers he had acquired for the executive office. All the same, once the powers were exercised they were available, ready to be employed again by such future strong Presidents as Lincoln, the Roosevelts, Wilson, and Truman. In other words there was genuine

institutional growth of the presidency under Jackson, not simply an expansion of power that contracted to its previous size after he left office.

The Bank War had another long-range effect. It reemphasized the Jacksonian concept that the President is the only elective officer of the national government representing all the people.

Chicago Citations

Bibliography entry:

Remini, Robert V. *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power*. New York: W. W. Norton, 1967.

Footnote citation:

Robert V. Remini, *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power* (New York: W. W. Norton, 1967), 46–47.

Shortened citation:

Remini, *Andrew Jackson and the Bank War*, 46–47.

CHAPTER 10 · SECONDARY SOURCE S10.53

Andrew Jackson

Sean Wilentz

WORK	Andrew Jackson
SELECTION	5. The Nullifiers'Uprising
SOURCE LOCATOR	Original pages reflowed ebook; no fixed page numbers · New York: Times Books, 2005.

Excerpt

Congress's approval of the Force Bill was all but assured, due to Jacksonian control of the House and the divisions between nullifiers and southern moderates in the Senate. And so, in somewhat clouded circumstances, the nullifiers quietly cut a deal whereby they would forswear their efforts to block the bill's passage and Congress would assent to the compromise tariff. When both measures passed, Calhoun took the Senate floor and delivered one last eloquent (and irrelevant) denunciation of the Force Bill. Thereafter, he left Washington directly for Columbia, to make sure that the more radical nullifiers would see the light and acquiesce.

There was little chance that the South Carolinians would persist. As soon as Congress passed the compromise tariff, the main issue had been resolved, and what support the nullifiers had received from other parts of the South disappeared. The nullification convention duly reconvened and, on March 11, rescinded its ordinance. As a largely symbolic parting shot, the delegates approved a new ordinance that nullified the Force Bill. They had lost on almost everything of practical importance, but they would not surrender their honor.

"I have had a laborious task here," Jackson wrote to one of his cousins in the spring, "but nullification is dead; and its actors and exciters will only be remembered by the people to be execrated for their wicked designs." The president, having vindicated his own honor as well as the Union's, overestimated his victory. In the South, even staunch Jacksonians admitted that, although nullification was impermissible, Jackson had overreacted and defended ideas that endangered state rights. "You can rest assured," one antinullification, normally pro-Jackson Mississippian told a friend, "S.C. has our sympathies." Many northern Jacksonians, although far more supportive of the president, still found his words and actions disquieting—at odds with Jeffersonian orthodoxy and unnecessarily antagonistic. Martin Van Buren, for one—concerned as ever about keeping the Jacksonian coalition intact and now anticipating his own eventual run for the presidency—could not get the New York legislature to unite in support of Jackson's nullification proclamation, and he personally opposed the Force Bill. Other anti-nullifiers saw the outcome as ominous in the long run. "Nullification has done its work," the South Carolina Unionist James Petigru wrote. "It has prepared the minds of men for a separation of the states—and when the question is moved again it will be distinctly union or disunion."[12]

Still, Jackson had good reason to feel victorious. With a mixture of angry threats and well-timed moderation, he had isolated the nullifiers and suppressed the immediate threat before him, without firing a single shot. Compared to his predecessor Adams's handling of challenges to federal authority, Jackson had acted with fortitude and cunning. Although he got no credit for the compromise tariff that was eventually enacted, he outmaneuvered the nullifiers, pushing Calhoun into a position from which he There was, to be sure, a great deal more to the nullification crisis than was fully apparent in the public accusations and debates. As Calhoun suggested early on, the struggle arose from the growing alienation of southern slaveholders, whose "peculiar domestick institution" placed them in "opposite relation to the rest of the Union." As James Petigru understood, the Compromise of 1833 did not settle the underlying issues of slavery and Union any more than the Missouri Compromise had. Jackson and his supporters could not see these deeper causes, and instead blamed the crisis on Calhoun's and the nullifiers' personal ambitions, either to dislodge Jackson or to break up the Union and install themselves as potentates. The impulse behind nullification, the Jacksonian Globe asserted, was "a politician's, not a planter's."[13]

If he misunderstood all that was at stake, though, Jackson presented a powerful and, for the moment, triumphant case about the central issue, the legitimacy of nullification. He thereby showed (contrary to the claims of many later historians) that protection of the democratic Republic, and not the protection of slavery, was his animating political principle. Devotion to the nation, the Constitution, and the will of the majority, Jackson declared, took precedence over allegiances to region, state, and locality. In defending that belief as he did, Jackson offended some of his own supporters, especially in the South, yet still squelched the nullifiers' uprising. He also established a crucial political and constitutional precedent. In later decades, southern slaveholders, expanding beyond Calhoun's arguments, would push the idea of state rights in protection of slavery to the point of disunionism. In 1861, they would force a secession crisis, once again centered on Charleston harbor, far more severe than the confrontation over the tariff in 1832–33. And when that happened, Jackson's successor Abraham Lincoln would rely on Jackson's nullification proclamation and his uncompromising actions for political guidance and strategic lessons.

Less than two days after Congress passed the compromise that ended the nullification crisis, Jackson was sworn in for his second term as president. He could look back with great satisfaction on what he had accomplished thus far, especially during the previous twelve months: gaining personal command of his administration, securing his Indian removal bill, vetoing the charter of the Second Bank of the United States, thwarting nullification, replacing John C. Calhoun with his chosen favorite, Martin Van Buren—and, in his reelection campaign, crushing Henry Clay. Along the way, he had aroused the support of some constituencies and lost that of others, building and refining what would soon emerge as a coherent national party, the Democracy.

Author's Notes

12. Morning Courier and Enquirer (New York), August 24 and 27, 1832.

13. RD, 22nd Cong., 1st sess., 1240, 1267; Biddle to Henry Clay, August 1, 1832, in John F. Hopkins et al., The Papers of Henry Clay (Lexington: University of Kentucky Press, 1959–92), 8:556.

Chicago Citations

Bibliography entry:

Wilentz, Sean. *Andrew Jackson*. New York: Times Books, 2005.

Footnote citation:

Sean Wilentz, *Andrew Jackson* (New York: Times Books, 2005), reflowed ebook; no fixed page numbers.

Shortened citation:

Wilentz, *Andrew Jackson*, reflowed ebook; no fixed page numbers.

CHAPTER 10 · SECONDARY SOURCE S10.54

The Rise of American Democracy: Jefferson to Lincoln

Sean Wilentz

WORK	The Rise of American Democracy: Jefferson to Lincoln
SELECTION	The Rise of American Democracy
SOURCE LOCATOR	Original pages 387–388 · W. W. Norton, 2005.

Excerpt

Buren himself opposed the Force Bill. Viewed from a certain angle, this fallout, along with Jackson's fracturing of his southern following, can make it seem as if the nullifiers, and not Jackson, had won the battle. Add in the fact that the nullifiers succeeded in gaining a tariff reduction, albeit a very gradual one, along with the fact that South Carolina Unionism virtually collapsed after 1833, and John C. Calhoun might even look like a triumphant political thinker and strate gist. Such, at least, was Calhoun's own assessment. More detached observers saw the long-term outcome as ominous. "Nullification has done its work," the Unionist James Petigru wrote. "It has prepared the minds of men for a separa tion of the states—and when the question is moved again it will be distinctly union or disunion."6

Yet Jackson also was certain that he had won, and with good reason. "I have had a laborious task here," he wrote, "but nullification is dead; and its actors and exciters will only be remembered by the people to be execrated for their wicked designs." With a combination of coercive threats and well-timed moderation, Jackson had scotched the immediate threat. He had vindicated the Union with much of his popular following, if not his Washington following, still intact. Although he got no credit for the compromise tariff, he had helped maneuver events so that Calhoun and his Carolina allies settled for far less than they had demanded —and less than Jackson himself had seemed to offer in his annual message in December 1832. Of all the major figures in the controversy, only Jackson had backed the Force Bill and some sort of tariff reduction, a stand which affirmed his view that nullification and the tariff were completely separate issues. He got his way on both. More broadly, he had articulated a theory of American constitutional democracy that combined Jeffersonian strict construc tion and respect for state rights with a validation of the American Union. Above all, Jackson had vindicated the idea that had become the keystone of his politics: in the American republic, the majority governs. To uphold that principle, he called on the nation to reject the slaveholder aristocrats, who in their zeal would dismember the Union itself.[68]

The struggle hardly turned the slaveholder Jackson's administration, let alone his intersectional party, into an antislavery force. Jackson did not even see the cri sis in those terms. He always ascribed the nullifiers' motivations to sheer political ambition. Now that they had lost, Jackson predicted, they would seize on "the negro, or slavery question" as their "next pretext." The Globe agreed, charging that the impulse behind nullification was "a politicians, not a planters." Yet the crisis did show that protecting slavery and slaveholders' rights did not lie at the core of Jackson's political philosophy. Democracy, not pro-slavery, was his ani mating principle, in the nullification crisis no less than when he vetoed the rechartering of the BUS. To defend democracy, he would fiercely attack the most vociferous pro-slavery bloc in the nation.[69]

There was, to be sure, a great deal more to the nullification crisis than met the eye. As James Petigru sensed, the compromise of 1833 did not settle the deeper issues at stake any more than had the Missouri Compromises of 1820 and 1821. The battle between Jacksonian democratic nationalists, northern and southern, and nullifier sectionalists would resound through the politics of slavery and anti slavery for decades to come. Jackson's victory, ironically, would help accelerate the emergence of southern pro-slavery as a coherent and articulate political force, which would help solidify northern antislavery opinion, inside as well as outside Jackson's party. Those developments would accelerate the emergence of two fundamentally incompatible democracies, one in the slave South, the other in the

free North.

As Calhoun had suggested early on, the struggle involved not simply protec tive tariffs or state rights but the deeper alienation of the slaveholding South, whose “peculiar domestick institution” placed it in “opposite relation to the majority of the Union.” Or, as a young, intransigent radical nullifier named Robert Barnwell Rhett proclaimed at the final gathering of the South Carolina nullification convention, not just the North but also “the whole world are in arms against your institutions:... Let Gentlemen be not deceived. It is not the Tariff—not Internal Improvement—nor yet the Force Bill, which constitutes the great evil against which we are contending.” The Globe’s prediction, after the cri sis had passed, that nullification would give way to an effort to arouse “the fear and jealousy of the South with regard to their slaves,” and push for disunion would come to seem prescient, even if pro-slavery ideals and not merely ambi tion would lie behind that effort."

Author's Notes

68. Jackson to Andrew J. Crawford, May 1, 1833, in CAJ, 5: 72.

69. Ibid.; Globe, Aug. 4, 1832.

Chicago Citations

Bibliography entry:

Wilentz, Sean. *The Rise of American Democracy: Jefferson to Lincoln*. New York: W. W. Norton, 2005.

Footnote citation:

Sean Wilentz, *The Rise of American Democracy: Jefferson to Lincoln* (New York: W. W. Norton, 2005), 387–388.

Shortened citation:

Wilentz, *The Rise of American Democracy*, 387–388.

CHAPTER 10 · SECONDARY SOURCE S10.55

Henry Clay: The Man Who Would Be President

James C. Klotter

WORK	Henry Clay: The Man Who Would Be President
SELECTION	8. Presidential Candidate II
SOURCE LOCATOR	Original pages 180–181 · Oxford University Press, 2018.

Excerpt

A second argument in the veto message used xenophobic and sectional appeals. Pointing to the fact that foreigners held about one-☐fourth of BUS stock, Jackson said that kept Americans from benefiting from the bank's success and gave aliens control over the finances, especially in times of war: "It should be purely American." He also used states' rights and sec tional arguments, stressing that the East, especially New England (where he had less political support), dominated bank counsels and stockholders. That deprived the Midwest and the South from sharing the wealth. Benefiting from centralized power and free from taxation—☐unlike state banks—☐the BUS was "principally a debt to the Eastern and foreign stockholders."[42]

But the political brilliance of the veto came from its open class appeals. The president represented a living person, the bank a faceless corporation. He embodied the people, the BUS typified the moneyed power. He voiced the simple, republican, yeoman ideals of the past; the bank epitomized the special, privileged, corporate present. The symbolism and the clarity of the words made the veto message all the more powerful. A monopoly, "dangerous to the liberties of the people," had the exclusive favor of the government. That should not be. Guided by a few designing men who acted behind closed doors and held con centrated power in their hands, the bank represented a threat to na tional self-☐determination: "The rich and powerful too often bend the acts of government to their selfish purposes" and use artificial, feder ally supported advantages "to make the rich richer and the potent more powerful." Instead of equal protection and equal benefits, the wealthy had used congressional action for their personal gain, thus arraying "section against section, interest against interest, and man against man." Instead, the message stressed, Jackson defended the humble and the oppressed. Such words appealed directly to the people, especially those in less fortunate circumstances, those who believed the corporations were responsible for their ills, those who saw Jackson giving vent to those frustrations through his presidential voice.[43]

Some parts of the veto were misleading at best: foreign stockholders held no voting rights, and the suggestion that the president had not been consulted about the bill and might have agreed to one that met his objections does not seem supported by the evidence. The veto narrative ba sically ignored all the good things the BUS did for the economy and the country's financial system. Jackson did not favor the bank, or probably any national bank, and certainly did not favor one supported and advocated by Clay. In fact, the veto signified a political attempt to redefine the 1832 pres idential race—☐and it did.[44]

For all its omissions, questionable logic, and faulty reasoning, the veto message resounded with some voters because certain charges rang true. The bank did have great power and influence, with few outside controls. It did operate beyond the light of public scrutiny. It did have politicians under its control through loans and retainers. It did have the potential to use its vast resources for or against a political candidate. Clay, Webster, Biddle, and other bank advocates saw clearly the positive effects of the BUS on the economy, but they were almost blind regarding the real concerns about the institution. Webster, for instance, haughtily rejected the president's constitutional arguments: "If that which Congress had enacted and the Supreme Court has sanctioned, be not the law of the land, then the reign of individual opinion has already begun." Clay, in turn, quickly denounced the veto with "deep alarm," especially for its errors regarding foreign con trol, its "unlawful" constitutional doctrines, and its creation of "general disorder and confusion" in financial circles. Both men made excellent ra tional, legal arguments. Both expected the people to rally to their inter pretation. And both for the longest time failed to grasp the power of the emotional appeals inherent in

the veto. Vulnerable on the spoils system, the divisions within his party, the growing corruption, the Indian issue, the tariff, and more, Jackson had turned attention elsewhere in the presi dential contest by focusing on the bank. In that war of words and images, Clay could not win. The veto gave Jackson an issue more recent than the “corrupt bargain” charge, and produced a kind of temporary amnesia about the administration’s problems. The Jackson newspapers took up the new attack strategy in earnest.[45]

Author's Notes

42. Watson, Jackson vs. Clay, 183–□85.

43. “Representative Men, Part II,” Southern Literary Messenger 19 (1853): 588; James David Barker, Politics by Humans: Research in American Leadership (Durham, NC: Duke University Press, 1988), 7; Watson, Jackson vs. Clay, 181–□82, 184, 187.

44. Daniel Feller, The Jacksonian Promise: America, 1815–□1840 (Baltimore: Johns Hopkins University Press, 1995), 170.

45. Howe, What Hath God Wrought, 375; Sellers, Market Revolution, 322; RD, 22nd. Cong., 1st Sess. (1831–32), 1221–□40, 1273, 1269; Wilentz, American Democracy, 373. 482

Chicago Citations

Bibliography entry:

Klotter, James C. *Henry Clay: The Man Who Would Be President*. New York: Oxford University Press, 2018.

Footnote citation:

James C. Klotter, *Henry Clay: The Man Who Would Be President* (New York: Oxford University Press, 2018), 180–181.

Shortened citation:

Klotter, *Henry Clay*, 180–181.

CHAPTER 10 · SECONDARY SOURCE S10.56

Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States

John Lauritz Larson

WORK	Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States
SELECTION	A NATIONAL REPUBLICAN ALTERNATIVE
SOURCE LOCATOR	Original pages 66–67 · University of North Carolina Press, 2001.

Excerpt

Maybe so, Calhoun agreed, but it was proper, or at least practicable, to set apart money first because a detailed bill could not be passed: “The enemies to any possible system in detail and those who are opposed in principle, would unite and defeat it.”6º Two novel points emerged in Calhoun’s arguments. First, the young South Carolinian could not imagine constitutional restrictions that endangered the Union itself. Many postwar nationalists in Congress agreed. Second, what was politically expedient was indistinguishable in his mind from what was natural and proper. If the fund must precede the system because rival interests would lay waste detailed designs, then such was the correct approach. Having made his case, Calhoun urged the Fourteenth Congress to seize the initiative and get the credit for establishing the system. “No body of men,” he thought, “ever better merited the confidence of the country.” They had been slandered by the public over the Compensation Act, and Calhoun wished to restore their reputation by adding internal improvements to “the many useful measures already adopted.” In much the same way Madison had tried to rescue leadership by setting out a positive agenda, Calhoun was trying to bind the people to their federal government before state and local politics completely mastered their allegiances. Responses to Calhoun’s arguments occupied the House all week. Friends of the bill identified different sources of congressional authority: the general welfare clause, the commerce clause, or the several defense provisions. Some opponents claimed they would support the bill if it specified a system, but most speakers attacked the question of constitutional power. Thomas Bolling Robertson of Louisiana blasted Calhoun’s entire premise, pointing out that equal benefits had been offered by history’s greatest tyrants. Expediency did not make the system safe or republican. Give the money to the states, Robertson concluded, and avoid the “disgraceful scene” that surely would follow, “when we shall be called upon to designate the position and course of the contemplated roads and canals, when all our local feelings will be up in arms, and, under a pretense of a general welfare, we shall have in view exclusively the interests of the State or district which we represent.” Having thus pulled down the mask of disinterestedness, Robertson touched upon what for many states’ righters was the heart of the matter: this bill promised to create “one grand, magnificent, consolidated empire.” To prevent these scheming nationalists from using roads and canals to consolidate their national empire, Robertson moved to distribute funds directly to the states according to population—terms once proposed by Jefferson but rejected by Gallatin as incompetent to guide a national system. Henry Clay descended from the speaker’s chair to oppose the change. Proportional spending destroyed the potential for a system because funds could not be concentrated for national objectives. Timothy Pickering of Massachusetts inserted “with the consent of the State” into a substitute motion, which Calhoun denounced as ruining the bill. State consent, like proportional spending, stripped away federal power to design or direct improvements. Both amendments prevailed; yet even so disarmed, the Bonus Bill passed by only two votes over the combined resistance of radical Virginia Republicans and unreconstructed New England Federalists. In these debates, new Republican nationalists clashed with states’ rights anticonsolidationists, each side drawing proudly from the political legacy of Jeffersonian and Madisonian Republicanism. Frustrated in their pursuit of great national objectives by vindictive party spirits and petty local interests, Clay and Calhoun labored (as had Madison himself in 1786 on behalf of a new frame of government) to gain power to do what they thought was the right thing by whatever means seemed to be available. “Old Republicans” like Randolph and Robertson took their cues from Jefferson’s bitter opposition to Hamilton’s banking system, condemning legislative construction and the schemes of national improvers as if they were latter-day monarchists. Remnant Federalists watched with glee, voting against what they probably supported just to stir up the ranks of their enemies. Thinking they had snatched the hope of the Union from this irresponsible melee in Congress, Clay and Calhoun proudly delivered the Bonus Bill to President Madison three days before his term expired. Perhaps the nationalist agenda was secure after all.. On ^{2}March 1817, at a farewell reception at the White House, Madison stunned Calhoun with news that he would veto the Bonus Bill. The next day Clay sent a confidential letter to Madison begging a reprieve: “Knowing that we cannot differ on the question of the object of the Internal Improvement bill, however we may on the Constitutional point, will you excuse me for respectfully suggesting whether you could not leave the bill to your successor?” But Madison could support neither the effect of the bill they presented nor the reasoning by which they had obtained it. In their desperation to get authority into national hands, Clay and Calhoun had accepted a bill with no power to control local spoilsmen except by packaging their greed in pork barrels. Further, they had reinterpreted the Constitution to suit the wishes of majorities outdoors—a revolutionary practice virtually invented by Jefferson and Madison in the early years of the republic, but one the aging framer could not sanction in

the hands of the coming generation. Much as he wanted progress toward internal improvements, Madison could not authorize such corruption in both the practice and structure of the American federal government. Madison's veto surprised the entire Washington community. The president's nationalism had risen steadily since the 1800 election.

Author's Notes

2. The standard survey is Taylor, Transportation Revolution, see also MacGill et al., Transportation in the United States before 1860; Goodrich, Government Promotion; and Shaw, Canals for a Nation.

Chicago Citations

Bibliography entry:

Larson, John Lauritz. *Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States*. Chapel Hill: University of North Carolina Press, 2001.

Footnote citation:

John Lauritz Larson, *Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States* (Chapel Hill: University of North Carolina Press, 2001), 66–67.

Shortened citation:

Larson, *Internal Improvement*, 66–67.

CHAPTER 10 · SECONDARY SOURCE S10.57

The Great Triumvirate: Webster, Clay, and Calhoun

Merrill D. Peterson

WORK	The Great Triumvirate: Webster, Clay, and Calhoun
SELECTION	The Great Triumvirate
SOURCE LOCATOR	supplied PDF pages 189-190 · Oxford University Press, 1987.

Excerpt

Webster defended the historic policy for the national domain as both liberal and wise. Even before the lands were pledged to the retirement of the debt, they constituted a common fund for the common benefit, not just for western states or for settlers or speculators. The policy had been a resounding success. Webster portrayed for the senators Ohio as it was thirty-five years ago, after the Battle of Fallen Timbers—"'fresh, untouched, unbounded, magnificent wilderness'—and Ohio in 1830, more populous than all but two or three of the original states. Obviously the West had grown and prospered under the parental care of the national government. Webster vigorously repelled the charge of eastern hostility to the West. "The East! the obnoxious, the rebuked, the always reproached East!... Sir, I rise to defend the East."° The protective tariff, the subject of so much reproach, actually began as a southern policy, and although finally forced on New England, it was not a policy from which hostility to the West naturally flowed. New England votes had carried many appropriations for the National Road. New England, said Webster, was the benefactor of the West. The system of land survey prior to sale originated in New England. Nathan Dane, a Bay Stater, framed the Northwest Ordinance of 1787 and was deservedly honored as the Solon of the West. Lauding the no-slavery proviso of the famous ordinance, Webster contrasted the prosperity of the states north of the Ohio River with the impecunious condition of those to the south. By thus identifying eastern policy with anti-slavery, and the interests of the West with both, Webster struck at the basic contradiction in the alliance of South and West. The orator's purpose, of course, was to make his issue with the South rather than the West and, having vindicated New England, to carry the campaign into enemy country. Benton was ignored. To Hayne's wail of "Consolidation!" Webster responded with a fervent plea for the Union. There were, he knew, men in Hayne's part of the country who considered the Union a question of expediency, a mere matter of profit and loss, and who believed, in Thomas Cooper's notorious phrase, "it is time to calculate the value of the Union." To politicians of this school the Union was a means of good or a means of evil but never a good in itself.

Not only was the Union exalted; its strength and preservation were made to depend on the very consolidation that Hayne condemned. Turning to the issue of "corruption," which was the twin of consolidation in Hayne's state rights philosophy, and which he had decried in the government's public land system, Webster asked a series of rhetorical questions that reduced the charge to absurdity.

These lands are sold at public auction, or taken up at fixed prices, to form farms and freeholds. Whom does this corrupt? According to the system of sale, a fixed proportion is everywhere reserved as a fund for education. Does education corrupt?... Can there be nothing in government except the exercise of mere control? Can nothing be done without corruption, but the impositions of penalty and restraint? Whatever is positively beneficent, whatever is actively good, whatever spreads about benefits and blessings which all can see and all can feel, whatever opens channels of intercourse, augments population, enhances the value of property, and diffuses knowledge—must all this be rejected and reprobated as a dangerous and obnoxious policy, hurrying us to the double ruin of a government, turned into despotism by the mere exercise of acts of beneficence, and ofa people, corrupted, beyond the hope of rescue, by the improvement of their condition?"

In this breathtaking passage, Webster expanded the narrow issue of public land policy into an issue between two philosophies of government—one negative, the other positive; one founded in fear, the other in hope; one turning on laissez-faire, the other active and promotional in the manner of the American System.

Chicago Citations

Bibliography entry:

Peterson, Merrill D. *The Great Triumvirate: Webster, Clay, and Calhoun*. New York: Oxford University Press, 1987.

Footnote citation:

Merrill D. Peterson, *The Great Triumvirate: Webster, Clay, and Calhoun* (New York: Oxford University Press, 1987), supplied PDF pages 189-190.

Shortened citation:

Peterson, *The Great Triumvirate*, supplied PDF pages 189-190.

CHAPTER 10 · SECONDARY SOURCE S10.58

The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War

Michael F. Holt

WORK	The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War
SELECTION	2 "To Rescue the Government and Public Liberty"
SOURCE LOCATOR	Original pages 28–29 · Oxford University Press, 1999.

Excerpt

This last point merits amplification, for the impulse behind the formation of the Whig party has often been misrepresented. Historians have normally portrayed the name "Whig" as a sheer expedient, designed to assemble the widest possible assortment of men who had nothing in common save hatred, fear, resentment, or jealousy of Jackson and his allies. They usually stress the negativism of the Whig party, sneer at its dearth of ideas and ideals, and point to the diversity of its constituent elements as proof of its instability and opportunism. One early student of its formation wrote that "Principles had little part in the origins of the Whig party." Twenty years later, Arthur M. Schlesinger, Jr., called the cry of executive tyranny a fac¸ade behind which disgruntled conservatives could hide their greed. "The Whigs," wrote Schlesinger, "in scuttling Federalism, replaced it by a social philosophy founded, not on ideas, but on subterfuges and sentimentalities. As Henry Adams observed, 'Of all the parties that have existed in the United States, the famous Whig party was the most feeble in ideas.'

As already noted, the men who formed the Whig party in the winter of 1833– 34 had often opposed each other over national and state issues during Jackson's first term. Although congressional Whigs in 1834 showed surprising unity in supporting Clay's proposal to distribute federal land revenues to the states and several other measures, original National Republicans and southern state rights men like Mangum remained profoundly at odds over national promotion of economic development.[27] "The principles that you and I hold to be the only conservative principles of our Federative system," Mangum lamented to a North Carolina friend in October 1834, "are scarcely comprehended by the most intelligent of the National Republicans" in "the North & East."[28] Common opposition to Jackson therefore was, at least initially, the strongest bond uniting incipient Whigs. Opposition to, and perceived difference from, the Democratic party would, indeed, remain essential to the vitality of the Whig party throughout its lifetime. It was intimately bound to, and decisively shaped by its relationship with, the Democratic majority.[29]

Nonetheless, strictures about the ideological bankruptcy of the early Whig party are wrong-headed. Opposition to executive tyranny was based on principle, a principle with profoundly powerful ideological ramifications. Only a passionate devotion to the Revolutionary experiment in republican government and a common conviction that Jackson threatened it explain how men with such diverse views on other matters formed a united front against him.

From the Whigs' perspective, everything that Jackson had done demonstrated his intention to amass power in his own hands; to upset the constitutionally mandated balance among the branches of the federal government; to subvert or destroy the independence of other political leaders and voters through patronage, the influence of his pet banks, or intimidation; and thereby to crush popular liberty. Convinced that Jackson was following the same classic scenario as King George III in orchestrating a conspiracy against popular liberty, his opponents adopted the name "Whig" to signal their commitment to the independence of the other branches of government and of the people. As Mangum saw it, he and other Whigs were "The Independents," whereas Jacksonians were "the absolute submissionists, (I mean submission to the bad influences here in Washington.)" Or, as the Raleigh, North Carolina, Register rejoiced in June 1834, "The happy cognomen of Whigs, which all parties opposed to Executive usurpation

had adopted," provided "a standard under which... men of all parties, could rally in defense of LIBERTY against POWER.'

To defend liberty was to give the Whig party at birth a greater ideological legitimacy with the American voting public than the National Republicans had ever enjoyed. By itself the name helped to erase the stigma of antirepublican elitism that had stunted the growth of its predecessor and to supply the credible appeal to republican values necessary for any party that hoped to compete successfully with the Jacksonian Democrats. Through this party, it promised voters, you can perform your duty to preserve the fruits of the Revolution.

Hence the assertion that the adoption of the name "Whig" "fixed attention upon opposition to Jackson rather than upon principles as the reasons for the party's existence" utterly misses the central ideological foundation of the party. Opposition to Jackson was based on principle. Whigs saw themselves acting from the necessity, as Clay had put it, "to rescue the Government and public liberty, from the impending dangers, which Jacksonism has created." "A Whig in its pure signification," pronounced Richmond, Virginia's, Whig in April 1834, "means one who prefers liberty to tyranny—who supports privilege against prerogative—the rights and immunities of the people, as ascertained by the equity of nature, the Constitution and the laws of the country, against the predominance of the Crown, or Executive power.'

Rank-and-file Whigs repeatedly echoed their leaders' fears about the threat that executive tyranny posed to republican self-government. In 1834, for example, a New Yorker wrote to Clay of his "trembling sense of alarm" about "the measures of the present Executive." Jackson displayed "an unbridled lust of power, that attacked the very foundation of our free institutions." A North Carolinian added that "we are at present under a practical despotism & unless the ballot boxes shall vindicate a violated Constitution, it is fearful to think of our Country's doom.'

Author's Notes

27. Alexander, Sectional Stress, pp. 9–11; McCormick, "Was There a 'Whig Strategy' in 1836?" 50–52.

28. Willie P. Mangum to John Beard, October 7, 1834, in The Mangum Papers, II, pp. 212–19.

29. My thinking about the interrelatedness of parties in any party system has been influenced by Sartori, Parties and Party Systems, pp. 25–28, 43, and passim.

Chicago Citations

Bibliography entry:

Holt, Michael F. *The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War*. New York: Oxford University Press, 1999.

Footnote citation:

Michael F. Holt, *The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War* (New York: Oxford University Press, 1999), 28–29.

Shortened citation:

Holt, *The Rise and Fall of the American Whig Party*, 28–29.

CHAPTER 10 · SECONDARY SOURCE S10.59

Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power

Robert V. Remini

WORK	Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power
SELECTION	The War Begins
SOURCE LOCATOR	Original pages 81–82 · W. W. Norton, 1967.

Excerpt

Still, he believed with almost religious fervor that he was acting for the public good in striking down this extragovernmental "power in the State." He felt the people would understand this and sustain him in the coming battle. And it was essential that they sustain him, he felt, if he was to represent them before the Congress. "Providence has had a hand in bringing forward the subject at this time," he told Kendall, "to preserve the republic from its thraldome and corrupting influence." ** Thus, certain of popular approval and convinced of the Bank's evil influence, Jackson wrote the veto, doing it in such manner as to "leave the Subject open for the decision of the people at their next Election." °° The actual writing of the message was the work of several men: Jackson himself, Taney, Amos Kendall, Andrew J. Donelson, and Levi Woodbury.*® What resulted was not a typical veto that simply directed itself to the constitutional issue, but a message that for the first time invoked political, social and economic, as well as strictly legal, arguments. Previous presidents had used the veto a total of nine times, but only on three occasions had important legislation been involved. Jackson vetoed twelve times, more than all his predecessors combined, and he negated bills for reasons that had nothing to do with their constitutionality. What he did in effect was to make the veto power an important presidential instrument in controlling legislation. Hereafter the threat of a possible veto for any reason forced the Congress to consider carefully the President's wishes on all bills before legislating them. This essentially changed the relationship between the legislative and executive branches, and immeasurably strengthened the latter. It was one of Jackson's important contributions to the development of presidential power; indeed, said one historian, Jackson successfully claimed that the weight of the chief executive was the equivalent of two-thirds of both houses of Congress.' The Bank veto of July 10 is the most important presidential veto in American history. It was a powerful and dramatic polemic, cleverly written to appeal to the great masses of people and to convince them of the truth of its arguments. The President claimed that the Bank enjoyed exclusive privileges that gave it a monopoly of foreign and domestic exchange. Worse, eight millions of its stock were held by foreigners. "By this act the American Republic proposes virtually to make them a present of some millions of dollars," said Jackson— and why should the few, particularly the foreign few, enjoy the special favor of the country? "If our Government," he continued, "must sell monopolies... it is but justice and good policy... to confine our favors to our own fellow citizens, and let each in his turn enjoy an opportunity to profit by our bounty." Over and over, like the intense nationalist he was, Jackson reiterated his concern over this foreign influence within the Bank.*?

Then the President turned to the constitutional question involved in the recharter. He noted that the Supreme Court in McCulloch v. Maryland had judged the Bank constitutional. "To this conclusion I cannot assent," he declared. Elaborating, he announced that the Congress and the President as well as the Court "'must each for itself be guided by its own opinion of the Constitution. It is as much the duty of the House of Representatives, of the Senate, and of the President to decide upon the constitutionality of any bill or resolution which may be presented to them for passage or approval as it is of the supreme judges when it may be brought before them for judicial decision. The opinion of the judges has no more authority over Congress than the opinion of Congress has over the judges, and on that point the President is independent of both.

Chicago Citations

Bibliography entry:

Remini, Robert V. *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power*. New York: W. W. Norton, 1967.

Footnote citation:

Robert V. Remini, *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power* (New York: W. W. Norton, 1967), 81–82.

Shortened citation:

Remini, *Andrew Jackson and the Bank War*, 81–82.

CHAPTER 10 · SECONDARY SOURCE S10.60

Daniel Webster: The Man and His Time

Robert V. Remini

WORK	Daniel Webster: The Man and His Time
SELECTION	The Whig Party 41
SOURCE LOCATOR	supplied PDF pages 333-334 · W. W. Norton, 1997.

Excerpt

Since the founding of the Union under the Constitution a great many men had beheved that if they became dissatisfied with the workings of the system, or selves a new government. No more. That beliefwas moribund, as far as Webster was concerned. He looked to the day when the "Union may be perpetual. country from which the honorable member comes, who habitually speak of the Union in terms of indifference, or even of disparagement." Not the honorable member himself, of course.

This is the first time that Webster called himself anything other than a Federalist. By these words he finally conceded that he had become a Repubh- Hayne s presumed attack on his section of the country. Actually Hayne had not attacked the East; Benton was the culprit. By rights Webster should have responded to Benton, but he deliberately chose Hayne as his target in order to provoke a debate on the Calhoun doctrine of interposition. "The East!" boomed Webster, "the obnoxious, the rebuked, the always reproached East!" We are charged with the crime of "a narrow and selfish policy," of attempting to restrain western migration and western interests. "And the cause of all this narrow and selfish policy, the gentleman finds in the tariff; I think he called it the accursed policy of the tariff." Webster had no difficulty in denying the charge, pointing out that New England had always opposed the votes. "It was truly more a Southern than an Eastern measure." He continued at some length about the unfairness of the everlasting attacks on New England. As for opposing western settlement, he reminded the Senate that in 1825, debating George McDuffie of South Carolina in the House, he had defended lower prices for land to encourage migration while McDuffie had deplored them because they would drain the population of the East. Next he touched on a subject that he knew would explode any possibiHty of an aUiance between the South and the West: slavery. It was a stroke of pofitical that the Northwest Ordinance of 1787, by which the West could be settled and admitted as states, was "drawn" by Nathan Dane, then and now a citizen of Massachusetts.^^ The ordinance forbade slavery. It thereby "fixed for ever the character of the population in the vast regions northwest of the Ohio, by excluding from them involuntary servitude." Webster obviously impHed that such a population could never ally itself with the slaveowners of the South. The mere mention of slavery was sure to provoke a response, and as Webthis chamber could usually prompt heated debate.

Chicago Citations

Bibliography entry:

Remini, Robert V. *Daniel Webster: The Man and His Time*. New York: W. W. Norton, 1997.

Footnote citation:

Robert V. Remini, *Daniel Webster: The Man and His Time* (New York: W. W. Norton, 1997), supplied PDF pages 333-334.

Shortened citation:

Remini, *Daniel Webster*, supplied PDF pages 333-334.

CHAPTER 10 · SECONDARY SOURCE S10.61

Andrew Jackson

Sean Wilentz

WORK	Andrew Jackson
SELECTION	Andrew Jackson
SOURCE LOCATOR	Original pages reflowed ebook; no fixed page numbers · New York: Times Books, 2005.

Excerpt

Jackson's reply also elaborated his larger ideas about a democratic presidency. On the question of William John Duane's dismissal, Jackson charged that the Constitution only gave the Senate the power to advise and consent over nominations to executive posts. Once approved, cabinet officers served solely at the pleasure of the president. The president, moreover, had a special position in the federal government, along with the vice president, as "the direct representative of the people." Clay's censure resolution tried to undermine that constitutional distinction by granting Congress, "a body not directly amenable to the people," a power over the executive branch neither stated nor envisaged by the Framers. Clay and others had accused Jackson of usurpation; on the contrary, Jackson retorted, it was his opponents who wished to usurp the president's authority by inventing new congressional privileges in order to oversee and bully the executive. If Clay's censure stood, the federal government would move closer to resembling a parliamentary system, directly contradicting the intentions of Madison and the other Framers.[8]

None of this impressed the Clay-Calhoun coalition. The Senate approved the censure a second time by a larger margin than before, and did not even allow Jackson's protest to be included in the Senate journal. Outside Washington, however, the tide was turning against Nicholas Biddle and the Bank, the actual sources of all the trouble. Infuriated by the Bank's continued contraction of credit, business leaders from New York and Boston demanded over the spring and summer of 1834 that Biddle relent lest they repudiate him publicly and bring fully to light how his policies were harming the nation. Finally, in mid-September, Biddle gave way, resuming the Bank's lending, halting the so-called Biddle Panic, and ending his effort to force Jackson's hand.

The downturn's economic effects turned out to be less severe than expected, thanks in part to the state banks' emissions of paper currency, which sustained the nation's overall money supply. But the Biddle Panic, and the Bank War generally, brought dramatic and lasting political changes. Prior to 1833, Jackson's policies had caused various elements of his original political coalition to defect. Yet these offended constituencies had little basis on which to unite with each other or with the National Republicans. Calhoun and the southern nullifiers were basically at odds with constitutional nationalists like Clay and Daniel Webster, as well as with ex-Jacksonians whose main complaint was the Bank veto. The protective tariff and Clay's American System were anathema to erstwhile pro-Jackson slaveholders. The surprisingly popular northern Anti-Masons, although ill disposed to Jackson, remained alienated from Henry Clay, a Mason.

The continuation of the Bank War provided these groups, as well as Conservative Democrats opposed to the deposit removals, with a rallying point—not in support of the Bank (which, as even Clay began to realize late in 1834, was beyond salvation) but against Jackson as an executive tyrant. To National Republicans and Conservative Democrats, Jackson was a would-be Caesar, whose power rested on the support he and his minions had whipped up from the frenzied mob. To Christian humanitarians, Jackson was a despot who tolerated human slavery and force-marched the Indians to the West. Nullifiers and their southern sympathizers considered Jackson a traitor to state rights.

These shared antipathies also derived from the Jacksonians' own growing confidence and capacities as a political party, now known simply as the Democracy. After winning the White House with their polyglot coalition of 1828, Jackson and his lieutenants had refined their party's policies and reinforced their organization. From the top of political society to the town, village, and ward levels, Jackson supporters had constructed a coherent new national political structure, focused on electing other Jackson supporters to office. State and local party conclaves would

select candidates and enlist loyalists to get out the vote. Party newspapers, from the Globe in the nation's capital down to sheets turned out in rural printing offices, spread the Democracy's message, kept politics roiling between elections, and advertised the activities of the local Hickory Clubs and other pro-Jackson associations. In the Bank War and the nullification crisis, the Jacksonians also hammered out a political ideology and identity far sharper than the amorphous "reform" program of 1828—an ideology that combined three interwoven strands: robust nationalism on constitutional issues tempered by a restraint on federal support for economic development and a strict construction; a distrust of what Jackson called the corrupting power of "associated wealth"; and a celebration of what one pro-Jackson newspaper called "[t]he democratic theory… that the people's voice is the supreme law."[9]

Author's Notes

8. According to one eyewitness, Jackson labored so furiously on the proclamation, writing out memoranda and possible passages with a steel pen, that when he had completed ten pages, the ink on the first was still wet. See Parton, Jackson, 3:465–67.

9. Richardson, 2:1203–19.

Chicago Citations

Bibliography entry:

Wilentz, Sean. *Andrew Jackson*. New York: Times Books, 2005.

Footnote citation:

Sean Wilentz, *Andrew Jackson* (New York: Times Books, 2005), reflowed ebook; no fixed page numbers.

Shortened citation:

Wilentz, *Andrew Jackson*, reflowed ebook; no fixed page numbers.

CHAPTER 10 · SECONDARY SOURCE S10.62

The Political Culture of the American Whigs

Daniel Walker Howe

WORK	The Political Culture of the American Whigs
SELECTION	The Political Culture of the American Whigs
SOURCE LOCATOR	Original pages 90–91 · University of Chicago Press, 1979.

Excerpt

It was the most common Whig appeal to the electorate, and it proved effective enough to win a big victory in 1840. The Whig campaign of that year hammered away at the theme of executive encroachments. Harrison promised to set a good example of restraint: to exercise the veto sparingly, to poll his cabinet on decisions, to put a stop to the worst abuses of the spoils system, and not to run for reelection. He even promised to defer to the wishes of Congress on the Bank issue (a safe enough commitment if a Harrison victory elected a Whig Congress on his coattails—as it did).®! One reason historians have disparaged the alleged lack of issues in the 1840 campaign is that they have refused to take opposition to the executive seriously as an issue. They have seen only the self-interest of the "outs" and have been oblivious to the cultural power of the country-party tradition that "outs" had been exploiting for hundreds of years. If some Whig politicians exploited it opportunistically, they were doing no more than many observers have suspected Bolingbroke of doing in the eighteenth century. In any case, like Bolingbroke, they recognized the strength of the tradition and contributed to it. But Whig opposition to a strong executive extended beyond tactical opposition to Democratic incumbents. During the 1840s Whigs consistently opposed granting strong powers to the executive in the state constitutional conventions of the Old Northwest.®2 We are often told that the Whigs, in favoring a weak executive, were reversing the earlier conservative position in America; such a reversal appears, however, only if one assumes the Whigs to have been a continuation of the Federalists.8? Viewing the Whigs within a country-party tradition puts the matter in a different light. Both Whigs and Democrats claimed to be heirs of the Republican party of Jefferson though both in fact contained some former Federalists. Ex- Federalists like Daniel Webster became willing to cite Jefferson as an opponent of executive power once they had identified themselves as Whigs.* The closest ideological predecessors of the Whigs seem to have been not the Federalists but the "moderate" or "nationalistic" wing of the Republicans. This group combined, as the Whigs did later, a country-party respect for constitutional balance, legal tradition, and executive restraint with belief in federally sponsored economic development and government "for" rather than "by" the Peers AAS ARMS NY pak representative Of this brand Of Kepublicanism, and the patron saint of Whiggery, was James Madison. It is well known (or it should be) that Jefferson disapproved of Jackson's candidacy in 1824; it is even more significant that Madison and Gallatin, who were still alive in 1832, when the issues of the Jacksonian era had been clearly drawn, supported Clay for president that year.

On March 3, 1841, William Henry Harrison repeated all of his campaign pledges in an elaborate inaugural address, full of classical allusions, that he had written himself but permitted Webster to edit. He coupled his promises of executive restraint with admonitions to the people. They should remember that they had limited their sovereignty by fundamental law. They should not allow themselves to be misled by 'designing men," who would play upon their "passions" and pretend to protect them from aristocracy. Actually, Harrison assured his audience, history proved there was no danger that a constitutional republic would degenerate into an aristocracy; "the tendency of all such governments in their decline is to monarchy.'"86 It was a day of bitter cold, and the speech went on much longer than most inaugural addresses. Perhaps the new president wanted to lay to rest any doubts that the "log cabin and hard cider" slogans might have created about his background and to display his classical education. But the proud old man had refused to wear an overcoat for the occasion. He caught the fatal chill that led to pneumonia. William Henry Harrison's dedication to the classical republican tradition and to the image of the heroic orator cost him his life.

The bitter confrontation that ensued between Harrison's successor, Tyler, and the congressional Whigs, led by Clay, confirmed all the Whigs' resentments of presidential power. Lacking a two-thirds majority in both houses, they could neither override Tyler's vetoes nor amend the Constitution, as they threatened, to permit vetooverriding by a simple majority. Robbed of the fruits of their triumph, some Whigs fell to envying the British Constitution, which allowed the legislative body to vote an executive out of office. Even more than under Jackson, the cabinet resisted the president's will. The dramatic coordinated resignation of all Tyler's cabinet save Webster reflected something of the British example of collective responsibility. Tyler counterattacked through his patronage powers, seeking to build up a following of his own; these officeholders went through the motions of a convention to renominate him in 1844 but failed to attract a significant constituency. Such behavior could only remind the Whigs of the shameful machinations of a "court party."

Chicago Citations

Bibliography entry:

Howe, Daniel Walker. *The Political Culture of the American Whigs*. Chicago: University of Chicago Press, 1979.

Footnote citation:

Daniel Walker Howe, *The Political Culture of the American Whigs* (Chicago: University of Chicago Press, 1979), 90–91.

Shortened citation:

Howe, *The Political Culture of the American Whigs*, 90–91.

CHAPTER 10 · SECONDARY SOURCE S10.63

The Presidency of Andrew Jackson

Donald B. Cole

WORK	The Presidency of Andrew Jackson
SELECTION	14 An Ambivalent Presidency
SOURCE LOCATOR	Original pages 274–275 · University Press of Kansas, 1993.

Excerpt

Yet to say that he transformed the presidency or became the first modem president is stretching the point. He was not tested by the chal lenges in foreign policy that have faced almost all presidents since Grover Cleveland, nor was he asked to construct economic programs as have so many presidents in the twentieth century. His assertion of the power of the executive in his veto of the recharter bill was primarily a defensive stand against the Supreme Court. He did make a strong state ment of executive power in his Protest against the censure resolution, but he soon retracted much of it. Since he rarely had control of Con gress, he was unable to have many bills passed into law—aside from his administrative reforms.

Nor does Jackson's use of the veto power show that he was a strong president. He did veto twelve bills, two more than all the presidents before him, but the vetoes demonstrated more weakness than strength— his inability to prevent Congress from passing bills that he opposed. It was typical of his presidency that when he pocket vetoed Rives's bill to do away with the Specie Circular the day before he left office, he saved it for only one more year. Jackson's use of the veto, furthermore, did not have a great deal of influence on the presidents who immediately fol lowed him. The total of thirty vetoes between Jackson and Lincoln was not particularly large, considering the partisanship and sectionalism of the era. Although Jackson often seemed to be strengthening the presi dency, Tocqueville thought otherwise, noting perceptively that the per sonal "power of General Jackson... increases, but that of the President declines." Tocqueville predicted accurately that the power of the presi dency would "pass enfeebled into the hands of his successor."10

The great achievement of Jackson's presidency was the creation of the Democratic party. During those eight years Jackson's heroic person ality, Blair's rhetoric, and the political skills of Van Buren and Kendall made the first modem American political party and the first real twoparty system possible. The Democratic party and the Whig party that followed were the first mass political parties in the world, coming half a century before similar parties in Europe. Ever so grudgingly, Jack son's opponents recognized his accomplishment. Calhoun, for example, blamed party patronage for the expunging of the censure. Three years after Jackson left office, John Quincy Adams wrote that—aside from mil itary service and demagoguery—"the art of party drilling" was the "most indispensable element of success" in politics.[11]

One of the legacies of the Democratic party was the policy of accom modating to slavery. Jackson and Van Buren implemented that policy between 1835 and 1837 by appointing five southerners to the Supreme Court, and the policy was an important part of Van Buren's strategy in his election campaign. In the next two decades Democrats trained under Jackson would make every effort to hold their party together by compro mising with the South. When the policy began to falter late in the 1850s, old Jackson Democrats were still adhering to it. In the Dred Scott deci sion, for example, a group of aging Democratic justices provided the majority opinion that Congress lacked the power to ban slavery in the territories. Among them were Roger B. Taney, James M. Wayne, and John Catron, all appointed by Jackson, and Peter V. Daniel and Robert C. Grier, appointed by Van Buren and Polk.

While Jackson was president, changes were taking place in the city of Washington that reflected the same struggle between the old re publican ideals and the new materialism that had so affected the admin istration. To perpetuate the republic by glorifying George Washington, two works of art were commissioned. In 1832 Congress chose Horatio Greenough to prepare a statue of the first president, and four years later Robert Mills won a competition to design

the Washington Monument. Attention was also given to the Capitol, which had not fully recovered from being burned by the British in 1814, and the President's House, which was shabby inside and unfinished outside. When Charles Bulfinch completed work on the rotunda and the east and west fronts of the Capitol in 1830, the building assumed the form it would retain until the eve of the Civil War. At the President's House the addition of the north portico with its grand columns and the elaborate decoration of the East Room transformed a run-down dwelling into an American temple, called, increasingly, the "White House." To improve the way between these two republican buildings, the government planted trees along Pennsylvania Avenue and macadamized the surface.

But not all the changes in the dty recaptured the idealism of the Revolution. The many taverns and cheap stores that sprang up along Pennsylvania Avenue constantly reminded visitors of the less attractive.

Author's Notes

11. Thomas Hart Benton, Thirty Years' View, 2 vols. (New York: D. Appleton, 1854), 1:415-25.

Chicago Citations

Bibliography entry:

Cole, Donald B. *The Presidency of Andrew Jackson*. American Presidency Series. Lawrence: University Press of Kansas, 1993.

Footnote citation:

Donald B. Cole, *The Presidency of Andrew Jackson* (American Presidency Series. Lawrence: University Press of Kansas, 1993), 274–275.

Shortened citation:

Cole, *The Presidency of Andrew Jackson*, 274–275.

CHAPTER 10 · SECONDARY SOURCE S10.64

Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes

Gerard N. Magliocca

WORK	Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes
SELECTION	Presidential Reconstruction
SOURCE LOCATOR	Original pages 31–32 · University Press of Kansas, 2007.

Excerpt

issuing his vetoes, Madison expanded on his position by explaining that a veto would be inappropriate in the face "of all the obligations derived from a course of precedents amounting to the requisite evidence of the national judgment and intention." Madison's Bank Veto therefore created an informal limit on the veto power—based on consistent practice—that became quite influential prior to Jackson's election."

Institutional arrangements and constitutional substance were now merging, and what followed shows once again how the initial allocation of political resources directs the flow of events during a transitional period. In the 1820s, the Jacksonian movement gave no consideration to how the president should interact with Congress. If the Democrats had started with control of Congress, they probably would have used traditional arguments to advance their ideas. But that was not the situation. The president's plan to alter the law was confronted by the same contention across the board—the status quo was fixed by repeated acknowledgments of its validity by the political branches." Recall that Senator Sprague stressed this point, citing Madison's Bank Veto, in opposing the Removal Act. Jackson could only achieve his aims by challenging the traditional view that legislative precedent was binding on the other branches.

To smash this consensus, the president turned to the veto. Jackson vetoed more bills than all of his predecessors combined, and these were crucial in mobilizing public support.' This tactic worked because it resonated with the deeper structure of the presidency. In a groundbreaking study of the executive branch, Stephen Skowronek writes that presidents are better at tearing things down than at building them up." Vetoes capture this observation well, since they can only be used to end programs. This was no problem for Jackson, since he wanted to destroy the earlier generation's view of federal power. The place to start was the Maysville Turnpike.

Jackson's Opening Bid Boldness mixed with a dash of luck let the president veto the act as an "irregular, improvident, and unequal appropriation... of the public funds."* Both Madison and Monroe vetoed spending on "local" items that the states could not refuse to undertake.*! Thus, the issue was not a black-and-white one about the existence of federal implied power—the question was how broadly that power should be construed." In his argument against the Maysville Turnpike, Jackson relied on his prédecessors' vetoes as a way of appealing to the more cautious _. -. - - Ps Kentucky. Since the bill sought to extend a national network of roads, classifying it asa local project was questionable, but the president's analysis of the customary law was plausible. During such an early stage, the claims advanced by the new movement always appear more modest than they actually are. Unsure of the political support for radical change, the new leadership will try to set its reforms in the context of existing principles. Just as the Removal Act claimed to respect the Tribe's freedom on whether it would leave Georgia, in his first veto Jackson claimed that he was doing nothing more than what past presidents had done.

Although the "holding" of the veto was rather bland, Jackson's "dicta" undermined the idea of deferring to legislative and executive practice. * He spoke wistfully about Jefferson's narrow view of federal power on internal improvements, noting its "deservedly high authority," and said, "The symmetry and purity of the Government would doubtless have heen better preserved it this restriction of the power of appropriation could have heen maintained." He lamented "the difficulty, if not impracticability, of bringing back the operations of the Government to the

construction of the Constitution." That example was an "admonitory proof of the force of implication and the necessity of guarding the Constitution with sleepless vigilance against the authority of precedents which have not the sanction of its most plainly detined powers." It was the duty of all officials, he said, "to look to that sacred instrument instead of the statute book" when interpreting the Constitution..

In this sense, the Maysville Turnpike Veto bridged the divide between the competing generations. Jackson's action was within the parameters of constitu tional tradition and drew on its precedents. Nevertheless, the rest of his statement took the assumptions of that regime to task. Practice was not an irresistible rule of construction but a suspicious source of authority that must be watched with "sleepless vigilance." Moreover, legislative precedent in "the statute book" was unreliable in comparison with the constitutional text, which inverted Madison's notion that abstract opinion could not defeat consistent practice. With these assertions, the president sought to undermine traditional principles and prepare the nation for broad reform..

Notwithstanding the care that Jackson took to rest his veto on widely accepted precedent, the response to his action suggested that the president's opponents were not fooled. The National Intelligencer, a leading antiJackson newspaper, held that the Maysville Veto threw the government back half a century.' Daniel Webster charged that the only road that the administration wanted was a "toad to ruin."

Chicago Citations

Bibliography entry:

Magliocca, Gerard N. *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes*. Lawrence: University Press of Kansas, 2007.

Footnote citation:

Gerard N. Magliocca, *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes* (Lawrence: University Press of Kansas, 2007), 31–32.

Shortened citation:

Magliocca, *Andrew Jackson and the Constitution*, 31–32.

CHAPTER 10 · SECONDARY SOURCE S10.65

Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America

Harry L. Watson

WORK	Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America
SELECTION	Four More Years
SOURCE LOCATOR	Original pages 99–100 · Bedford/St. Martin's, 1998.

Excerpt

Jackson went even further. “The Presidentis the direct representative of the American people,” he boldly declared, “but the Secretaries are not.”

If the president had no power over the public purse, the people had none either, and that supposition was intolerable in a democracy. Because the president was the only officer directly elected by the whole people, he alone had the power and authority to give order and direction to the national government. Without the overriding power of the president to subject all departments of the executive branch to the mandate of the popular will, the Union and republican government itself would collapse into unbearable confusion. “At length,” he worried, “some form of aristocratic power would be established on the ruins of the Constitution or the States be broken into separate communities.”

Jackson thus rested his case as Clay did, claiming that his version of the case was the only salvation of the nation’s republican traditions. His argument in favor ofa strong presidency, morally and legally justified by an appeal to the democratic will of the whole people, broke new constitutional ground in defining the office of the president. It slowly became accepted as the prevailing view of the president’s powers, but contemporary Whigs remained horrified. If the president were “the direct representative of the American people,” where did that leave Congress and the courts? If a popular majority could reach over the heads of locally elected leaders and dictate national policy through a single elected despot, how could the lives and property of the minority ever be safe? If democracy meant that the president was all powerful when he acted in the name of the people, what would happen to liberty under law?

Chicago Citations

Bibliography entry:

Watson, Harry L. *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America*. Boston: Bedford/St. Martin's, 1998.

Footnote citation:

Harry L. Watson, *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America* (Boston: Bedford/St. Martin's, 1998), 99–100.

Shortened citation:

Watson, *Andrew Jackson vs. Henry Clay*, 99–100.

CHAPTER 10 · SECONDARY SOURCE S10.66

The Long, Bitter Trail: Andrew Jackson and the Indians

Anthony F. C. Wallace

WORK	The Long, Bitter Trail: Andrew Jackson and the Indians
SELECTION	The Removal Act
SOURCE LOCATOR	Original pages 55–56 · Hill and Wang, 1993.

Excerpt

Andrew Jackson. Jackson referred to Lincoyer as his son and compared the boy's life to his own—both were orphaned at an early age. He apprenticed him to a harness maker, as he himself had been. Unhappily, Lincoyer died of tuberculosis at the age of sixteen. Later, during the war, Jackson set free the Creek military leader Weatherford, who had surrendered voluntarily. And Jackson was not above employing Native American warriors from various tribes in all his military campaigns.

As he came to deal with Indians in the postwar land-cession treaties, Jackson developed a new rhetoric. The Native Americans were now a conquered and dependent people. The object of government must be to save them from imminent extinction by removing them to the West, far from the white settlements, and of course in the process acquiring their lands (some of which, as we have seen, would become his personal property). If possible, their leaders—who he asserted were naturally corrupt and avaricious—should be persuaded by bribes, whether of cash, lifetime annuities, or private reservations (tactfully described as individual allotments) that enabled them to remain behind while the rest of their tribes emigrated. When honest chiefs like John Ross of the Cherokees refused to be bribed, Jackson proposed that the traditional practice of treaty making be discontinued and that Congress should simply legislate the seizure of land not actually occupied by villages. A law disallowing further treaties with Indian tribes and mandating congressional legislation instead was not adopted for another fifty years; but the practice of allotment was extended to Indians in the treaties of the 1830s, on the theory that the holdouts, being improvident by nature, would soon be forced to sell their land and follow their emigrating fellow tribesmen to the West. Referring to the 1817 treaty, which allowed the residents of the ceded lands the option of emigrating either to their fellow tribesmen's lands in Georgia or to their relations west of the Mississippi, or of taking small individual allotments, he observed that "the principle established by the treaty... will give us the whole country in less than two years." Only a minute fraction would remain behind permanendy, those few who were "prepared for agricultural pursuits, civil life, and a government of laws" (i.e., the laws of the state of Georgia). Jackson never proposed exterminating the Indians or, at least in public rhetoric, removing by force of arms those who wished to remain. But he was adept at devising conditions that would make those who chose not to remove so miserable that they would emigrate eventually anyway. Like many others, he seems to have regarded as inevitable the ultimate extinction of the Native Americans as a culturally distinct entity. Their doom was not to be regretted, however: the present race of Indians had destroyed the once great civilization of the "mound builders," he argued (along with others of the time, including Joseph Smith and the Mormons), and now their own decline was only one more episode in the history of the human race.

But whatever were Jackson's private reasons for promoting Indian removal—some combination of political ambition, financial greed, and philosophical rationalization—there remained the political forces that he had mobilized under the banner of the Democratic Party. The exaltation of the common man (meaning, on the frontier, the settler and speculator hungry for Indian land), the sense of America as the redeemer nation destined for continental expansion, the open acceptance of racism as a justification not only for the enslavement of blacks but also for the expulsion of Native Americans—these were popular, politically powerful themes that would have driven any Democratic President to press for a policy of Indian removal.

Chicago Citations

Bibliography entry:

Wallace, Anthony F. C. *The Long, Bitter Trail: Andrew Jackson and the Indians*. New York: Hill and Wang, 1993.

Footnote citation:

Anthony F. C. Wallace, *The Long, Bitter Trail: Andrew Jackson and the Indians* (New York: Hill and Wang, 1993), 55–56.

Shortened citation:

Wallace, *The Long, Bitter Trail*, 55–56.

CHAPTER 10 · SECONDARY SOURCE S10.67

African Cherokees in Indian Territory: From Chattel to Citizens

Celia E. Naylor

WORK	African Cherokees in Indian Territory: From Chattel to Citizens
SELECTION	On the Run
SOURCE LOCATOR	supplied PDF pages 33-34 · University of North Carolina Press, 2008.

Excerpt

Miles describes as a burgeoning Cherokee "middle class," exhibited "qualities that set them apart from most Cherokee people."?* Over time, plantation slavery in the Cherokee Nation contributed to the creation of "two distinct classes within Cherokee society not only in an economic sense but also in terms of values and world views." Cherokees who supported removal often emulated southern, white slaveholding sensibilities and rejected the adherence to traditional Cherokee belief systems. Cherokees who opposed removal primarily believed in traditional Cherokee worldviews and questioned the legitimacy and relevance of European American mores. The dissension about plantation slavery and Cherokee belief systems, as well as the ramifications of slaveholding in Cherokee society, would continue to plague the Cherokee Nation even after removal to Indian Territory. Estimates vary as to the number of southeastern Indians forcibly relocated to Indian Territory. Historians are equally uncertain about the preremoval population of enslaved blacks in the Cherokee, Creek, Choctaw, Chickasaw, and Seminole nations. A census of the Cherokee Nation, conducted in December 1835 by the U.S. War Department, indicated that the Cherokee Nation in the East included 16,542 Cherokee Indians, 1,592 enslaved blacks, and 201 intermarried whites in the states of North Carolina, Georgia, Alabama, and Tennessee.** Most scholars agree that prior to removal, there were at least goo—1,000 enslaved blacks in three of the five nations—the Cherokee, Creek, and Chickasaw nations. Yet, due to the smaller number of Indians in the Chickasaw Nation (between 5,000 and 6,000 in 1837), compared to the Cherokee Nation (at least 15,000 in 1835) and the Creek Nation (at least 20,000 in 1832), the percentage of enslaved blacks in the Chickasaw Nation was significantly higher than in the other nations. A census of the Choctaw Nation in 1831 reported 512 enslaved blacks in a population of more than 19,500. Yet some scholars have argued that the enslaved population in the Choctaw Nation could have been considerably smaller." Although the enslavement of African-descended people existed within all Five Tribes, the Seminoles absorbed enslaved people within their communities in a manner that scholars have described as far less rigid and constrained than the other four nations.** Possibly due to the particular nature of the Seminoles' relationship with blacks, the Seminole Nation refused to reveal the number of free or enslaved African Seminoles in the period before removal. The African Seminole population, enslaved and free, could have been as high as one-fifth or onesixth of the total Seminole population of approximately 5,000."° Overall, only a small percentage of Indians in the Five Tribes enslaved blacks; the majority of these slave owners operated small farms with fewer than ten enslaved blacks before and after removal. During and after the removal process, enslaved people in the Five Tribes assisted with the survival and reestablishment of these nations in Indian Territory. Enslaved African Cherokees who relocated with their Cherokee enslavers in the winter of 1838-39 performed duties that sustained the removal detachments overall. As they traveled, some slaves trekked ahead and cleared the way for the larger groups. Cherokee owners utilized enslaved people along the trail as they had before removal. Enslaved African Cherokees worked as watchmen, hunters, cooks, and nurses. By assisting their owners and others during the removal process, enslaved people helped to minimize the intensity of some aspects of this intolerable journey for all Indians, whether they owned slaves or not.*° Experiencing the range of challenges along the trail perhaps cemented among some enslaved people a sense of mutual struggle and survival in relation to Indians. Others might have viewed their additional tasks and their different "place" within the removal detachments as simply a reinforcement of their outsider status in these Indian nations. However they might have construed their passage to Indian Territory, after arrival their duties as enslaved people underscored that journeying and suffering together would not engender equal status in the new land. After removal, owners employed slave labor in a variety of ways. Enslaved African Cherokees worked in prescribed roles as domestics within their owners' homes and as agricultural laborers.

Chicago Citations

Bibliography entry:

Naylor, Celia E. *African Cherokees in Indian Territory: From Chattel to Citizens*. Chapel Hill: University of North Carolina Press, 2008.

Footnote citation:

Celia E. Naylor, *African Cherokees in Indian Territory: From Chattel to Citizens* (Chapel Hill: University of North Carolina Press, 2008), supplied PDF pages 33-34.

Shortened citation:

Naylor, *African Cherokees in Indian Territory*, supplied PDF pages 33-34.

CHAPTER 10 · SECONDARY SOURCE S10.68

Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory

Claudio Saunt

WORK	Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory
SELECTION	Unworthy Republic
SOURCE LOCATOR	supplied PDF pages 344-345 · W. W. Norton, 2020.

Excerpt

Paraphrasing the Declaration of Independence while at the same time invoking their own supreme being, Creek leaders had observed in 1830 that “the great master of Breath… created mankind in equal, in possession of an unmolested enjoyment of life, and the blessings of Self Government.” A “great and enlightened Republic,” they asserted, stood by those values. Likewise, Seneca leaders reminded President Jackson of the example of imperial Rome, whose story in the era of the Revolution was often recounted as a frightening and edifying lesson in the dangers of tyranny. Chickasaws appealed to the “liberty” bequeathed to Americans by George Washington. And as early as 1824, Cherokee leaders demanded their rights “under that memorable declaration, ‘that all men are created equal; that they are endowed by their Creator with certain unalienable rights; that among these are, life, liberty, and the pursuit of happiness.’”3" U.S. citizens made similar appeals when calling on their government to honor its treaties with indigenous nations. In Luzerne County, Pennsylvania, residents wrote, “the Liberty that we Enjoy was originally attained by constant Sacrifices of Life and property on the Altar of Eternal Justice and the Original and indefeasible Rights of man.” In Chesterfield, Maine, residents warned that if the federal government expelled native peoples, “we fear those rights of Man, for which our Fathers fought and bled in the Revolutionary conflict will be trampled under foot; and the publick faith of our Nation, the glory of our Republick, sinks into disgrace.” In Lafayette, New York, they quoted the Declaration of Independence and concluded that efforts to “wrest” the land from native peoples was “tyrannical and oppressive.” In Lincoln County, Maine, they warned that, with the deportation of native peoples, “the only free govt on earth” would be “converted into a Despotism of the most frightful character.”* U.S.

Chicago Citations

Bibliography entry:

Saunt, Claudio. *Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory*. New York: W. W. Norton, 2020.

Footnote citation:

Claudio Saunt, *Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory* (New York: W. W. Norton, 2020), supplied PDF pages 344-345.

Shortened citation:

Saunt, *Unworthy Republic*, supplied PDF pages 344-345.

CHAPTER 10 · SECONDARY SOURCE S10.69

Andrew Jackson, Southerner

Mark R. Cheathem

WORK	Andrew Jackson, Southerner
SELECTION	Introduction
SOURCE LOCATOR	Original pages 3–4 · Louisiana State University Press, 2013.

Excerpt

Latner, whose study of Jackson's presidency explicitly linked Old Hickory to the West, acknowledged that "one would be hard-pressed... to fit slaveholding, tough-minded politicians like Jackson... into Turner's conception of western democratic idealism," yet he failed to elucidate from where Old Hickory's views on slavery originated and how they influenced his political decisions.? }; More recent scholarship has also failed to explain how Jackson assumed the characteristics of the southern gentry. Lorman Ratner's compendium of short biographical sketches of Jackson and his closest allies offered a promising argument that the Tennessean emulated a Scottish thane, or clan leader, as he entered the gentry, but his analysis was brief and superficial. Along similar lines Andrew Burstein's study of Jackson's passions also centered on his relationship with the men with whom he surrounded himself, but his analysis was informed by literary theory and did not concern itself with southern cultural practices such as kinship and slaveholding. Likewise, Jon Meacham's Pulitzer Prize-winning biography of Jackson as president failed to place Old Hickory's outsized character in a social context that made him understandable. The two most recent surveys of the Jacksonian period fell into the same pattern of skimming over Jackson's transformation into a southern planter. Sean Wilentz's mammoth survey of American democracy in the early republic paid scant attention to Jackson's slaveholding and land speculation, both of which marked his entry into the planter class. While recognizing the importance of slavery to Jacksonian Democrats, Daniel Walker Howe's equally behemoth examination of the Jacksonian period treated Jackson's southern identity with similar brevity.' There have been notable exceptions to the above trend. Robert Remini's three-volume biography discussed extensively Jackson's various business dealings, including land speculation and slaveholding, but that information was secondary to the frontier's influence on Old Hickory. William J. Cooper Jr. clearly elucidated Jackson's importance to southern politics, while Bertram WyattBrown brilliantly explained his embodiment of southern honor. More recently, Bettina Drew's unpublished dissertation examined "Master Andrew Jackson" and the influence of his southern identity on his removal of the southeastern Indians, Matthew Warshauer offered an overview of Jackson as a chivalric slave owner, and Hendrik Booraem's study of Jackson's early life made a convincing case that he had been exposed to, and influenced by, the southern gentry in the Carolinas.* Although most scholars describe Old Hickory as a westerner, as representative of the trans-Appalachian frontier, Jackson was truly a southerner. He was born and raised in the Waxhaws region of the most southern of states, South Carolina, where he learned that the path to success included building an influential social network, choosing a career in law, and acquiring land and slave property. In Tennessee, Jackson worked toward becoming a southern planter and gentleman, although his enemies would have disputed the latter. His desire to live as part of the gentry was ever present, even as he defeated the British at New Orleans in 1815, ascended to the presidency in 1828, and built the Democratic party in the 1830s and 1840s. Jackson's propensity toward violence, defense of honor, enslavement of African Americans, embrace of kinship, and pursuit of Manifest Destiny created a southern identity to which many contemporary white southerners, elite and nonelite, could relate. One of the greatest ironies of Jackson's life was that his identification with the South laid the foundation for the Civil War. Even though the idea of Indian removal preceded him, his actions as general and president accelerated the process, opening up southeastern lands to white settlers intent on making money from cotton. Jackson opposed disunion in 1832 and 1833, yet his longtime pursuit and support of Manifest Destiny helped drive a wedge between northerners and southerners and exacerbated the slavery debate. He supported the annexation of Texas, which, when accomplished, set off a chain of events that made slavery the crucial issue in the congressional debates over westward expansion and led to the nation's division. Although Jackson died without witnessing the bloody conflict that began in 1861, his influence as the "patriot slaveholder" was obvious during the secession crisis of 1860-1861. Both northerners and southerners appealed to his example to make the case for and against secession. Abraham Lincoln's first inaugural address drew on Jackson's 1832 Nullification Proclamation, which denied South Carolina's right to nullify federal law and dismember the Union, to argue that "the central idea of secession is the essence of anarchy." In the end Old Hickory not only helped create the South that precipitated the nation's greatest crisis, but he also provided the model for Lincoln's opposition to the Confederacy's formation.°

Chicago Citations

Bibliography entry:

Cheathem, Mark R. *Andrew Jackson, Southerner*. Southern Biography Series. Baton Rouge: Louisiana State University Press, 2013.

Footnote citation:

Mark R. Cheathem, *Andrew Jackson, Southerner* (Southern Biography Series. Baton Rouge: Louisiana State University Press, 2013), 3–4.

Shortened citation:

Cheathem, *Andrew Jackson, Southerner*, 3–4.

CHAPTER 10 · SECONDARY SOURCE S10.70

Andrew Jackson

Sean Wilentz

WORK	Andrew Jackson
SELECTION	Andrew Jackson
SOURCE LOCATOR	Original pages reflowed ebook; no fixed page numbers · New York: Times Books, 2005.

Excerpt

1829 did the House approve the bill, after protracted debate and several closely fought votes. Even then, twenty-four Jacksonians voted “nay” and twelve absented themselves. It took a solid turnout from Martin Van Buren’s loyal New York delegation to carry the day for the administration. Van Buren himself, who regarded Indian removal as chiefly a southern issue and wished it had never arisen, later remarked that the outcome was so unpopular with New York voters it nearly destroyed his own political base.

Indian removal has, in recent historical writing, become the great moral stain on the Jacksonian legacy, much as it was to Christian humanitarian reformers in 1829 and 1830—a policy, supposedly, that aimed at the “infantilization” and “genocide” of the Indians, and that signaled a transition from the ethical community upheld by anti-removal men to Jackson’s boundless individualism. The judgments confuse tragedy with melodrama. Compared to some of his chief political adversaries—notably Henry Clay, whose racist contempt for Indians had once prompted him to remark that their annihilation would cause “no great loss to the world”—Jackson was a sincere if unsentimental paternalist. He earnestly believed, with good reason, that his predecessors’ hypocritical combination of high-minded rhetoric, treachery, and abandonment had been disastrous. Removal, he wrote, was the only practical means “to preserve this much-injured race” by placing them under federal protection, “free from the mercenary influence of White men,” so that they might live as they saw fit. In view of the hard anti-Indian realities prevalent among whites in the lower South, that conclusion, although certainly patronizing to the Indians, was neither genocidal nor far-fetched.[9]

The Cherokees’ demand for full tribal sovereignty was, to Jackson, unconstitutional as well as impractical. Article IV, section 3, of the Constitution stated that “no new State shall be formed or erected within the Jurisdiction of any other State” without the approval of that state’s legislature. If granted, tribal sovereignty would establish an irregular nation within a nation whose existence would present as great a potential threat to national integrity and security as the Carolina doctrine of nullification. Jackson’s policy owed something to his persistent fear that independent, sovereign Indian nations would prove easy prey for manipulation by hostile foreign powers. It also conformed with his developing views on the division of powers between the federal government and the states—respecting the strict integrity of the states under the Constitution, while giving the federal government considerable powers above and beyond those held solely by the state governments. In the end, quite apart from protecting the Indians, removal was, in Jackson’s view, the only way to safeguard the Constitution of the United States and the nation’s survival.

Yet if Jackson’s removal policy was not overtly malevolent, it was insidious—and, for the Indians, it was ruinous. Jackson the paternalist presumed that all Indians were “erratic in their habits” and inferior to all whites, a prejudice then widely but not universally shared. He presumed that he understood the Indians’ welfare better than they did. And, in practice, the policy never matched Jackson’s own high-minded professions. Jackson’s promises about voluntary and compensated relocation would be constantly undermined by delays and by sharp dealing by government negotiators that pitted one tribal faction against another to obtain land quickly and cheaply— actions that Jackson would condone. The removal bill’s allotment scheme invited an influx of outside speculators, who wound up buying from those Indians who chose not to relocate between 80 and 90 percent of their land at a fraction of its actual worth. The frauds persuaded many Indians who would have preferred to stay that they had no choice but to leave. So did the sinister coercion that undergirded the entire plan: those Indians who did not relocate would be

left to the tender mercies of state governments—governments whose hostility to the Indians was one of Jackson's stated reasons for favoring removal. Above all, Jackson was determined to minimize federal costs and extinguish the national debt, and provided woefully insufficient funds for the care and protection of the relocated. Although the worst suffering was inflicted after he left office, Jackson cannot escape responsibility for setting in motion a policy that uprooted tens of thousands of Choctaws, Chickasaws, and Creeks during his presidency, and that would later cost the lives of upwards of eight thousand Cherokees on the long trek west along the "Trail of Tears"—an outcome some anti-removal advocates had predicted.

The politics of Indian removal also reinforced elements within the Jackson Democracy who presumed the supremacy of whites over nonwhites, and interpreted any challenge to that supremacy as pretended philanthropy. To be sure, some of Jackson's opponents, notably Henry Clay, seized upon the issue and aided the anti-removal petition effort, contradicting their earlier views of the matter. But to reduce all of the critics, as Jackson and his supporters did, to ambitious and "factious" partisans was to confuse the opportunists with sincere humanitarians like Senator Freylinghuysen. In the political turmoil of the 1830s and after, this turn of mind would complicate and compromise the Jacksonian ideals of equality and democracy, by rendering all kinds of benevolent reform as crypto-aristocratic efforts to elevate blacks as well as Indians at the expense of ordinary white men. Those complications and compromises would, in the future, create havoc and tragedy for Jackson's party.

Congress's enactment of Indian removal, although narrowly won, was a welcome political victory for President Jackson amid the tribulations of the Eaton affair and the fracas with Vice President Calhoun. Jackson had proved that, on at least one issue, he was resourceful enough to impose his will on his faction-ridden government. He did so again, immediately after the removal bill passed, over the issue of internal improvements—this time by defying Congress instead of cajoling it.

Author's Notes

9. Jackson to James Gadsden, October 12, 1829, in CAJ, 4:81; Adams, ed., Memoirs, 7:89–90; Richardson, 3:1021. On Jackson's policy as genocide, see Michael P. Rogin, Fathers and Children: Andrew Jackson and the Subjugation of the American Indian (New York: Alfred A. Knopf, 1975). For a fair-minded corrective, see Ronald N. Satz, "Rhetoric versus Reality: The Indian Policy of Andrew Jackson," in William L. Anderson, Cherokee Removal: Before and After (Athens: University of Georgia Press, 1991), 29–54.

Chicago Citations

Bibliography entry:

Wilentz, Sean. *Andrew Jackson*. New York: Times Books, 2005.

Footnote citation:

Sean Wilentz, *Andrew Jackson* (New York: Times Books, 2005), reflowed ebook; no fixed page numbers.

Shortened citation:

Wilentz, *Andrew Jackson*, reflowed ebook; no fixed page numbers.

Bibliography

Only works represented in this chapter reader appear here.

Balogh, Brian. *A Government Out of Sight: The Mystery of National Authority in Nineteenth-Century America*. New York: Cambridge University Press, 2009.

Baptist, Edward E. *The Half Has Never Been Told: Slavery and the Making of American Capitalism*. New York: Basic Books, 2014.

Cheathem, Mark R. *Andrew Jackson, Southerner*. Southern Biography Series. Baton Rouge: Louisiana State University Press, 2013.

Cole, Donald B. *The Presidency of Andrew Jackson*. American Presidency Series. Lawrence: University Press of Kansas, 1993.

Freehling, William W. *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836*. New York: Harper & Row, 1966.

Garrison, Tim Alan. *The Legal Ideology of Removal: The Southern Judiciary and the Sovereignty of Native American Nations*. Athens: University of Georgia Press, 2002.

Hammond, Bray. *Banks and Politics in America from the Revolution to the Civil War*. Princeton, NJ: Princeton University Press, 1957.

Hodges, Graham Russell Gao. *Slavery, Freedom, and Culture among Early American Workers*. Armonk, NY: M. E. Sharpe, 1998.

Hofstadter, Richard. *The American Political Tradition and the Men Who Made It*. New York: Alfred A. Knopf, 1948.

Holt, Michael F. *The Rise and Fall of the American Whig Party: Jacksonian Politics and the Onset of the Civil War*. New York: Oxford University Press, 1999.

Howe, Daniel Walker. *The Political Culture of the American Whigs*. Chicago: University of Chicago Press, 1979.

Irwin, Douglas A. *Clashing over Commerce: A History of US Trade Policy*. Chicago: University of Chicago Press, 2017.

Keyssar, Alexander. *The Right to Vote: The Contested History of Democracy in the United States*. Rev. ed. New York: Basic Books, 2009.

Klotter, James C. *Henry Clay: The Man Who Would Be President*. New York: Oxford University Press, 2018.

Krauthamer, Barbara. *Black Slaves, Indian Masters: Slavery, Emancipation, and Citizenship in the Native American South*. Chapel Hill: University of North Carolina Press, 2013.

Langguth, A. J. *Driven West: Andrew Jackson and the Trail of Tears to the Civil War*. New York: Simon & Schuster, 2010.

Larson, John Lauritz. *Internal Improvement: National Public Works and the Promise of Popular Government in the Early United States*. Chapel Hill: University of North Carolina Press, 2001.

Lepler, Jessica M. *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis*. New York: Cambridge University Press, 2013.

Magliocca, Gerard N. *Andrew Jackson and the Constitution: The Rise and Fall of Generational Regimes*. Lawrence: University Press of Kansas, 2007.

McCormick, Richard P. *The Second American Party System: Party Formation in the Jacksonian Era*. Chapel Hill: University of North Carolina Press, 1966.

Naylor, Celia E. *African Cherokees in Indian Territory: From Chattel to Citizens*. Chapel Hill: University of North Carolina Press, 2008.

Norgren, Jill. *The Cherokee Cases: Two Landmark Federal Decisions in the Fight for Sovereignty*. Norman: University of Oklahoma Press, 2004.

Parsons, Lynn Hudson. *The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828*. New York: Oxford University Press, 2009.

Peterson, Merrill D. *Olive Branch and Sword: The Compromise of 1833*. Baton Rouge: Louisiana State University Press, 1982.

Peterson, Merrill D. *The Great Triumvirate: Webster, Clay, and Calhoun*. New York: Oxford University Press, 1987.

Prucha, Francis Paul. *The Great Father: The United States Government and the American Indians*. 2 vols. Lincoln: University of Nebraska Press, 1984.

Remini, Robert V. *Daniel Webster: The Man and His Time*. New York: W. W. Norton, 1997.

Remini, Robert V. Andrew Jackson and His Indian Wars. New York: Viking, 2001.

Remini, Robert V. *Andrew Jackson and the Bank War: A Study in the Growth of Presidential Power*. New York: W. W. Norton, 1967.

Reynolds, David S. *Waking Giant: America in the Age of Jackson*. New York: Harper, 2008.

Riley, Padraig. *Slavery and the Democratic Conscience: Political Life in Jeffersonian America*. Philadelphia: University of Pennsylvania Press, 2016.

Roberts, Alasdair. *America's First Great Depression: Economic Crisis and Political Disorder after the Panic of 1837*. Ithaca, NY: Cornell University Press, 2012.

Satz, Ronald N. *American Indian Policy in the Jacksonian Era*. Norman: University of Oklahoma Press, 2002.

Saunt, Claudio. *Unworthy Republic: The Dispossession of Native Americans and the Road to Indian Territory*. New York: W. W. Norton, 2020.

Schlesinger, Arthur M., Jr. *The Age of Jackson*. Boston: Little, Brown, 1945.

Sellers, Charles. *The Market Revolution: Jacksonian America, 1815-1846*. New York: Oxford University Press, 1991.

Sinha, Manisha. *The Counterrevolution of Slavery: Politics and Ideology in Antebellum South Carolina*. Chapel Hill: University of North Carolina Press, 2000.

Taussig, F. W. *The Tariff History of the United States*. 6th ed. New York: G. P. Putnam's Sons, 1910.

Temin, Peter. *The Jacksonian Economy*. New York: W. W. Norton, 1969.

Wallace, Anthony F. C. *The Long, Bitter Trail: Andrew Jackson and the Indians*. New York: Hill and Wang, 1993.

Watson, Harry L. *Liberty and Power: The Politics of Jacksonian America*. Updated ed. New York: Hill and Wang, 2006.

Watson, Harry L. *Andrew Jackson vs. Henry Clay: Democracy and Development in Antebellum America*. Boston: Bedford/St. Martin's, 1998.

Wilentz, Sean. *The Rise of American Democracy: Jefferson to Lincoln*. New York: W. W. Norton, 2005.

Wilentz, Sean. *Chants Democratic: New York City and the Rise of the American Working Class, 1788–1850*. New York: Oxford University Press, 1984.

Wilentz, Sean. *Andrew Jackson*. New York: Times Books, 2005.